

(As amended upto 17.01.2023)

KERALA MUNICIPALITY BUILDING RULES 2019



Compiled by

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Every effort has been made to avoid errors and omissions.
It is suggested to refer the official publication also.

Rajesh T. Varghese.

നന്ദി....

പുതിയ ഭേദഗതി ഭാഗം പരിശോധിച്ച് പിശകുകൾ തിരുത്തി നൽകിയ
സഹീർ എസ്. കുരിയോട് (A.Ex.E., Konny Block Panchayat),

ഇതു പൂർത്തീകരിക്കുന്നതിന് എന്നെ സഹായിച്ച
സർവ്വ ശ്രീ...

കെ. വിനോദ് കുമാർ (APS to Minister for LSGD & Excise)

പി.കെ.താനിൽ

സി.കെ. രഞ്ജിത് കുമാർ (ഭാവർസിയർ, മാലൂർ ഗ്രാമപഞ്ചായത്ത്, കണ്ണൂർ
ടി. മുത്യണ്ണയൻ (സീനിയർ ക്ലാർക്ക്, PAU -5, Kottayam)

ജാബിർ തിരുവോത്ത് (LENSFED, Kozhikode)

മുളന്തറുരുത്തി ഗ്രാമപഞ്ചായത്ത് ഓഫീസിലെ പ്രിയ സഹപ്രവർത്തകർ

മുൻ കുറിപ്പ്...

2019-ലെ കേരള മുനിസിപ്പാലിറ്റി കെട്ടിട നിർമ്മാണ ചട്ടങ്ങൾക്ക് നാളിതു വരെയുള്ള ഭേദഗതികളെ ചേർത്ത് തയ്യാറാക്കിയ പുസ്തകമാണിത്. ഭേദഗതികൾ ചേർത്ത് ഞാൻ തയ്യാറാക്കിയ KPBR ഉപകാരപ്രദമായി എന്ന് നിരവധി ഉദ്യോഗസ്ഥ അനുഭൂതമനുഭൂത സുഹൃത്തുക്കളെ അറിയിക്കുകയുണ്ടായി. അവരിൽ ചിലർ KMBR കൂടിഭേദഗതികൾ ചേർത്ത് തയ്യാറാക്കാമോ എന്ന് ആരാധകയുണ്ടായി. ഭേദഗതികൾ ചേർത്തായിക്കുന്നത് ചട്ടങ്ങൾ ഫലപ്രദമായി പ്രയോഗിക്കുന്നതിന് പ്രയോജനപ്പെടും എന്നതിനാലാണ് പ്രിയ സുഹൃത്തുക്കളുടെ സ്നേഹപൂർവ്വമായ നിർബന്ധത്തിനു വഴങ്ങി ശ്രമകരമായ ഈ ദൃഷ്ടി ഏറ്റെടുത്തത്. എല്ലാ ഭേദഗതികൾക്കും അനുയോജ്യമായ അടിക്കുറിപ്പ് അതാതു പേജിൽ തന്നെ ചേർത്തിട്ടുണ്ട്.

2019-ലെ ചട്ടങ്ങൾ നാം പരിചയപ്പെട്ടു വന്ന ചട്ടങ്ങളുടെ രൂപത്തിലും ഭാവത്തിലുമല്ല തയ്യാറാക്കിയിട്ടുള്ളത് എന്നാണ് എന്റെ അഭിപ്രായം. ചട്ടം (Rule), ഉപ ചട്ടം (Sub rule), ഖണ്ഡം (clause), ഉപ ഖണ്ഡം (sub clause) എന്ന രീതിയാണ് ചട്ടങ്ങളെ സംബന്ധിച്ച് എന്റെ പരിമിതമായ അറിവിൽത്താൻ മനസ്സിലാക്കിയിട്ടുള്ളത്. കണ്ടു വന്നിട്ടുള്ള രീതിയിൽ നിന്നും വേറിട്ട് ചട്ടത്തിനു ശേഷം പിന്നെയും ചട്ടം, ഉപചട്ടങ്ങൾക്ക് ശേഷം പിന്നെയും ഉപചട്ടം ഉപഖണ്ഡങ്ങൾക്ക് ശേഷം ഉപഖണ്ഡം എന്നു പറയാവുന്നതുമായ ഉൾപ്പെടുത്തലുകൾ ഈ ചട്ടത്തിലുണ്ട്. പെർമിറ്റ് അപേക്ഷകളെ തീർപ്പാക്കുന്നതിന് മുനിസിപ്പാലിറ്റികളുടെ പഞ്ചായത്തുകൾക്കും ഉപയോഗിക്കാവുന്ന ഏകീകൃത ഇൻ്റലിജൻ്റ് സോഫ്റ്റ് വെയറിന്റെ ആവശ്യാർത്ഥം KMBRയും KPBRയും ചട്ടങ്ങൾക്ക് ഒരേ നമ്പർ നൽകുന്നതിനായിരിക്കാം മേൽ പ്രകാരം തയ്യാറാക്കിയിട്ടുള്ളത്. രണ്ടും ഒരു പോലെ തയ്യാറാക്കിയത് ആയതിനാൽ മുനിസിപ്പാലിറ്റികൾ പകരം ചിലയിടത്തെങ്കിലും പഞ്ചായത്ത് എന്ന വാക്ക് കയറിയിട്ടുണ്ട്.

പക്ഷെ ഇതൊന്നും ചട്ടങ്ങളുടെ പ്രായോഗികതയിൽ പരാധീനതകളാവില്ല.

മാറ്റത്തിന്റെ പാതയിൽ...

കേരളത്തിൽ കെട്ടിട നിർമ്മാണ നിയന്ത്രണം നിലവിൽ വന്നതിനു ശേഷം ഉണ്ടായിട്ടുള്ള വിപ്ലവകരമായ ഭേദഗതിയാണ് മുനിസിപ്പൽ / പഞ്ചായത്ത് രാജ് നിയമത്തിൽ 2021- ൽ ഉണ്ടായിട്ടുള്ളത്. നിയമങ്ങളെ മാനിക്കുന്ന പൗരന് ചുവപ്പുനാട സൃഷ്ടിക്കുന്ന കാലതാമസം ഒഴിവാക്കി നിർമ്മാണ അനുമതി ലഭ്യമാക്കുക എന്ന മഹത്തായ ലക്ഷ്യമാണ് ഭേദഗതി കൊണ്ട് ഉദ്ദേശിച്ചിട്ടുള്ളത്.

കെട്ടിട നിർമ്മാണ നിയന്ത്രണ വ്യവസ്ഥകളിൽ യാതൊരു ഇളവും പുതിയ ഭേദഗതി നൽകുന്നില്ല. അപേക്ഷകനെയും സാക്ഷ്യപ്പെടുത്തുന്ന 'എംപാനൽഡ്' ലൈസൻസിനെയും പൂർണ്ണമായി വിശ്വാസത്തിലെടുത്തു കൊണ്ട് ഉദ്യോഗസ്ഥ പരിശോധന ഒഴിവാക്കിയാണ് ഭേദഗതി ചട്ടങ്ങൾ കൊണ്ടുവന്നിട്ടുള്ളത്. എന്നാൽ പരിശോധനയുടെ അഭാവത്തിൽ നിയമലംഘനം ഉണ്ടാകുന്നുവെങ്കിൽ അതിനെതിരെ കർശന നടപടി സ്വീകരിക്കുന്നതിനുള്ള വ്യവസ്ഥകളും ഭേദഗതി ചട്ടങ്ങളിൽ ഉൾപ്പെടുത്തിയിട്ടുണ്ട്.

നിയമ വ്യവസ്ഥ പാലിക്കുന്നുവെന്ന് സ്വയം സാക്ഷ്യപ്പെടുത്തി നടപ്പാക്കുന്നവർക്ക് അപേക്ഷ നൽകിയാൽ 5-ആം ദിവസം മുതൽ നിർമ്മാണം ആരംഭിക്കാനുള്ള സ്വാതന്ത്ര്യമാണ് ഭേദഗതിയിലൂടെ ലഭ്യമാകുന്നത്. ജോലിഭാരം കൊണ്ട് നട്ടം തിരിയുന്ന ഉദ്യോഗസ്ഥ സുഹൃത്തുക്കൾക്കും ഈ ഭേദഗതി ആശ്വാസകരമായിരിക്കും.

ചട്ട ഭേദഗതികളുടെ വിവരം വിശദമായി നൽകുന്നതിനുള്ള എളിയ പരിശ്രമം ഞാൻ നടത്തിയിട്ടുണ്ട്. നിയമം നടപ്പാക്കുന്നവർക്ക് ഭേദഗതികളുടെ വിവരം കൃത്യമായി അറിയുന്നത് തങ്ങളുടെ കർത്തവ്യം യഥാവിധി നടപ്പാക്കുവാൻ സഹായകരമാകും എന്നാണ് എന്റെ അനുഭവം .

2020-ലെ ഭേദഗതികൾക്ക് നീല നിറമാണ് നൽകിയിട്ടുള്ളത്.

2021-ലെ ഭേദഗതികൾ തിരിച്ചറിയുന്നതിന് പച്ചനിറം നൽകിയിട്ടുണ്ട്.

ചുവപ്പ് നിറത്തിലുള്ള അടയാളപ്പെടുത്തലുകൾ ശ്രദ്ധയാകർഷിക്കുന്നതിന് നൽകിയിട്ടുള്ളതാണ്. അവയുടെ വിവരവും അടിക്കുറിപ്പായി ചേർത്തിട്ടുണ്ട്.

ഈ പ്രസിദ്ധീകരണത്തിൽ തെറ്റുകളും ഒഴിവാക്കുകളും പരമാവധി ഇല്ലാതാക്കുവാൻ ഞാൻ ശ്രമിച്ചിട്ടുണ്ട്. എന്നാൽ സുഗമമായി ഗ്രഹിക്കുന്നതിന് ഗുണകരമാകുമെന്ന് ഞാൻ കരുതുന്ന ചില ചെറിയ തെറ്റുകൾ അടിക്കുറിപ്പോടെ ഇതിൽ ചേർത്തിട്ടുണ്ട്. അവ ശ്രദ്ധാപൂർവ്വം മനസ്സിലാക്കി ഉചിതമായ തുടർ നടപടികൾ ഏവയും സ്വീകരിക്കുമല്ലോ.

ഇതിലെ കുറവുകളും തെറ്റുകളും എന്നെ അറിയിക്കണമെന്ന വിനീതമായ അഭ്യർത്ഥനയോടെ ഇതു സമർപ്പിച്ചു കൊള്ളുന്നു...

മുത്താലപുരം
07.07.2021

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2023 ലെ ഭേദഗതികൾ....

5G നെറ്റ്‌വർക്കിന്റെ ഉപയോഗം പ്രോത്സാഹിപ്പിക്കുന്നതിനുള്ള സർക്കാരിന്റെ നയത്തിന്റെ ഭാഗമായി, ടെലികമ്മ്യൂണിക്കേഷൻ ടവറുകൾ സ്ഥാപിക്കൽ, ടെലികമ്മ്യൂണിക്കേഷൻ പോൾ ഘടനകൾ, അനുബന്ധ മുറികൾ എന്നിവ സ്ഥാപിക്കുന്നതിന് മുൻകൂർ അനുമതി നൽകുന്നതിനുള്ള വ്യവസ്ഥകളിൽ മാറ്റം ആവശ്യമാണ് എന്ന കാഴ്ചപ്പാടോടെ അവയുടെ നിർമ്മാണം സംബന്ധിച്ച് മുൻകൂറായി അറിയിപ്പു നൽകി അനുമതിക്കു കാത്തു നിൽക്കാതെ നിർമ്മാണം ആരംഭിക്കുവാൻ കഴിയുന്ന വ്യവസ്ഥകളാണ് 2023-ലെ ഭേദഗതി ചട്ടങ്ങളിൽ ഉൾപ്പെടുത്തുകയുള്ളത്.

മുൻകാലങ്ങളിലെ പാലേ ഭേദഗതികൾ യഥാസ്ഥാനത്ത് ഉൾപ്പെടുത്തി ഇതു സമർപ്പിക്കുന്നു.

2023-ലെ ഭേദഗതികൾ തിരിച്ചറിയുന്നതിന് അവയ്ക്ക് പച്ചനിറം നൽകിയിട്ടുണ്ട്.

മറ്റു ഭേദഗതികൾ നീല നിറത്തിലാണ് നൽകിയിട്ടുള്ളത്.

ഔദ്യോഗിക തിരക്കുകൾക്കിടയിലും ഇത് തയ്യാറാക്കുവാൻ എനിക്ക് പ്രചോദനമായത് ഇതിന്റെ പ്രയോക്താക്കളും ഗുണഭോക്താക്കളും നൽകുന്ന കലവറയില്ലാത്ത പ്രോത്സാഹനമാണ്. ഇൻഫർമേഷൻ കേരളാ മിഷനിലെ എന്റെ പ്രിയ സഹപ്രവർത്തകരുടെ പിന്തുണയും സഹകരണവും ഈ അവസരത്തിൽ നന്ദി പൂർവ്വം സ്മരിക്കുന്നു. ഇതിൽ തെറ്റുകളും കുറവുകളും ശ്രദ്ധയിൽ പെട്ടാൽ അറിയിക്കുവാൻ സന്മനസ്സുണ്ടാകണമെന്ന് അഭ്യർത്ഥിക്കുന്നു.

മുത്തോലപുരം
27. 01 .2023

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KERALA MUNICIPALITY BUILDING RULES,2019

(Notified as SRO 828 / 2019

and amended by [SRO 639/2020](#), [SRO 483/2021](#) & [100/2023](#))

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KERALA MUNICIPALITY BUILDING RULES, 2019

(Notified as **SRO 828/2019** and amended by **SRO 639/2020**, **SRO 483/2021**, **100/2023**)

*All amendments are incorporated at its appropriate places**

S. R. O. No. 829/2019In exercise of the powers conferred by sections 381, 382, 387, 398 and 406 read with section 565 of the Kerala Municipality Act, 1994 (20 of 1994) and in supersession of the Kerala municipality Building Rules, 1999 issued under G.O. (Ms.) No 188/99 LSGDated 1st October, 1999 and published as S.R.O. No. 777/99 in Kerala Gazette Extraordinary No. 1786 dated 1st October, 1999, the Government of Kerala hereby make the following rules, namely:—

CHAPTER I

DEFINITIONS

1. Short title, applicability and commencement.-(1) These rules may be called the Kerala Municipality Building Rules, 2019.

(2)They shall apply to area under all Municipalities in the State.

(3)They shall come into force at once.

2. Definitions- (1) In these rules, unless the context other wise requires,-

(a)'access' means a clear approach to a plot or a building;

(b)'accessory building' means a building separated from the main building on a plot, and containing one or more accessory uses;

(c)'accessory use' means any use of the premises, subordinate to the principal use, and customarily incidental to the principal use;

(d)'Act' means the Kerala Municipality Act, 1994 (20 of1994);

(e)'advertising sign' means any surface or structure with characters, letters or illustrations applied thereto and displayed in any manner whatsoever outdoors for the purpose of advertising or giving information or to attract the public to any place, person, public performance, article, or merchandise, and which surface or structure is attached to, forms part of, or is connected with any building, or is fixed to a tree or to the ground or to any pole, screen, fence or hoarding or displayed in space, or in or over any water body.

(f)'alteration' means a structural change, such as an addition to the area or height, or addition of floor / floors or mezzanine floors within any existing floor height or change of existing floor or changing the roof to concrete slab or reconstruction of existing walls or construction of concrete beam and columns amounting to structural change or construction of internal walls for sub dividing the existing rooms with the intention of changing the use of rooms which amounts to change in occupancy group of the building under these rules or closing of any required means of ingress or egress to the building;

(g)'apartment' means a building, accommodating more than two dwelling units for residential purpose. This word is synonymous to 'residential flat'.

(h)'appendix' means the appendix to these rules;

(i)'approved plan' means the set of drawings and statements submitted under these rules for obtaining development permit or building permit and duly approved by theSecretary. ⁰¹[It also includes self certified building permit along with the acknowledgment by the Secretary];

(j)'assembly building' means a building or a floor or part of a floor of a building used for gathering of persons for the purposes of amusement, deliberation or entertainment but does not include ⁰²[multiplex complexes.]

01.Inserted by SRO no. 483/2021w.e.f.29.06.2021

02.Substituted for the words 'multiplexes' by SRO no. 639/2020 w.e.f.01.10.2020.

(k) 'balcony' means a horizontal projection, including a hand rail, or balustrade to serve as passage or sitting out place.

(l) 'Basement floor' means any lower storey of a building partially or fully below the lowest contiguous proposed ground level provided that, the part of such storey above ground level shall not exceed ⁰³[120 centimeters from the highest proposed ground level]. This word is synonymous with 'cellar'.

(m) 'bathroom' means a room or cubicle for bathing;

(n) 'building' means any structure for whatsoever purpose and of whatsoever materials constructed and every part thereof whether used for human habitation or not and includes foundation, plinth, walls, floors, roofs, chimneys, plumbing and building services, fixed platforms, verandah, balcony, cornice or projection, part of a building or anything affixed thereto or any wall enclosing or intended to enclose any land or space and signs and outdoor display structures, tanks constructed or fixed for storage of chemicals in any form and for storage of water, effluent ⁰⁴[xxx]etc.,

(o) 'building line' means the line up to which the plinth of a building adjoining a street or an extension of a street or a future street may lawfully extend. It includes the lines prescribed, if any, in any town planning scheme in force in the area beyond which no portion of the building may extend except as prescribed in these rules. The building line may change from time to time as decided by the authority.

(p) 'Built- up area' means the total area covered by the building at all floor levels. It shall also include area of mezzanine floor, galleries, barsati and pent house at terrace level;

(q) 'Category –I Village Panchayat' means a Village Panchayat notified as Category I Village Panchayat by the Government ⁰⁵[under sub-rule (6) of rule 3 of the Kerala Panchayat Building Rules, 2019];

'Category –II Village Panchayat' means a Village Panchayat notified as Category—II Village Panchayat by the Government ⁰⁵[under sub-rule (6) of rule 3 of the Kerala Panchayat Building Rules, 2019];

(r) 'ceiling' means the internal roof/lining of any room; in case there is no such lining, the roof membrane shall constitute the ceiling;

(s) 'Chief Town Planner' means the Chief Town Planner to the Government of Kerala;

(t) 'chimney' means an upright shaft containing and encasing one or more flues;

(u) 'cladding' means those components of a building which are exposed to the outdoor and indoor environment and are intended to provide protection against wind, vapor and heat;

(v) 'connected load' means sum of the maximum amount of wattage that is allocated to all applicants or owner of a building or part of a building, who have sought electricity connection for the completed buildings or part thereof;

(w) 'contract demand' means the demand (load in terms of KVA) based on the requirement between the building owner and power supplier;

(x) 'conversion' means the change from one occupancy to another occupancy or any change in building structure or part thereof resulting in a change of space and use requiring additional occupancy certificate.

(y) 'corner plot' means a plot abutting two or more intersecting streets.

(z) 'corridor' means an exit serving as a passageway communicating with separate rooms or with different parts of a building or with different buildings;

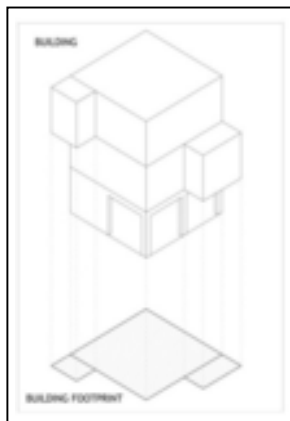
(aa) 'Covered area' means the ground area covered by the building and is synonymous to area of the building foot print. It shall include covered parking. It does not include the spaces covered by:-

03.Substituted for the words '75 centimetres' by SRO no. 639/2020 w.e.f.01.10.2020.

04.Omitted the words 'swimming pools, ponds' by SRO no. 639/2020 w.e.f.01.10.2020.

05. Substituted for the words 'under sub-rule (5) of rule 3' by SRO no. 639/2020 w.e.f.01.10.2020

- (i) Garden, rockery, well and well structures, plant, nursery, water tank, swimming pool (if uncovered), platform around a tree, tank, fountain bench and like:
- (ii) drainage, culvert, conduit, catch pit, gully pit, drainage chamber, gutter and the like:
- (iii) flight of steps and ramps all open to sky, cantilevered car porch, compound wall, gate, slide, swing, areas covered by sunshade and the like.
- (iv) storeys fully below the ground level



(ab) 'coverage' means the percentage of covered area with respect to the plot area.

(ac) 'Cul-de-sac' means a street with dead end having adequate maneuvering space facility for vehicles.

(ad) 'Developer' means any individual or group of individuals or any firm (by whatever name called) who undertakes any building activity including construction, reconstruction, repairs, additions or alterations of buildings or development or redevelopment of land on behalf of the owner or by himself who has obtained permit under the provisions of these rule, through an agreement executed between them.

(ae) 'development of land' means any material change on the use of land other than for agricultural purpose brought about or intended to be brought about by filling up of the land or changing from the existing former use of the land, layout of streets and foot paths, provision of water supply, sewerage, drainage, electrification, landscaping, sub-division of land for residential plots or for other uses including layout of internal streets, developing parks, play grounds and social amenities of the like, but does not include legal partitioning of family property among heirs.

(af) 'Development plan' means the plan(s)/scheme(s) to any area under Town and Country Planning legislation in force in the state (This word is synonymous with Town Planning schemes);

(ag) 'double frontage plot' means plot having a frontage on the two streets other than a corner plot;

(ah) 'drain' means a sewer, pipe, ditch, channel and any other device for carrying of sewage, offensive matter, polluted water, sullage, waste water, rain water or sub-soil water and any ejectors, compressed air mains, sealed sewage mains and special machinery or apparatus for raising, collecting, expelling or removing sewage or offensive matter to the sewage out fall;

(ai) 'drainage' means the removal of any liquid by a system constructed for the purpose;

(aj) 'dwelling' means a building or a portion thereof which is designed or used wholly or principally for residential purposes;

(ak) 'dwelling unit' means a room or suites of rooms designed and intended for habitation by an individual or household in which facilities for cooking may or may not be provided;

(al) 'escalator' means a moving staircase consisting of an endlessly circulating belt of steps driven by a motor which conveys people between floors of a building;

(am) 'exit' means a passage, channel or means of egress from any building, storey or floor to a street or other open space of safety;

(an) 'external wall' means an outer wall of a building; it also means a wall abutting on an interior open space of any building;

(ao) 'factory' means any premises including the precincts thereof used or proposed to be used for any purpose as defined under the Factories Act, 1948 (Act 63 of 1948) and which comes under the purview of the said Act;

(ap) 'family' means a group of individuals normally related in blood or connected by marriage living together as a single house-keeping unit and having common kitchen arrangements; customary resident domestic servants shall be considered as adjunct to the term 'family';

(aq) 'floor' means the lower surface in a storey on which one normally walks in a building. The general term 'floor' unless otherwise specifically mentioned, shall not refer to a mezzanine floor;

*Note:-*The sequential number of floor shall be determined by its relative position with respect to the Ground floor. The floors above the ground floor shall be called in sequence as First floor, Second floor, Third floor etc with number increasing upwards and the floors below the ground floor shall be called in sequence as Basement floor-1, Basement floor-2, Basement floor-3 etc with number increasing downwards.

⁰⁶[(aqa) 'total floor area' means the built-up area of a building excluding the following:

- (i) Towers, turrets, domes etc. projecting above the terrace;
- (ii) Fifty per cent of the area in the case of verandahs and balconies with at least one of its sides open (other than parapets) to exterior or interior open spaces;
- (iii) Open platforms and terraces at ground floor and porches;
- (iv) Plinth offsets (if the offset does not exceed 5cm) and projection of columns;
- (v) Vertical sun breakers or box louvers, architectural bands, cornices etc.;
- (vi) Area of loft, mandatory area used for parking of vehicles within a building, area of electrical room, pump room, gas bank, battery room for solar plant, room for air-conditioning plant, generator room, internal sanitary shafts, air conditioning ducts. However area occupied by lift shall be included in any one floor.]

⁰⁷[(ar) 'floor space index (F.S.I.)' means the quotient obtained by dividing the total floor area by the area of the plot. (This word is synonymous with FAR)

$$F.S.I. = \frac{\text{Total floor area}}{\text{Plot area}};$$

(as) 'flue' means a confined space or a duct for the outflow of smoke and waste gases produced by a fire, a gas heater, other fuel burning installation any product of combustion or resulting from the operation of any heat producing appliance or equipment employing solid, liquid or gaseous fuel;

(at) 'frontage' means side or part of a side of a plot which abuts a street;

06.Clause (aqa) inserted by SRO no.639/2020 w.e.f.01.10.2020.

07.Clause (ar) substituted by SRO no. 639/2020 w.e.f.01.10.2020.Prior to substitution it read as

'(ar) 'floor space index (F.S.I.)' means the quotient obtained by dividing the total built up area by the area of the plot.(This word is synonymous with FAR)

$F.S.I. = \frac{\text{Total built-up area}}{\text{Plot area}}$

(au) 'front yard' means an open space extending laterally along the front side (main entrance side of ground floor) of a building and forming part of the plot;

Note: - Where more than one entrances to a building are provided at the ground floor, the entrance giving access to the major portion of the ground floor shall be considered as the main entrance;

(av) 'gallery' means an intermediate floor or platform projecting from a wall of an auditorium or a hall providing extra floor area, additional seating accommodation, etc.;

(aw) 'garage' means a building or portion thereof, used or intended to be used for the shelter, storage or repair of any mechanically propelled vehicle;

(ax) 'Government' means the Central or State Government.;

(ay) 'Government Approved Private Information Technology Building' means any Information Technology Building constructed in the private sector and approved by the Information Technology Department of Government of Kerala, which does not fall under the category of Government Approved Private Information Technology Park and Government Owned Information Technology Park;

(az) 'Government Approved Private Information Technology Park' means any Information Technology Park promoted by a private entity, which is approved by the Information Technology Department of Government of Kerala;

(ba) 'Government Owned Information Technology Park' means any Information Technology Park promoted by an entity of the State Government or Central Government, which is approved by the Information Technology Department of Government of Kerala;

(bb) 'Green building' means the one which uses less water, optimises energy efficiency, conserves natural resources, generate less waste and provide healthier spaces for occupants, as compared to a conventional building as specified by Indian Green Building Council;

(bc) 'Ground floor' means:

- (i) the lowest floor of a building in the case of the building without basement floor(s) and;
- (ii) the floor above the uppermost basement floor, in the case of building with basement floor(s).

(bd)'habitable room' means a room occupied or designed for occupancy by one or more persons for study, prayer, living, sleeping, eating, kitchen if it is used as dining room, but not including bathrooms, water-closet compartments, laundries, serving and storage pantries, corridors, attics and spaces that are not used frequently or during extended periods.;

(be)'head room' means the clear vertical distance measured from the finished floor surface to the finished ceiling surface; where a finished ceiling is not provided, the underside of the joists or beams or tie beams shall determine the upper point of measurement;

(bf) 'height of building' means the vertical distance measured from the average proposed ground level contiguous to the building;

- (i) in the case of flat roofs, to the highest point of the flat roof;
- (ii) in the case of pitched roofs and gabled roofs, to the midpoint between the eaves level and the ridge;
- (iii) in the case of domed roofs, to the highest point of the dome;

provided that architectural features appurtenant roof structures like staircase tower, overhead tanks, air-conditioning plant rooms, lift rooms, cellular telecommunication equipments, tower structures, ^{07A}[cabin for telecommunication towers or telecommunication pole structures] chimneys, rooftop helipad, open swimming pools, parapet walls and similar roof structures other than pent houses shall not be included in the height of the building.

Note:- for arriving at the average proposed ground level, the average of the lowest proposed ground level and the highest proposed ground level contiguous to the building shall be taken.

(bg) 'height of room' means the vertical distance between the floor and the lowest point excluding beam and column on the ceiling of the room;

(bh) 'hut' means any building constructed principally of wood, mud, leaves, grass, thatch or such easily perishable material;

^{07B}[(bha) 'In-building solution' (IBS) means a telecommunication solution in buildings which is used to extend and distribute the cellular signals of telecom operators within a building to provide high quality and seamless connectivity.]

(bi) 'Information Technology Building' means a building occupied by industries, any other business establishments, whose functional activities are in the field of Information Technology, Information Technology Enabled Services (IT/ITES) and Communications Technology of the total built up area in such buildings, at least 70% of the area should be earmarked for this purpose and the remaining may be utilized for supporting activities like restaurants, food courts, meeting rooms, guest houses, recreational facilities;

(bj) 'Information Technology Park' means an integrated township, which may contain Information Technology Buildings, as well as other buildings. The Information Technology Buildings in the Information Technology Park shall be constructed for the purpose of carrying out the activities set out in clause (bi) for Information Technology Buildings and the remaining buildings in the Information Technology Park are meant to play a complimentary role, supporting the activities in the Information Technology Buildings. In the Information Technology Park, 70% of the land area is to be set aside for the construction of Information Technology Buildings and the remaining land area may be utilised for all the supporting activities. The buildings for the supporting activities may include residential buildings, recreational facilities, educational facilities, convention centres, hospitals, hotels and other social infrastructure meant to support the activities in the Information Technology Buildings and Information Technology Parks;

(bk) 'interior plot' means a plot, access to which is by a passage from a street whether such passage forms part of the plot or not;

(bl) 'Certified Energy Auditor (Building)' means a person who fulfills the eligibility criteria specified in the Energy Conservation (Minimum qualification for Energy Auditors and Energy Managers) Rules, 2006 and has qualified National Examination for Energy Conservation Building Codes Compliance;

However, till the conduct of Certification of Certified Energy Auditor (Building) through National Examination for Energy Conservation Building Codes Compliance, the status quo Stated in Para 3. Initiation of Construction, in the Kerala State ECBC, 2017 shall be complied with;

(bm) 'lift well' means the unobstructed space within an enclosure provided for the vertical movement of the lift car and any counter weight including the lift pit and the space for top clearance;

07A.Inserted by SRO no.101/2023 w.e.f.17.01.2023.

07B.Clause (bha) inserted by SRO no.101/2023 w.e.f. 17.01.2023.

(bn) 'loft' means a residual space in a pitched roof, or any similar residual space, above normal floor level without any direct staircase leading to it which may be constructed or adopted for storage purposes;

⁰⁸[(bna) 'low risk buildings' include residential buildings under Group A1 occupancy, with built up area of less than three hundred square meters and height less than seven meters and limited to two storeys, hostel, orphanage, dormetry, old age home, seminary under Group A2 occupancy having built up area less than two hundred square meters, educational buildings under Group B occupancy having built up area less than two hundred square meters, Group D occupancy buildings where persons congregate for religious and patriotic purposes having built up area less than two hundred square meters, Group F occupancy buildings having built up area less than one hundred square meters, Group G1 occupancy buildings without any nuisance and not dangerous and having built up area less than one hundred square meters.]

(bo) 'mechanised parking' include, parking and retrieval of vehicles by mechanical means;

(bp) 'mezzanine floor' means an intermediate floor in any storey overhanging and overlooking a floor beneath;

(bq) 'multiple occupancy building' means any building which accommodates more than one occupancy other than Group G2, Group I and Group J as per these rules;

(br) 'municipality' means Municipal Corporation, Municipal Council or Town Panchayat constituted under section 4 of the Act.

⁰⁹[(bra) 'notified road' means any road notified by the Corporation / Municipality or Government.]

(bs) 'occupancy group' means the principal occupancy for which a plot, a building or a part of a building is used or intended to be used; for the purposes of classification of a plot or building according to occupancy, an occupancy shall be deemed to include the subsidiary occupancies which are contingent upon it;

(bt) 'open space' means an area, forming an integral part of the plot, left open to the sky;

(bu) 'operational construction' means a construction whether to be temporary or permanent which is necessary for the operation, maintenance, development or execution of any of the services essential to the life of the community as declared by the Central or State Government from time to time;

(bv) 'owner' in respect of land or building, means the person who receives the rent for the use of the land or building or would be entitled to do so if they were let and includes, -

- (i) an agent or trustee who receives such rent on behalf of the owner or is connected with any building devoted to religious or charitable purpose;
- (ii) a receiver, executor or administrator or a manager appointed by any court of competent jurisdiction to have the charge of or to exercise the rights of the owner;
- (iii) mortgagee in possession; and
- (iv) a lessee in possession;

(bw) 'parapet' means a low wall not more than 1.2 m in height built along the edge of a roof or a floor;

(bx) 'parking building' or 'parking plaza' means an independent building used exclusively for off-street car parking;

(by) 'parking space' means an area enclosed or unenclosed, sufficient in size to park vehicles, together with a driveway connecting the parking space with a street and permitting ingress and egress of vehicles;

(bz) 'passage way' means a means of access;

08.Clause (bna) inserted by SRO no.483/2021 w.e.f.29.06.2021

09.Clause (bra) inserted by SRO no.639/2020 w.e.f.01.10.2020.

(ca) 'pathway' means an approach constructed with materials, such as bricks, concrete, stone, asphalt or the like;

(cb) 'permit' means a permission or authorisation in writing by the Secretary to carry out work;

(cc) 'Persons with disability'¹⁰[/Differently-abled] means, persons with disability as defined in clause*(t) of section 2 of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (1of 1996);

(cd) 'plinth' means the portion of a structure between the surface of the surrounding ground and surface of the floor, first above the ground;

(ce) 'plinth area' means area of the building at the plinth level, and shall not include the area of open porch (not enclosed by wall), uncovered staircase;

¹¹[(cea) 'Plinth level inspection' is defined as the inspection at site as prescribed when the construction reaches at the plinth level. In the case of pile foundation this inspection is done at the stage where, pile cap is completed. Plinth level inspection shall be carried out for low risk buildings.]

(cf) 'plot' means a parcel or piece of land enclosed by definite boundaries as described in the document in support of ownership of the plot;

(cg) 'plot area' means the area of the land as per the records of the revenue authorities as authenticated by a possession certificate, land tax receipt issued by the Village Officer;

(ch) 'plot depth' means the mean horizontal distance between the front and rear plot boundaries;

¹²[(cha) 'Podium' means a horizontal projection (platform) extending beyond building on one or more sides up to a limit of 16 meters from the average ground level];

^{12A}[(chb) 'Pole' means an installation of a structure below 12m (anything above 12m may be treated as tower).]

(ci) 'porch' means a canopy supported on pillars or otherwise and used for the purpose of pedestrian or vehicular approach to a building;

(cj) 'rear yard' means the open space extending laterally along the rear side of the plot and forming part of the plot; any side yard can be interchanged with rear yard.

(ck) 're-development of land' means re-developing an already developed land.;

(cl)'Registered Institution /Architect/Engineer/Town Planner/Supervisor' means an Institution/Architect/Engineer/Town Planner/Supervisor registered or deemed to have been registered as such under these rules;

(cm) 'road' means any highway, street, lane, pathway, alley, passageway, footway or bridge whether a thoroughfare or not, over which the public have a right of passage or access uninterruptedly for a specified period; whether existing or proposed in a Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016);

(cn) 'road level' means the officially established elevation of the centre line of the road upon which a plot abuts and if there is no officially established elevation, the existing elevation of the centre line of the road;

(co) 'road width' shall be the minimum existing width of the road at any point;

(cp) 'row buildings' means buildings in a row with only front and rear open spaces with or without interior open spaces.;

10. Inserted by SRO no.639/2020 w.e.f.01.10.2020.

* Seen as (1) in the official gazette SRO no.829/2019 dtd.02.11.2019. May be read as '(t)' as per section 2 of the mentioned Act.

11. Clause (cea) inserted by SRO no.483/2021 w.e.f. 29.06.2021

12. Clause (cha) inserted by SRO no.639/2020 w.e.f.01.10.2020.

12A. Clause (chb) inserted by SRO no.100/2023 w.e.f.17.01.2023.

(cq) 'Secretary' means the Secretary of a Municipal Corporation, Municipal Council or Town Panchayat;

(cr) 'Section' means a Section in the Act;

(cs) 'Security Zone' means any area, identified and delineated by the Home Department of the state government as Security Zone from time to time and notified and published in government gazette by the Local Self Government Department. For the purpose of these rules, any area around compounds or sites which accommodate vital or strategic installations, offices, residences, institutions, landmarks, jail compounds, monuments, ports, shipyards, scientific and advanced research centres and the like, which in the opinion of the government, needs special security and necessitates regulations and/or restrictions for constructions and land developments around, can be delineated as security zone.;

¹³[(csa) 'Self Certification' means self certification issued jointly by the owner of the building and the empanelled licensee to the effect that, the building plan and site plan for the construction or reconstruction of the low risk buildings, are in accordance with the provisions of the Act and rules, for the time being in force, and any lawful direction issued, any stipulation as to the standard of specifications, laws, rules and directions.]

(ct) 'service lane' means a lane provided at the rear or side of a plot for service purposes;

(cu) 'service station' means a place where washing, cleaning and oiling of automobile is done without any repairing;

(cv) 'set back line' means a prescribed building line drawn with reference to the ¹⁴[xxx] boundary of a street, on the street side of which nothing can be erected or re- erected except compoundwall;

(cw) 'sewage drain' means a drain used or constructed to be used for conveying solid or liquid waste matter, excremental or otherwise to a sewer;

(cx) 'shop' means a building or part of a building where articles or goods of any kind are ordinarily sold. It shall not include a workshop;

(cy) 'side yard' means an open space extending laterally between any side of a building and the boundary of the plot facing that side other than front and rear yard and forming part of the plot; any side yard can be interchanged with rear yard;

(cz) 'site' means a plot and its surrounding precincts;

(da) 'stair cover' means cabin - like structure with a covering roof over a staircase and its landing built to enclose only the stairs for the purpose of providing protection from weather and not used for human habitation. It is synonymous with stair cabin or staircase room;

(db) 'stall' means any structure other than a hut used solely for the display and sale of goods;

(dc) 'storey' means the portion of a building included between the surface of any floor and the surface of the floor next above it, or if there be no floor above it, then the space between any floor and the ceiling next above it;

(dd) 'street' means a private or a public path giving access to more than one plot or building;

(de) 'street level' means the level at the centre line of the street (df) 'street line' means the line defining the side limits of a street;

(dg) 'structure' means anything that is built or constructed or building of any kind or any piece of work artificially built up or composed of parts joined together in some definite manner. The term structure includes 'building';

13.Clause (csa) inserted by SRO no.483/2021 w.e.f. 29.06.2021

14.Omitted the words 'central line or' by SRO no.639/2020 w.e.f.01.10.2020

(dh) 'sunshade' or 'weather shade' means a sloping or horizontal structural overhang usually provided over openings on external walls to provide protection from sun and rain;

^{14A}[(dha) 'Telecommunication Tower' means a vertical structure for installation of antenna(e) that provide radio frequency air interface for telecommunication services.]

(di) 'tenement' means part of a building intended or used or likely to be used as a dwelling unit;

(dj) 'to erect' means-

(i) to erect a new building on any site whether previously built up or not;

(ii) to re-erect any building of which portions above the plinth level have been pulled down or destroyed and;

(iii) conversion from one occupancy to another;

(dk) 'travel distance' means the distance an occupant has to travel to reach an exit;

(dl) 'unconnected latrine' means a latrine not connected to the public sewer system, it may be connected to a septic tank;

(dm) 'unsafe building' means building which is structurally unsafe, insanitary or not provided with adequate means of egress or which constitute a fire hazard or are otherwise dangerous to human life or which in relation to existing use constitute a hazard to safety or health or public welfare, by reason of inadequate maintenance, dilapidation or abandonment;

(dn) 'use group' means the principal use for which a plot, a building or part of a building is used or intended to be used;

(do) 'verandah' means a covered area with at least one side open to the outside with the exception of parapet, trellis, jelly or grill work on the open side;

(dp) 'warehouse' means a building, the whole or substantial part of which is used or intended to be used for the storage of goods whether for keeping or for sale or for any similar purposes but does not include a store room attached and used for the proper functioning of a shop;

(dq) 'water closet' or 'WC' means a latrine with arrangement for flushing the pan with water but does not include a bathroom;

(dr) 'water course' means an artificial or natural drainage canal;

(ds) 'width of street' means the right of way and includes carriageway, footpath, service roads, flyovers, medians, road side drains, street furniture, wayside plants/trees and the like.

(dt) 'yard' means an open space at ground level between a building and the adjoining boundary lines of the plot unoccupied and unobstructed except by encroachment of structures specially permitted by these rules on the same plot with a building. All yard measurements shall be the minimum distance between the front, rear and side yard plot boundaries, as the case may be, and the nearest point of the building including enclosed porches; every part of a yard shall be accessible from every part of the same yard.

(2) Words and expressions used, but not defined in these rules, but defined in the Kerala Municipality Act, 1994 (20 of 1994) shall have the same meaning assigned to them in that Act.

3. Applicability-These rules shall apply to:-

(1) any public or private building as described below, namely:-

(a) where a building is newly erected, these rules shall apply to the designs and construction of the building;

14A. Clause (dha) inserted by SRO no.101/2023 w.e.f.17.01.2023.

(b) where the building is altered, these rules shall apply to the altered portion of the building;

(c) where the occupancy or use of building is changed, these rules shall apply to all the parts of the building affected by the change;

(d) where addition or extension is made to a building, these rules shall apply to the addition or extension only,

Provided that, for calculation of Floor Space Index, coverage, required off street parking area to be provided and width of access to the plot as well as minimum width of the street giving access to the plot from the main street, the whole building existing to be retained and proposed shall be taken into account;

Provided further that the addition, extension or new building shall be permitted only if the site and existing buildings are authorised.

(2) All lands which are proposed to be developed or redeveloped for construction of buildings.

(3) Provisions in the Master Plan, Detailed Town Planning Scheme etc. shall prevail:- Notwithstanding anything contained in these rules, provisions or regulations in any Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016) shall prevail over the respective provisions of these rules wherever such Plan/ Scheme/ Order exist.

(4) Power of the Government to relax the provisions of these rules in certain cases:- The Government may, in conformity with the provisions of the Act and in consultation with the Chief Town Planner, relax any building from the provisions of these rules, when construction is made—

- (a) by Government/Local Self Government Institutions or Government Institutions for a public purpose,
- (b) by co-operative societies, which were set up and functioning with the Government share and financial assistance and which come under Group B Education and/or Group C Medical/Hospital occupancies as provided in rule 25 of these rules exclusively for a Government purpose. By any individual or organisation for construction of aided- schools.
- (c) by any individual, group of individuals or corporate body in parcels of land left behind after surrendering to the state government or the local self government concerned free of cost for a public purpose with prior approval of the state government.

¹⁵[(d) the Government shall grant additional FSI or any other incentive by way of relaxation in these rules as deem fit for programs, schemes and projects meant for slum improvement and redevelopment projects, affordable housing for weaker section and poor, market redevelopment and relocation, construction of public infrastructure like road, water supply, sewage and effluent treatment, waste management open spaces and greening, conservation measures, climate change mitigation, renewable energy, municipal common civic infrastructure, public transport including multilevel parking structures, rainwater harvesting, disaster managementetc.

(e) in case of road widening and/or creation of any facility as prescribed in clause (d) above in accordance with any published/sanctioned ¹⁶[Detailed Town Planning Scheme] or master plan, or under any programme of Government or local body, the FSI permissible for abutting plots shall be based on the size of the plot without deducting the area required for such road widening or creation of any public facility.

15.Clauses (d),(e) and Note inserted by SRO no.639/2020 w.e.f.01.10.2020

16.Substituted for the words 'District Town Planning Scheme' by SRO no.483/2021 w.e.f. 29.06.2021

The restrictions related to number of floors, coverage and height shall be waived in such case in order to avail the full FSI available on the original plot size.

Note:—The entitlement for full FSI utilization shall be available only for those plots, part of which is acquired or reserved or surrendered for creation of public facilities.]

(5)Power of Government to exempt buildings – The Government may in conformity with the provisions of the Act and in consultation with the Chief Town Planner exempt any building from the operation of all or any of the provisions of these rules, subject to conditions, if any, to be stipulated in the order, granting such exemptions;

Provided that such exemption shall be considered on individual application as per criteria stipulated in Appendix M. The application form in Appendix N for exemption shall be forwarded to the Government through the Chief Town Planner with their remarks.

Provided further that such exemption shall be considered only if the individual application for exemption from these rules is forwarded to the Government along with a chalan receipt remitting the application fee in Government Treasury as decided by Government from time to time.

CHAPTER II

DRAWINGS, PERMITS AND OCCUPANCY CERTIFICATES

4. Essentiality of permit-(1) No person shall develop or redevelop any parcel of land by subdividing into plots or cause the same to be done without first obtaining a permit for each such development or redevelopment from the Secretary.

¹⁷[(2) No person shall construct or reconstruct or make addition or extension or alteration to any building or cause the same to be done without first obtaining a building permit from the Secretary and in the case of low risk building without obtaining an Acknowledgement Receipt which shall be deemed to be a permit from the Secretary;]

(3) No person shall change the occupancy of an existing building from one group to another, without first obtaining the permit from the Secretary.

5. Application for development / building permit-(1) Every person other than a Central or State Government Department who intends to:-

(a) develop or redevelop any parcel of land by subdividing into plots shall apply in writing to the Secretary in the form in Appendix A3 and /or

(b) construct or reconstruct a building or make alteration or addition or extension or change in occupancy to a building shall apply in writing to the Secretary in the form in Appendix - A1; and

¹⁸[(c) to construct or reconstruct a ** building or make alteration or addition or extension or change in occupancy may file an application to the Secretary for approval of building site and for permission to execute the work with self certification in Form in Appendix A1A along with documents as specified in rule 19A,]

such application shall be accompanied by plans and statements in ¹⁹[triplicate] as per these rules along with documents to prove the ownership of the land concerned such as title deed proving the ownership of the applicant, land tax receipt issued by the village office and the possession certificate issued by the village office and payment of application fee as specified in Schedule I, along with a copy of certificate of registration of the Institution, Architect, Building Designer, Engineer, Town Planner or Supervisor, as the case may be, who has prepared and signed the plans, drawings and statements. The applicant shall submit the details of Court cases, if any, pertaining to the land. In case of a Joint Venture development, the agreement between the land owner and the developer shall also be produced.

(2) Applications may also be submitted through e-filing system, as may be prescribed, if such system is in force in the Local Self Government institution concerned and, the Secretary may receive, process and issue necessary orders on the application through e-filing system.

(3) In the case of any development or redevelopment of land and/or construction or reconstruction of a building or alteration or addition or extension or change in occupancy to a building by Central or State Government Department, the officer authorized shall, before thirty days of commencement of the work, submit to the Secretary a set of layout plan or plans of the proposed plot subdivisions and/or, a set of plans of the proposed building, as the case may be, together with all other details with a certificate duly signed by the Chief Architect or the Engineer- in- charge of the works to the effect that the plans are in conformity with the provisions of these rules in all respects including conformity to any Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), prepared for the area. In such cases approvals from Chief Town Planner or District Town Planner, as the case may be, and permit from the Secretary as per these rules are not required.

17. Sub-rule (2) substituted by SRO no. SRO no.483/2021 w.e.f. 29.06.2021. Prior to substitution it read as 'No person shall construct or reconstruct or make addition or extension or alteration to any building or cause the same to be done without first obtaining a building permit for each such work from the Secretary.'

18. Clause (c) inserted by SRO no.483/2021 w.e.f. 29.06.2021. ** The words 'low risk' are missing in the official publication.

19. Substituted for the word 'duplicate' by SRO no. 639/2020 w..e.f.01.10.2020.

(4) In the following cases the Secretary shall obtain, if not produced by the applicant, after receiving the application for permit / written information from the applicant, whether it is Central Government, State Government, autonomous bodies, Quasi- governmental agencies, local self-government institutions, Co-operative Societies, Devaswom boards, private parties etc., a written consent/ concurrence/ NOC from the officer/ authority concerned before issuing the permit. The applicant may directly obtain NOC/Permission, if any required, from organizations and submit along with the application for permit.

Sl.no.	Location/ Use of the site and or building	Officer/ authority
1	Proposed building is within 10m from Defence Establishment or Proposed high rise buildings within 500m from Defence Establishment or Telecommunication towers within 200m from Defence establishment or as per notification issued by Defence establishment from time to time.	Officer in charge of the Defence establishment
2	Proposed buildings within 30m from Railway track boundary or Telecommunication towers within 100m from Railway track boundary.	Railway Authority concerned
3	Proposed site/buildings in areas declared, identified or advised by ²⁰ [The Art and Heritage Commission] as possessing heritage value.	²⁰ [The Art and Heritage Commission]
4	Proposed buildings within any Security Zone	District Collector
5	Proposed buildings/places for religious purpose or worship	²¹ [Municipality]
6	Proposed fuel filling stations	District Collector
7	Proposed crematoria or burning and burial grounds including cemetery and vaults	District Collector
8	Proposed site/buildings in any area notified by the Government of India as a coastal regulation zone under the Environment Protection Act, 1986 (Central Act 29 of 1986) and rules made there under.	Kerala Coastal Zone Management Authority (KCZMA)
9	Any activity as specified in the schedule to the Notification No. S.O. 1533(E) dated the 14 th September, 2006 and as amended from time to time, issued by the Ministry of Environment and Forests, Government of India	State Level Environment Impact Assessment Authority (SEIAA) / Ministry of Environment and Forests
10	As per prevailing statutes of the Kerala State Pollution Control Board.	Kerala State Pollution Control Board
11	Proposed traffic terminal stations like mobility hubs, bus stands or inter-state bus terminals	Chief Town Planner
12	i. All buildings under Group A1,A2,B,C,E,F,G1,G2 and H occupancy exceeding 1000 sqm of built-up area or exceeding 15 m of height ii. All buildings under Group D, I and J occupancy irrespective of the number of storeys.	Director of Department of Fire and Rescue Services or an officer authorized by him in this regard to the effect that the construction of the building conforms to the fire and safety norms specified in part 4 Fire and Life Safety of National Building Code of India, 2016 and subsequent amendments. ²² [Provisions regarding the height of the building as specified in the National Building code of India 2016 shall not apply to multiplex complexes]
13	All buildings under Group A1, A2, B, C, E, F, G1, G2 and H occupancy exceeding 300 sqm and below 1000 sqm of built-up area, as also in the case of buildings not exceeding 15 m height.	A self-declaration in the form in Appendix- L from the applicant along with a certificate from the architect/engineer, who had prepared the plan, to the effect that the construction of the building conforms to the fire and safety norms specified in part 4 Fire and Life Safety of National Building Code of India, 2016 and subsequent amendments. Also, a copy of the self declaration form and certificate of the architect/ engineer shall be submitted to the nearest Fire Station ²² [for information].
14	Proposed buildings within 20km vicinity from Airport Reference Point (ARP) and/or as per the colour coded zoning map approved for each airport and/or all buildings having elevation more than 150m from ground level	Airport Authority of India (AAI)

20. Substituted for the word 'The Kerala Urban Arts Commission' by SRO no.628/2020 w.e.f.01.10.2020.

21. Substituted for the words 'District Collector' by SRO no.483/2021 w.e.f. 29.06.2021.

22. Inserted by SRO no.628/2020 w.e.f.01.10.2020.

Sl.no.	Location/ Use of the site and or building	Officer/ authority
15	Proposed single storeyed buildings below the Electrical line and if clearance not available as per rule 22 (5) Table 2 and for installation of transformers	Chief Electrical Inspector / an Officer authorized by him in this regard.
16	Any activity within 300 metre distance from any protected monument/area notified by the Archaeological Survey of India	Archaeological Survey of India
17	Buildings of various occupancies as mentioned in Table 11 of these rules	District Town Planner/ Chief Town Planner concerned, if required
18	Proposed site/ building forms part of any Town Planning Scheme for the area	District Town Planner/ Chief Town Planner concerned, if required

Provided that, the required permission/No Objection Certificate of any other Departments/Agencies as required under law may also be obtained for any land developments or constructions.

Provided that the Secretary shall issue permit for Single family residential buildings upto 300 m² of build up area coming under Coastal Regulation Zone, in accordance with the provisions of the relevant Coastal Regulation Zone notification inforce.

Provided further that, such officer/authority concerned shall furnish his reply within fifteen days from the date of receipt of the consultation letter, if such establishment has any objection to the proposed work. The objection, if any, raised by the officer within the said fifteen days shall be duly considered by the Secretary before issuing permit. All these are subjected to amendments of the relevant Acts ²³[Rules] from time to time.

In cases where final remarks are not received within the said fifteen days from the Officer or Railway Authority as in sub-rule (4), the Secretary may delay final decision in the application for permit, if any interim reply is received from the Officer/Railway Authority concerned. ²⁴[xxx].

Note: (i) In the case of all livestock and poultry farms under group G1 or G2 occupancies, and vaults and burial grounds under Group I occupancy, certificate of approval from the Director of Department of Fire and Rescue Services is not necessary.

(ii) Applications for renovation without involving additional built-up area or structural alterations of existing buildings for religious purpose or places of worship can be considered by the Secretary after informing the District Collector in Form in Appendix-I duly filled by the applicant and verified by the Secretary.

- (5) (1) Any new building under any of the following occupancies as provided under rule 25 of these rules, having a connected load of 100 kW or greater, or a contract demand of 120 kVA or greater, or having air-conditioned area of 500 sqm. or greater, require the compliance of the provisions of Kerala State Energy Conservation Building Code:-

Group A2:Lodging Houses & Special Residential,

Group B:Educational,

Group C: Medical / Hospital,

Group D:Assembly,

Group E:Offices/Business,

Group F: Mercantile/Commercial and

Group H:Storage,

²⁵[Group J: Multiplex Complex]

(2) Along with the application for building permit submitted to the Local Self Government Institution concerned for issuing building permit, the applicant shall submit the forms mentioned in the Kerala State Energy Conservation Building Code Rules, notified by Kerala Government.

Provided that a copy of the above said documents, with certification from a certified Energy Auditor (Building) shall be submitted simultaneously to the State Designated Agency, who shall scrutinize the same and intimate any non- compliance to the applicant and to the Local Self Government Institution concerned within thirty days of receipt.

23.Inserted by SRO no.639/2020 w.e.f.01.10.2020.

24.Omitted the words'Provided that provisions regarding the height of the building as specified in the National Building Code of India 2016 shall not apply to multiplexes'by SRO no.639/2020 w.e.f.01.10.2020.

25.Inserted by SRO no.639/2020 w.e.f.01.10.2020.

If any noncompliance has been pointed out by the State Designated Agency, the Local Self Government Institution shall get a further certificate of rectification from the applicant through the certified Energy Auditor (Building) before issuing the building ²⁶[occupancy certificate] as per schedule, section 3 of Kerala State Energy Conservation Building Code (KSECBC).

(6) Layout of buildings and/or usage of plots/concurrence;-

(1) While issuing approval for plot sub division lay outs or usage of plot and/or layout of buildings, the District Town Planner or Chief Town Planner as the case may be, shall consider the following aspects.

(a) Usage of Plot: Usage of plot shall be governed by the provisions of the Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016) prevailing in the area. In the absence of such a plan / scheme / order, approval for usage of the plot is determined in consideration of the following:

- (i) The surrounding developments
- (ii) Availability of infrastructure facilities
- (iii) Physical aspects of the plot
- (iv) Impact on the surrounding area

(b) Layout of Building: Approval for layout of building(s) is determined in consideration of the following:

- (i) Access to the plot and building
- (ii) Alignment of the internal roads
- (iii) General setting of the building
- (iv) Parking arrangements and maneuverability
- (v) Aspects related to FAR and Coverage
- (vi) Different uses within building
- (vii) Provisions of the Master Plan / Detailed Town Planning Scheme/ Interim Development Order, if any, in force under the Kerala Town and Country Planning, Act, 2016 (9 of 2016).

(c) Concurrence : Concurrence shall be governed by the provisions of the Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016) prevailing in the area considering the following aspects and suggest conditions with respect to the following.

- (i) The surrounding developments
- (ii) Availability of infrastructure facilities
- (iii) Physical aspects of the plot
- (iv) Impact on the surrounding area

(2) Application for Layout approval and Usage of plot/Concurrence shall be submitted in the form in Appendix-A4 along with scrutiny fee as per Schedule III

(3) Such approval from District Town Planner or Chief Town Planner, as the case may be, may specify conditions with due consideration to various planning aspects pertaining to the particular development/construction and local developments and there may also be additional conditions not specified in these rules;

Provided that these conditions so specified shall not in any form be interpreted to relax the provisions of these rules;

Provided further that, before the approval of the site and plans and issue of permit, the Secretary shall ensure that the application, drawings and specifications conform to the provisions of these rules and other applicable statutes and the conditions, if any, stipulated by Chief Town Planner or District Town Planner, as the case may be.

26.Substituted for the words 'completion certificate' by SRO no. 639/2020 w.e.f.01.10.2020.

(4) For any deviation without change in occupancy and upto 5% of the total built up area in the plan approved by the District Town Planner / Chief Town Planner for layout of buildings and usage of plot as per these rules, but limited to 500 sqm. without change in occupancy, revised approval from the District Town Planner/ Chief Town Planner is not necessary. However, if there are serious deviations from such approved plan, fresh approvals shall be obtained from the Chief Town Planner or District Town Planner as the case may be.

(5) Approval / Rejection /any other communication of layout and/or usage of plot shall be intimated to the applicant in writing within one month in the case of District Town Planner and within two months in the case of Chief Town Planner.

6. Plans to be submitted- (1) An application for a development permit shall be accompanied by atleast 3 copies of site plan, service plan and key map together with details and specifications as prescribed in these rules.

(2) An application for building permit shall be accompanied by atleast 3 copies of site plan, service plan, key map, building plan, safety plan in case of high rise buildings, parking plan wherever the building requires parking space as per these rules, together with details and specifications as prescribed in these rules.

(3) All plans submitted shall include the name, address and signature of the land owner, applicant and registered Institution/Architect/ Engineer/ Town Planner/ Supervisor. Also, the plans have to be certified by the registered Architect/ Engineer/ Town Planner/ Supervisor as given in Appendix J1.

(4) Site Plan;-

(a) The site plan shall be drawn to a scale of not less than 1:400, fully dimensioned and shall show:

(i) boundaries of the plot intended for the proposed construction and any contiguous land belonging to the same owner including the revenue details like survey number with sub division, block, village, taluk, extent of plot etc.

(ii) the number of the nearest building and electric post and the position of the site in relation to the neighboring street and its main access;

(iii) the name of such street, if any; street levels and its width, which shall be the width in between the plot boundaries on the opposite sides;

(iv) shall clearly show the setbacks of all existing and proposed buildings within the plot and also show all existing and proposed buildings above or below the ground level with their uses, appurtenant structures, proposed finished ground levels and authorised building numbers of the existing buildings within the plot issued by the Municipality;

(v) consolidated statement of the plot area, covered area and floor wise and use wise built-up area of both existing and proposed buildings including that of accessory buildings, Floor Space index and Coverage.

(vi) all existing and proposed streets or foot - paths within the plot with its width to scale:

(vii) the area and location of any land within the plot that is undevelopable such as rocky outcrops, steep terrains, marshes, water bodies, puramboke land etc;

(viii) the area and location of any land within the plot that is not proposed to be developed or redeveloped and any land that is proposed to be reclaimed;

(ix) the area and location of any paddy fields and/or other agricultural land that are proposed to be reclaimed and /or converted for the said development or re-development;

(x) the position of external toilets, cattle sheds, stables, wells and other appurtenant structures; and

(xi) the north direction, predominant wind direction in relation to the site and any other relevant information of the plot not specifically mentioned, but may be required by the Secretary.

(xii) topographic contours (with contour intervals not greater than 1.5 metre to show the features of the plot clearly) of the site if required by the Secretary / District Town Planning Office.

(xiii) All existing natural streams/drains within the plot, if any

(xiv) World Geodetic System (WGS -84) coordinates (latitude and longitude) of the site and elevation of the top most point of the building with respect to mean sea level, if the plot falls within the Colour Coded Zone Map (CCZM) prepared by the Airport Authority of India and/or for buildings with elevation more than 150m as per Aircraft Act, 1994. (Central Act XXII of 1934)

Provided that when circumstances are such as to make a smaller plan necessary or sufficient, the plan may be drawn to a scale of 1: 800 if acceptable by the Secretary.

(b) In the case of site plan for plot sub division layouts, in addition to items in (a) above, the following details shall also be furnished:-

(i) the layout of cul-de-sac, streets or foot-paths within, adjoining or terminating at the site, existing and/or proposed to be widened or newly aligned;

(ii) the proposed plot subdivision, and the area and use of each sub division there of;

(iii) the access to each plot subdivision;

(iv) the layout of any service road or foot path and public parking spaces proposed or existing, if any;

(5) Key map:-The site plan shall be accompanied by a key map giving full details of the location of the site with reference to north direction, all adjacent streets, junctions, premises and landmarks.

(6) Service Plan:-The service plan shall be drawn to a scale not less than that of the site plan, and shall show:-

(i) the proposed plot sub-division, if any, and the uses of such sub-division;

(ii) the layout of existing and proposed water supply, electricity, drainage and sewerage main lines from or to which connections are proposed to be given with dimensions and specifications;

(iii) the layout of existing and proposed water supply, electricity, drainage and sewerage lines within the plot, with dimensions, specifications and description of installation;

(iv) any other relevant information not specifically mentioned but may be required by the Secretary; and

(v) the north direction and predominant wind direction in relation to the site.

^{26A}[(vi) any in-building service infrastructure to be provided in connection with Telecommunication / internet, along with required specifications (in consultation with, and certified by a Credible Telecom Networking hardware-consultant).]

(7) Building Plan:- The plans, elevations and sectional elevations in the building plan accompanying the application shall be accurately drawn to a scale of not less than 1: 100, fully dimensioned and shall,-

(i) include floor plans of all floors together with consolidated statement on the plot area, covered area and floor wise and use wise built-up area, including that of accessory buildings, if any, and such drawings shall clearly indicate the sizes and spacing of all framing members, size of rooms, levels of each floor, position of staircases, travel distance between staircases, ramps and lift wells;

(ii) show the use or occupancy of all parts of the buildings;

26A. Clause (vi) inserted by SRO no.100/2023 w.e.f.17.01.2023.

- (iii) show the exact location of essential services like water closets, sink and bath;
- (iv) include sectional drawings showing the lowest ground level contiguous to the building, highest ground level contiguous to the building, level of each floor, abutting road level, the height of rooms, building and parapet, thickness and spacing of structural members, floor slabs and roof and details of staircase.
- (v) show all street elevations;
- (vi) give dimensions of the projections, if any;
- (vii) include a terrace plan indicating the drainage and the slope of there of;
- (viii) show the direction of north line relative to the plan of the building; and
- (ix) specify total and floor wise builtup area of the building
- (x) specify, in the case of Group G1 or G2 industrial occupancy and Group I hazardous occupancy, wherever applicable;
 - (a) power used in H.P.
 - (b) number of workers
 - (c) raw materials used
 - (d) flow chart indicating the process
 - (e) details of waste generated
 - (f) details and methods of disposal of waste.
- ^{26B}[(xi) include provisions of in-building solutions, with details of properly demarcated sections within buildings and on roof tops for housing broadband / digital connectivity infrastructure / antenna.]

(8) Parking Plan:-Parking plan shall be drawn to a scale not less than that of the site plan, in cases where parking is to be provided as per these rules, and shall show clearly parking spaces, width and slope of drive-ways/ ramps and maneuvering spaces, parking space for differently abled persons, visitors parking, loading and unloading spaces etc. along with consolidated statement on calculation of parking requirements, as per these rules.

(9) Safety Plan:-In the case of highrise buildings, every application for approval shall be accompanied by a safety plan suitable for the proposed construction duly certified by the Architect / Licensee/ Engineer that it is in accordance with the Health and Safety Manual published by the Labour Department.

(10) In the case of High rise building the suggestions in the guidelines on use of Glass in buildings-Human safety, 2015 shall be adhered to wherever glass is extensively used in building.

(11) Plan showing surrounding developments: - In the case of applications which need approval of usage of plot and/or layout of building(s) from the District Town Planner/ Chief Town Planner as per these rules and/or as per the provisions of any Town Planning Schemes, a sketch shall also be provided showing surrounding developments approximately within 50 metres from the boundary of the plot indicating:

- (i) distance from plot boundary, use and number of storeys of buildings and details of other developments, if any;
- (ii) vacant land, agricultural land, water bodies and other features;
- (iii) any other relevant information not specifically mentioned, but may be required by the Secretary/ District Town Planner/ Chief Town Planner.

(12) The minimum size of the paper on which all plans are drawn shall not be less than 297 mm X 420 mm or A3.

26B. Clause (vi) inserted by SRO no.100/2023 w.e.f.17.01.2023.

(13) The plans accompanying the application shall have the colour scheme as specified in Table 1 and shall be indicated in the legend in the plans.

TABLE 1
COLOUR SCHEME

Sl.No.	Item	Notational colouring
1	Plot line	Thick black line
2	Street (existing)	Brown line
3	Street (proposed)	Brown dotted line
4	Permissible building line	Thick black dotted line
5	Building(Existing)	Black outline
6	Building (proposed to be demolished)	Yellow hatching
7	Building (proposed)	Red outline
8	Drainage sewerage work	Red dotted line
9	Water supply works	Black dot and dash line
10	Electric line	Green line
^{26C} [11]	Telecom Infrastructure Line	Blue]

(14) All plans, drawings and specifications shall be certified and signed by a registered Institution or Architect or Engineer or Town Planner or Supervisor or Building Designer, registered as provided for in these rules, as well as the applicant.

(15) If the plot is owned by more than one person, the application shall be submitted jointly and signed by all the persons or by legally authorized representatives of such persons, if any.

(16) If the application is for construction or reconstruction of a single building or block of buildings in more than one adjoining plots owned by different persons, or to make addition or extension or alteration to such building, the application shall be submitted jointly and signed by all the persons or by legally authorized representatives of such persons, if any.

(17) The Secretary shall, after considering the application, plans and drawings and other documents, issue development permit in the form in Appendix B1 or building permit in the form in Appendix B2, as the case maybe.

7. Certain operational constructions by Government to be exempted from these rules- The operational constructions of the Central or State Government, whether temporary or permanent which is necessary for the operation, maintenance, development or execution of any of the following services shall be exempted from these rules, namely:-

- (a) Railway;
- (b) National Highway;
- (c) National Waterways;
- (d) Major Ports;
- (e) Airways and Aerodromes;
- (f) Posts and telegraph, telephones, wireless, broadcasting and other like forms of communications;
- (g) Roads, bridges, street furniture, toll plazas and wayside amenities by the Central Government, State Government and/or Local Self Government;
- (h) Waterway amenities like boat jetties and other waterside facilities for transportation by the Central Government, State Government and/or Local Self Government;
- (i) Regional grid forelectricity;
- (j) Any other service which the State Government may, if it is of opinion that the operation, maintenance, development or execution of such service is essential to the life of the community, by notification, declare to be a service for the purpose of this clause:

Provided that the following constructions by the services do not come under the purview of operational constructions, namely: -

- (i) New residential colonies, new residential buildings (other than temporary shelters which are used for essential operational quarters for limited essential operational staff and the like)
- (ii) roads and drains in railway colonies, community halls, hospitals, clubs, all type of

educational institutions and offices, shopping complexes, railway mail service offices, parcel offices;and

(ii) Post offices, other type of office of Posts and Telegraphs Department, residential colonies.

8. Permit not necessary for certain works- Notwithstanding anything contained in these rules, no building permit shall be necessary for executing the following works which do not otherwise violate any provisions regarding general building requirements, structural stability and fire safety requirements of these rules,namely:-

- (i) Providing or removing of windows or doors orventilators;
- (ii) Providing inter-communicationdoors;
- (iii) Providing or removing of partitions without any structuralalteration;
- (iv) Gardening excluding any permanentstructures;
- (v) White or colorwashing;
- (vi) Painting;
- (vii) Petty repairs to the building and pitchedroof;
- (viii) Plastering and patchwork;
- (ix) Interior decoration without any structural alterations;and
- (x) Changing of the location of the building or construction within the plot;
- (xi) Compound wall not abutting a public street;

²⁷[(xii) Livestock building for keeping not more than 20 cows, 50 goats and poultry farms for keeping not more than 1000 birds. For these constructions, 1.5 metre clear open space shall be provided all around the building/structure. Bio gas plant or gober gas plant shall be provided for these constructions.

(xiii) Mechanical Parking Structures; For height of the structure up to 10 metres, it shall be provided with minimum 1 metre open space all around the structure. For height exceeding 10 metres, it shall be provided with minimum 1.5 metre open space all around the structure.

(xiv) Electric Vehicle battery charging stations.]

^{27A}[(xvii) Telecommunication tower or telecommunication pole structures or accessory rooms whereas an intimation shall be submitted to the Secretary as per Chapter XVIII of these rules.]

Provided that the changing of the location under item (x) shall be incorporated in the completion plan.

Provided that, except in cases as specified in rule 5(6)(3), if the change in location under item (x) above, is in deviation from any approvals, concurrences etc. obtained from any of the agencies/authorities concerned, other than that obtained from the Municipality, as per these rules or bye laws made under the Act and any other law, such approval, concurrences etc. shall be obtainedafresh.

9. Approval of site and plans and issue of permit- (1) On receipt of the application with the supporting documents attached thereto, the Secretary or the officer duly authorised by the Secretary shall issue an acknowledgement to the applicant on the same day and inform the applicant whether any No Objection certificate required from other authorities is /are not attached with theapplication.

(2) The Secretary shall, after inspection of the site and verification of the site plan and documents, if convinced of the bonafides of the ownership of the site, and that the site plan, drawings and specifications conform to the site and the provisions of these rules or bylaws made under the Act

27.Inserted by SRO no.639/2020 w.e.f.01.10.2020.

27A. Inserted by SRO no.101/2023 w.e.f.17.01.2023.

and any other law, approve the site and site plan and record a certificate to that effect in the site plan as given in Appendix J2. The online inspection report shall be submitted within 48 hours of receipt of application for building permit.

(3) The Secretary shall, after approving the site and site plan, verify whether the building plan, elevation and sectional elevation of the building and specifications of the work conform to the site and site plan, and is in accordance with these rules and bye laws made under the Act or any other law, approve the plan and issue permit to execute the work.

(4) Approval of site and plans shall be intimated to the applicant in writing and the permit as in Appendix B2 shall be issued on remittance of the permit fee at the rates specified in Schedule II and submission of revised or modified plans, if approved with modifications or conditions.

(5) If after inspection of the site and verification of the plans and documents, Secretary decides to refuse approval, the same shall be communicated in writing specifying the reasons.

(6) Secretary shall, if modification to any plan, drawing or specification is required or any further document or plan or information is required or fresh plan is required under these rules for taking a decision, intimate the same to the applicant in writing within ten days from the date of receipt of such application or plan or document or information.

(7) Approval of site and plan shall take effect from the date of submission of the application and rules at the time of issue of permit shall be applicable.

10. Approval of site and plans and issue of permit where excavations to a depth of more than 1.5 metres is involved- (1) In the case of constructions/land developments which involve any earthwork excavation to a depth of more than 1.5 metres, if the depth of cutting is more than the horizontal distance of such cutting from the plot boundary, the following provisions shall apply:

Provided that, such provisions are not necessary in cases where such excavation is carried out for construction of structures such as wells, septic tank, recharge pits, drainage works, compound walls and the like.

(2) The application for development and/or building permit shall be submitted by the applicant as per the provisions of these rules, along with a certificate of the Institution, Architect, Building Designer, Engineer, Town Planner, Supervisor as the case may be, who has prepared and signed the plans, drawings, statements etc. as to whether permit as envisaged under rule 10 is required.

(3) The application for permit shall also include sufficient copies of:-

(i) dimensioned plan and sectional drawing showing the abutting road level, the levels and depths of cutting at all places in respect of excavations for building construction and land development works;

(ii) drawings, specifications and details of temporary and permanent protective measures proposed;

(iii) drawings, specifications and details of slabs, beams, columns, retaining walls etc. proposed at the ground floor level and below; and

(iv) details of piles if any, including their drawings, specifications, erection methods and the like.

(4) The Secretary shall issue permit as laid down in these rules:

Provided that, if any changes or deviations are to be made, it shall satisfy the provisions of these rules and the same shall be intimated to the Secretary with revised drawings, specifications and details as the case may be.

(5) Any written complaint received after the date of issue of the permit ²⁸[or self certified building permit] from owners or occupants in the adjoining properties on the actual or possible damages to their life and property shall be acted upon by the Secretary as per the provisions in this rule:

28. Inserted by SRO no.483/2021 w.e.f. 29.06.2021.

Provided that the work will not be stopped except under exceptional circumstances such as violation of approved plans and risk of danger to life and property.

(6) Once the earthworks and/or constructions upto the ground level are completed as per the approved plans, the applicant may in writing intimate the same to the Secretary and request for concurrence for carrying out rest of the works.

(7) The Secretary shall, if convinced that the works are carried out satisfactorily as per the permit(s) and provisions of this rule and no written complaint is received as in subrule (5), issue concurrence as in Appendix C for carrying out the remaining works above the ground level as per approved plans within 7 days after intimating the completion of works upto ground level:

Provided that, if no objection is raised by the Secretary within the said period to the construction carried out, the applicant may continue with the work above ground level as if concurrence has been given.

(8) If any complaint is received as in sub rule (5), the Secretary shall:

(i) refer the matter within 5 days to the Technical Expert Committee constituted as per subrule (12) and convene a meeting of the Committee;

(ii) intimate the nature of complaints to the applicant and call for details and explanation if so desired by the Committee;

(iii) arrange for site inspections, hearing of the applicants and/or petitioners, verification of records and arrange for tests if so required by the Committee; and

(iv) take up further action as per the recommendations of the Committee.

(9) The applicant and/or the petitioner shall attend the hearing and shall also produce any details called for within the time specified, if so required by the Committee or the Secretary on its behalf.

(10) The Committee shall evaluate the damages and fix the compensation and/or suggest further protective measures, if any, to be taken by the applicant to solve the issues raised by the petitioner. The amount of compensation shall include the actual cost of restoration as decided by the Committee and an additional 30% as solatium:

Provided that the process of the Committee shall be completed within a total duration of 3 weeks.

(11) Concurrence shall be issued by the Secretary, after ensuring that the protective measures are carried out to the satisfaction of the Committee and the compensation is paid by the applicant as per the decision of the Committee. The actual expenses of the Committee as intimated by the Secretary shall be paid by the applicant.

(12) For the purpose of this rule, Government may, constitute Municipal level Technical Expert Committee(s) comprising of Secretary (convener), Municipal Engineer / Town Planning Officer and two experts; one each in Structural Engineering and Geotechnical Engineering (to be nominated by Government) to assess the damage, suggest protective measures and fix the compensation.

11. Grounds on which approval of site or permission to construct or reconstruct building may be rejected- Any application made under these rules shall be rejected by the Secretary if the application is not in compliance with these rules or any other relevant statutes in force. The Secretary shall specify the grounds for rejection in the order rejecting the application.

The grounds on which approval of site for construction or reconstruction of a building or permission to construct or reconstruct a building shall be refused are the following; namely:-

(i) that the work or use of the site for the work or any particulars comprised in the site plan, building plan etc., elevations, sectional elevation, or specifications would contravene provisions of any law or order, rule, declaration or bye law made under such law;

(ii) that the application for such permission does not contain the particulars or is not prepared in the manner required by these rules or bye law made under the Act;

(iii) that any of the documents required to be signed by a registered Institution, Architect, Building Designer, Engineer, Town Planner or Supervisor and/or the owner /applicant as required under the Act or these rules or bye laws made under the Act has not been signed by such Institution, Architect, Building Designer, Engineer, Town Planner or Supervisor and/or the owner/applicant;

(iv) that any information or document or certificate required by the Secretary under these rules or bye laws made under the Act has not been duly furnished;

(v) that the owner of the land has not laid down and made street or streets or road or roads giving access to the site or sites connecting with an existing public or private street while utilizing, selling or leasing out or otherwise disposing of the land or any portion or portions of the same site for construction of building:

Provided that if the site abuts on any existing public or private street no such street or road shall be laid down or made;

(vi) that the proposed building would be an encroachment upon a land belonging to the Government or the Municipality;and

(vii) that the land is under acquisition proceedings.

12. Period within which approval or disapproval shall be intimated- The Secretary shall, within ²⁹[fifteen days] from the date of receipt of the application for approval of site plan, or any information or further information required under these rules or bye laws under the Act, by written order either approve or refuse to approve the site plan on any of the grounds mentioned in rule 11 and intimate the same to the applicant.

13. Period within which Secretary is to grant or refuse permission to execute work- The Secretary shall within ²⁹[fifteen days] from the date of receipt of an application for permission to execute any work or any information or document or further information or further document required under these rules or bye laws made under the Act, by written order either grant or refuse to grant such permission on any of the grounds mentioned in rule 11 and intimate the same to the applicant:

³⁰[xxx]

14. Reference to Council where the Secretary delays to grant or refuse or approve permit- (1) The Council shall, if the Secretary, neither approves nor disapproves a building site, neither gives nor refuses permission to execute any work within ²⁹[fifteen days] from the date of receipt of the application, on the written request of the applicant, be bound to determine whether such approval or permission should be given or not.

(2) Where the Council does not, within thirty days from the date of receipt of such written request, determine whether such approval or permission should be given or not, such approval or permission shall be deemed to have been given, and the applicant may proceed to execute work, but not so as to contravene any provision of the Act or these rules or bye-laws made thereunder:

Provided that such execution of work shall be considered as duly permitted and not one for regularization and permit shall be issued as per rules even if the work has been commenced, being carried on or completed if it otherwise complies with rule provisions.

(3) On the expiry of ³¹[forty five days] from the date of valid applications the applicant shall submit a letter stating that he is commencing the work of the building / structure ^{31A}[xxx] applied for as provided in the original applications as per Rules, specifying the date of commencement.

All Secretaries of Local Self Government Institutions shall acknowledge the receipt of the letter stated in the above paragraph with stamp and date on the same day on the duplicate copy of the letter. This shall be a deemed permission along with the acknowledgment of original application submitted.

29. Substituted for the words 'thirty days' by SRO no.483/2021 w.e.f. 29.06.2021.

30. Substituted for the words 'sixty clear days' by SRO no.483/2021 w.e.f. 29.06.2021.

31. Proviso omitted by SRO no. 639/2020 w.e.f.01.10.2020 .Prior to omission it read as 'Provided that the said thirty days shall not begin to run until the site has been approved under rule 12'.

31A .The words 'telecommunication / mobile tower' Omitted by SRO no.100/2023 w.e.f 17.01.2023

15. Extension and renewal of period of permits- (1) A development permit or a building permit ³²[acknowledgment receipt which shall be deemed to be permit] issued under these rules shall be valid for five years from the date of issue.

(2) The Secretary shall, on application submitted within the valid period of the permit, grant extension once, for further period of five years: ³²[In the case of, acknowledgment certificate which shall be deemed to be permit the intention to extend the permit for another five years is to be intimated by a letter signed by the owner and empanelled licensee to the Secretary.]

Provided that, in case the permit needs to be extended beyond the period of ten years, the applicant shall submit an application in writing to the Committee constituted under Chapter IX of these Rules and the committee may, after having satisfied with the genuineness of the application, recommend for extension of period of the permit once, with or without condition(s) as it deems fit.

(3) The fee for extension of period of permits shall be ten percent of the building permit fee excluding the fee for additional Floor Space Index, in force at the time of granting extension:

Provided that, in case the period of permit is extended beyond a period of ten years from the date of issue of original permit, the fee for extension of period of permit shall be twice that of the permit fee excluding the fee for additional Floor Space Index, in force at the time of granting extension.

(4) The Secretary may, if he deems fit, grant renewal for a period of five years on application submitted after the expiry of the permit, subject to the condition that the total period of validity of permit from the date of issue of original permit shall not exceed ten years: ³²[In the case of, acknowledgment certificate which shall be deemed to be permit the intention to renew the same for another five years is to be intimated by a letter signed by the owner and empanelled licensee to the Secretary.]

Provided that, in case the permit needs to be renewed beyond the period of ten years, the applicant shall submit an application in writing to the Committee constituted under Chapter IX of these Rules, within three years from the date of expiry of the permit, and the Committee may, after having satisfied with the genuineness of the application, recommend for renewal of the permit once, with or without condition(s) as it deems fit.

(5) The fee for renewal of period of permit shall be fifty percent of the development permit fee, in force at the time of renewal:

Provided that, in case the period of permit is renewed beyond a period of ten years from the date of issue of original permit, the fee for renewal of period of permit shall be twice that of the permit fee, in force at the time of granting renewal.

(6) The application for extension or renewal of a development permit or a building permit shall be submitted in white paper, either typed or written in ink, specifying the name and address of the applicant, the number and date of issue of the permit, the stage of development or construction, if already commenced, together with application fee as provided in Schedule I.

(7) The application shall be affixed with necessary court fee stamp and shall contain the original of the permit and approved plan sought to be extended or renewed.

(8) The development work or construction work shall be commenced and completed within the valid period of the permit.

Note: - Non-commencement of any work within the period specified, if any, in a permit issued before the commencement of these rules shall not be considered as a ban for extension or renewal of permit.

(9) A development permit or a building permit issued under the Kerala Municipality Building Rules, 1999 including that under the orders of Government granting exemption from rule provisions, shall be extended or renewed, on proper application, on like terms and for like periods as a permit issued under these rules.

(10) In case the period of validity stipulated in permit issued before the commencement of these rules is different from that stipulated in subrule (1), then the extension or renewal of the permit shall be granted in such a way that the total valid period of the permit shall not exceed ten years.

³². Inserted by SRO no.483/2021 w.e.f. 29.06.2021.

(11) The application for extension or renewal of a development permit or a building permit shall be signed and submitted by the owner of the permit or his legal heir to whom the site devolves or legally authorized representative:

Provided that if the plot or a part of the plot concerned has been transferred, the application for extension or renewal of permit shall not be accepted and acted upon until provisions of rule 19 has been fully complied with.

16. Suspension and Revocation of permit-The Secretary shall suspend or revoke any permit issued under these rules if it is satisfied that the applicant has violated any provisions of the Act or rules or any conditions stipulated in the permit or that the construction is carried out in deviation of the approved plan or Town Planning scheme or that the permit was happened to be issued on misrepresentation of fact or law or that the construction, if carried on, will be a threat to life or property:

Provided that before revoking permit, the owner of the permit shall be given an opportunity to be heard and the same shall be duly considered by the Secretary.

Provided further that if the permit issued under these rules is revoked before the commencement of the building construction, then the additional fee for FAR remitted by the applicant, if any, shall be refunded to the applicant on request and the permit issued shall be canceled henceforth.

17. Duties and responsibilities of the owner or developer- (1) The granting of permit or the approval of the drawings and specifications or inspections made by the Secretary during the erection of the building or structure or digging of well shall not in any way relieve the owner of such building of the responsibility for carrying out the work in accordance with the requirement of these rules.

(2) Every owner/developer shall obtain relevant NOC/clearances required for the construction of building/ development of plot as per the applicable Acts, rules, law and amendments in force.

(3) Every owner or developer shall be responsible for the correctness of the measurements of plot shown in the drawings submitted and it shall not include any encroachment of other land.

(4) Every owner or developer shall submit details of the Court cases (Courts, Tribunal, Ombudsman etc.) if any pertaining to or of reference to the plot or construction therein.

(5) Every owner or developer shall,-

(a) permit the Secretary or any person authorized by the Secretary or by the Government for this purpose to enter the plot or building or premises at any time between 7 a.m. and 6 p.m. normally or at any other time as may be deemed necessary for the purpose of enforcing the rules

(b) submit a proof of ownership of the plot;

(c) obtain from the Secretary, sanction for any other allied matter connected with the development or redevelopment of land or construction or reconstruction or addition or alteration of building or change of occupancy of any building or part thereof.

(d) give notice to the Secretary of the intention to start work in form Appendix D;

(e) give written notice to the Secretary regarding completion /partial completion of work(s) in the form in Appendix E1 or Appendix E2, as the case may be; and

(f) obtain a development certificate from the Secretary prior to any sale or transaction of the plots subdivided as per these rules or building construction in such subdivided plots, as given in Appendix F1 or obtain an occupancy certificate from the Secretary prior to any occupancy of the building or part thereof, after construction or reconstruction or addition or alteration of the building or part thereof, or change of occupancy of any building or part thereof as given in Appendix F2.

(6) Every owner or developer shall, as soon as any development or redevelopment of land or construction or reconstruction or addition or alteration of building is completed, remove all rubbish,

refuse or debris of any description from the plot or plots on which such operation have been carried out or from any adjoining land which may have been used for depositing of materials and debris.

(7) Every owner or developer shall keep in safe custody the permit, approved plans and drawings and specifications and results of tests, if any on any material used for construction and shall keep a copy each of the same at the work site and produce before the Secretary or any officer authorized for inspection on demand.

(8) Every owner or developer shall display the permit number in the site in a visible place in a visible manner.

(9) Every owner or developer shall take adequate safety precautions at all stages of construction or reconstruction or addition or alteration or repair or demolition or removal of the various parts of the building for safeguarding the life of workers and public against hazards consequent on any aspects of the work.

(10) Every owner or developer shall ensure that all protective works carried out to safeguard the adjoining properties, during construction are sufficient and in good order to ensure safety.

(11) In the case of driven piles vibration is set up which may cause damage to adjoining structures or service lines depending on the nature of soil condition and the construction standard of such structures and service lines. Possible extent of all such damages shall be ascertained in advance, and operation and mode of driving shall be planned with appropriate measures to ensure safety. If, in the vicinity of a site where bored or driven piling works are to be carried out, there are old structures which are likely to be damaged, tell-tales shall be fixed on such structures to watch their behavior and timely precautions shall be taken against any undesirable effect.

(12) If the owner engages any developer(s) at any time for the construction, reconstruction, repairs, additions or alterations of buildings or development or redevelopment of land, the same shall be intimated to the Secretary within a week from the date of agreement (executed between the owner and the developer) along with a copy of such agreement by which the owner authorizes the developer to undertake construction, reconstruction, repairs, additions or alterations of building(s) or development or redevelopment of land in that plot, on behalf of the owner. The clause describing the financial terms between the owner and developer need not be disclosed.

(13) Every owner and developer shall include the following details as part of all advertisements through website pertaining to the building and/or land development:

- (a) name and address of the owner and developer;
- (b) number and date of layout approval and/or approval of usage of plot and layout of building wherever applicable;
- (c) number and date of the development permit and/or building permit;
- (d) name of the Local Self Government Institution issuing the permits;
- (e) date till which the building permit is valid;
- (f) number of floors permitted;
- (g) conditions if any stipulated in the permits;
- (h) following details shall be furnished as against the respective provisions of the rules;
 - (i) coverage and F.S.I. of the construction;
 - (ii) area of recreational space inside and outside the building in the case of apartments / flats under Group A1 occupancy;
 - (iii) number of parking spaces and loading and unloading spaces and area earmarked for such spaces;
 - (iv) minimum width of access to the site and building;

(i) any other occupancy other than Group A1 – Residential in the case of apartments/flats, with details of floor area of such occupancy;

(14) In the case of advertisements pertaining to building construction or land developments through visual – print media and hoardings, the owner or developer shall include the details mentioned in item (a) to (f) in sub-rule (13) and the address of the website carrying the details under sub-rule (13).

(15) The Secretary may also publish the details of the permits issued in the website of the Municipality as required under Section 517B (3) of the Kerala Municipality Act, 1994, (20 of 1994).

(16) If any such advertisements are made in contravention to sub-rules (13), (14) and (15) of this rule, the Secretary or the Government may interfere in the matter.

(17) Every owner or developer shall be responsible for the loss or injury caused to any person or property due to the lapse on his part to provide safety precautions or protective measures or safe guards.

(18) Sustainable Waste Management: - Every owner shall adhere to the measures to support Sustainable Waste Management adopted by the Municipality like waste collection from house to house, segregation at household level, providing separate wet and dry bins at the ground level, decentralized waste recycling / treatment / reuse etc.

(19) The owner of ECBC compliant building shall have full obligation and responsibility of carrying out the work on the commissioning of the said building in accordance with the requirements of Kerala State Energy Conservation Building Code (KSECBC). . Every owner shall select the Certified Energy Auditor (Building) registered with the Bureau of Energy Efficiency (BEE) for the building compliance check to be submitted to the State Designated Agency /Local Self Government Institution concerned, in whose jurisdiction the Kerala State Energy Conservation Building Code (KSECBC) compliant building is proposed to be erected, to help him to develop the building design, installation of materials and equipments to meet with the requirements of Kerala Energy Conservation (Building Code) Rules 2017.

The owner also shall;-

(a) engage Empanelled Energy Auditors (Building) in development of building design, installation of energy conservation measures and equipment to meet with the requirements of Kerala Energy Conservation (Building Code) Rules 2017 and ensure following, namely: -

(i) finalize the compliance approach relevant for his building project based on the complexity of the building, budget and time constraints;

(ii) finalize the energy conservation measures as per the Kerala State Energy Conservation Building Code as amended from time to time having regard to the location of the proposed building;

(iii) to integrate the energy conservation measures in the building design in accordance with the provisions of Kerala Energy Conservation (Building Code) Rules 2017;

(iv) that drawings, specifications and compliance forms are prepared and energy conservation measures are reflected in the building design documents and submitted to the authority having jurisdiction in compliance with the requirements of the rules accompanied by a certificate specifying the energy performance index ratio of the building by the Empanelled Energy Auditors (Building) that the documents are as per the requirement of Kerala Energy Conservation (Building Code) Rules 2017;

(v) notice is given within the validity of sanction to the authority having jurisdiction of his intention to start the construction work at the building site;

(vi) commence the work within the period specified by the authority having jurisdiction from the date of such notice or seek extension of time for starting the construction work, wherever necessary;

(vii) ensure that the designed energy conservation measures are deployed in the construction of the building and installation of its components and systems.

(b) permit the Empanelled Energy Auditors (Building) to enter the building or premises at any reasonable time for the purpose of inspection to ensure compliance of building works with rules and regulations under the Act;

(c) give written notice to the authority having jurisdiction intimating the completion of the construction work along with a certificate from the Empanelled Energy Auditors (Building) to the effect that-

(i) the construction of the building has been done in accordance with the sanction of the building permit;

(ii) all the energy conservation measures have been installed and inspected, and they meet the requirements of the Code and Kerala Energy Conservation (Building Code) Rules 2017;

(iii) the building design meet with the provisions of the Code and Kerala Energy Conservation (Building Code) Rules*;

(d) give written notice to the authority having jurisdiction as well as to the State designated agency in case of termination of the services of Empanelled Energy Auditors (Building) and appointment of other Empanelled Energy Auditors (Building) in its place;

(e) obtain an occupancy permit from the authority having jurisdiction prior to any occupancy of the building or part thereof after completion of the building;

(f) report the practical difficulties to the Empanelled Energy Auditors (Building), if any, in carrying out the provisions of Kerala Energy Conservation (Building Code) Rules 2017, who shall take necessary action in consultation with State designated agency and State Energy Conservation Building Code Implementation Committee;

(g) on the receipt of the notice, if any, from the authority having jurisdiction, he shall discontinue such usage within reasonable time as specified in such notice and in no case he shall disregard the provisions of Kerala Energy Conservation (Building Code) Rules 2017;

(h) where he proposes to alter the installation of any system or material or equipment on account of improving the energy efficiency of the building contrary to the system, material or equipment as indicated in the sanction plan he shall use or install such system or material or equipment after obtaining the necessary approval of the Empanelled Energy Auditors (Building):

Provided that it does not violate the spirit and intent of the provisions of Kerala Energy Conservation (Building Code) Rules 2017;

Provided further that such change shall not compromise with the building requirements namely, structural stability, safety, health or environmental provisions of Central laws and State laws applicable to the buildings covered under Kerala Energy Conservation (Building Code) Rules 2017.

³³[(20) The owner shall engage a licensee as per these rules. If the owner wishes to change the licensee before obtaining occupancy certificate, it shall be intimated to the Secretary in writing. Otherwise, the licensee who had certified the plans submitted for obtaining permit shall be deemed as the licensee for the proposed construction.]

18. Responsibilities and functions of registered Architects, etc- (1) Plans and drawings shall be prepared strictly in conformity with the provisions contained in the Act and the Rules, any direction issued by Government or Municipality, all applicable statutes and a certificate to that effect shall be recorded and signed in the plans and drawings.

(2) Every owner/developer shall obtain relevant NOC/clearances required for the construction of building/ development of plot as per the applicable Acts, rules, law and amendments in force.

(3) A certificate of verification of site shall be recorded and signed in the site plan.

*The figure '2017' is missing in the official publication.

33.Sub-rule (20) inserted by SRO no.639/2020 w.e.f.01.10.2020.

(4) Plans and drawings shall only be prepared after inspecting the site and convinced of the boundaries.

(5) Every building has to be designed incorporating all safety precautions and protective measures and shall be responsible for the loss or injury caused to any person or property due to the lapse on his part.

(6) The person issuing the certificate or affixing signature on the plan, drawing or specification shall be responsible for the correctness or truthfulness of the recording in the certificate or plan, drawings or specifications.

(7) The person ³⁴[furnishing] ³⁵[completion report] shall ensure that building construction/ land development is carried out in accordance with the approved plan.

(8) Function shall be restricted to the category on which registration is obtained.

(9) Any person violating the rules under this chapter shall be liable to action under sub-rules (10), (11) and (15).

(10) The Registering Authority may, on complaint by any person or on report from any Municipality or *suomotu* take action against any person registered, for violating any of the provisions under these rules. The Secretary shall **sent* a monthly report of all violations along with details to the Registering Authority.

(11) The Registering Authority may, if convinced on enquiry that the person against whom action has been taken under sub-rule (9) has violated any rule, provision or issued false certificate or recorded false information, suspend the registration for a period not exceeding one year or cancel the registration or disqualify him for future registration and the matter may be published in the website of the Government/Department:

Provided that before finalizing the decision, the person concerned shall be given sufficient opportunity to explain and the explanation, if any, submitted shall be duly considered by the Registering Authority.

(12) Any person aggrieved by the decision of the Registering Authority under sub-rule (10) may appeal to Government within 30 days from the date of receipt of the decision.

(13) The appeal shall be submitted in white paper stating the reasons thereof, typed or written in ink, affixed with necessary court fee stamp, along with copy of the order of Registering Authority.

(14) Government shall dispose of the appeal within 60 days, after hearing the appellant in person or by authorized representative.

(15) The registered Institution/ Architect / Engineer/ Town Planner etc. including the Developer if any, to whom License has been accorded by the registering authority concerned, are wholly and severally responsible for ensuring that the building is constructed as per the approved Building Plan. If any breach or laxity is found against them in this regard, action shall be taken against the licensed technical personnel concerned for black-listing and this would entail not only debarring them from practice in the entire State for 5 years, but also cancellation of their license besides being prosecuted under the relevant laws / code of conduct by the registering authority.

(16) In case of any firm applying for permit will be equally responsible as that of registered Institution/ Architect / Engineer/ Town Planner etc.

19. Transfer of plots to be intimated - (1) Every person holding development permit or building permit shall, unless the work has been executed in full and development or occupancy certificate obtained, inform the Secretary, every transfer of the whole or part of any property involved in the permit together with the name and address of the transferee and his intention to transfer or otherwise of the permit.

(2) Every person, in whose favour any property is transferred along with a development or building permit by the transferor, shall before commencing or continuing the work obtain permit of the Secretary in writing.

34. Substituted for the words 'issuing' by SRO no. 639/2020 w.e.f.01.10.2020

35. Substituted for the word 'completion certificate' by SRO no.628/2020 w.e.f.01.10.2020.

**'sent' in official publication. May be read as 'send'*

(3) The request for permission to commence or continue work shall be submitted in white paper along with documents, together with document regarding the ownership and possession certificate and fee of Rs.100.

(4) The Secretary shall, if convinced that the transfer will not in any way badly affect the development or construction, issue permission in writing, transferring the permit and allowing the commencement or continuation of work, within 15 days from the date of receipt of therequest.

(5) Permit issued becomes invalid if part of the plot included in the approved plan is transferred / sold to any other person.

³⁶**19A. Procedure for grant of acknowledgement certificate-**(1) In the case of low risk buildings application shall be submitted to the Secretary with the application fee and permit fee, along with self certification in Appendix A1A, self certified building permit in Appendix O along with the documents specified in sub-rule (1) of rule 5 of these rules.

(2) On receipt of the application in Appendix A1A under sub-rule (1) complete in all respects the Secretary shall within five working days issue an Acknowledgment Certificate in Appendix A1B.

(3) The applicant may commence construction from the date of commencement of construction mentioned in the self certified building plan in Appendix O. All plans submitted shall be certified by the empanelled licensee as given in Appendix J1.

(4) Clearances and NOCs from any authorities concerned required under these rules or any other relevant Act or Rules shall be submitted along with the application.

(5) Constructions which involve excavations to a depth of more than 1.5 metres are not eligible for acknowledgment receipt.

19B. Other conditions pertaining to self certification-(1) At any stage of construction of low risk buildings, if the empanelled licensee who issued self certified building plan, notices that such building is being constructed in violation of such building plan, empanelled licensee *as* intimate to the authority concerned regarding such violations and stop further supervision. The empanelled licensee shall submit complete details along with photographs of the building being constructed to the concerned authority;

(2) The Secretary shall immediately issue a notice to the owner on the basis of the intimation received from the empanelled licensee to suspend further work and rectify violations. In such cases the owner shall not make further additions in violation of the conditions. The owner may, after removal of violations, engage an empanelled licensee for preparing the revised drawings for obtaining revised self certified building permit. In such cases occupancy certificate shall be given only after scrutiny of revised self certified building plan and inspection of site;

(3) After submission of application or during the construction of building if there is change in the owner or the empanelled licensee, the person concerned shall intimate the Secretary in writing or through online building plan approval system that he is no longer responsible for the construction project from the date of receipt of the intimation. The information must be sent within seven days of occurrence of the change to the Secretary by the respective owner/ empanelled licensee. The construction work shall have to be suspended until the new owner / empanelled licensee, as the case may be, undertake the full responsibility of the project by submitting in writing to the Secretary intimating the same.

(4) Secretary or any other person authorized reserves the right to check the building plans and construction at any stage and violations, if found shall have to be rectified by the owner. In case the owner fail to rectify violations, the Secretary shall take necessary steps to rectify the violations.

19C. Issue of occupancy certificate- After the completion of the construction of the building as per the self certified permit, the occupancy certificate shall be issued in form Appendix F2A.

19D. Procedure for plinth level inspection for low risk buildings- In the case of Low risk buildings the empanelled licensee shall conduct plinth level inspection and shall submit the Inspection Report, in Appendix P to the Secretary. The Secretary or the officer authorized by him may offer remarks on Appendix P submitted by the empanelled licensee and inform the same along with the observed deviation or objection, if any, to the owner within five days from the date of receipt of such intimation. The following documents shall be submitted along with Appendix P:

36. Rules 19A to 19F inserted by SRO no.482 w.e.f. 29.06.2021

**May be read as 'shall'.*

- (i) Building plans indicating the plinth constructed at site in relation to the plot dimensions, area and setbacks, duly signed by the owner and empanelled licensee.
- (ii) Signed photograph(s) with date showing construction up to plinth level at site.

19E. Procedure for plinth level inspection for all other building- (1) In case of all other buildings, on completion of work up to plinth level, the owner, through his registered Architect / Institution / Building Designer / Town Planner / Engineer / Supervisor, shall submit an intimation of such completion in Appendix P to the Secretary to enable the Secretary or the person authorized by him to verify that the work conforms to the approved plans and building bye-laws and relevant Acts and Rules. After plinth level inspection the Secretary or the person authorized by him shall offer remarks on Appendix P submitted by the registered Architect / Institution / Building Designer / Town Planner / Engineer / Supervisor and inform the same along with the observed deviation or objection, if any, to the owner within 5 days from the receipt of such intimation. The following documents shall be submitted along with the intimation, namely: -

- (i) Building plans indicating the plinth constructed at site in relation to the plot dimensions, area and setbacks, duly signed by the owner and registered Architect / Institution / Building Designer / Town Planner / Engineer / Supervisor
- (ii) Signed photograph(s) with date showing construction up to plinth level at site

(2) No further construction shall be continued without the submission of plinth level inspection report.

19F. Deemed completion of plinth level inspection- In case the owner who submitted the intimation on plinth level inspection receives no communication from the Secretary within 7 days of such intimation, plinth level inspection shall be deemed to have been completed without any deviation having been noticed. It shall be the responsibility of the owner / Empanelled licensee / registered Architect / Institution / Building Designer / Town Planner / Engineer / Supervisor to ensure that the building is constructed in accordance with the approved plan.]

20.³⁵[Completion report], development certificate and occupancy certificate- (1) Every owner shall, on completion of development or redevelopment of land or construction or reconstruction or addition or alteration of building, as per the permit issued to him, submit a ³⁵[completion report] certified and signed by him to the Secretary in the form in Appendix E1 together with sufficient copies of plans and drawings of completed building.

Provided that in the case of buildings, other than residential buildings upto two floors with total built-up area not exceeding 150 sq. metres, the ³⁵[completion report] shall be certified and signed by the owner and registered Institution or Architect or Building Designer or Engineer or Supervisor also as in Appendix E3 together with sufficient copies of plans and drawings of completed building.

(2) The Secretary shall, on receipt of the ³⁵[completion report] and on being satisfied that the development or redevelopment of land has been effected in conformity with the permit given, issue a development certificate in the form in Appendix F1 along with a copy of the plans duly ³⁶[certified by the Secretary], not later than 15 days from the date of receipt of the completion certificate:

Provided that if no such development certificate is received within the said fifteen days, the owner may proceed as if such a development certificate has been duly issued to him.

On the expiry of fifteen clear days from the date of valid application for development certificate, the applicant shall submit a letter stating that he is liable to get development certificate and now it is deemed to have issued by the authority.

All Secretaries of Local Self Government Institutions shall acknowledge the receipt of the letter stated in the above paragraph with stamp and date on the same day on the duplicate copy of the letter. This shall be a deemed development certificate.

35. Substituted for the word 'completion certificate' by SRO no.628/2020 w.e.f.01.10.2020.

36. Substituted for the words 'signed by the Secretary' by SRO no. 639/2020 w.e.f.01.10.2020

(3) The Secretary shall, on receipt of the ³⁵[completion report] and on being satisfied that the construction or reconstruction or addition or alteration has been carried out in conformity with the permit given, issue occupancy certificate in the form in Appendix F2³⁷[along with a copy of the plans duly certified by the Secretary] not later than fifteen days from the date of receipt of the ³⁵[completion report]

Provided that, in case there is deficiency as per provisions of these Rules, in minimum width of mandatory open space/yard after completion of the construction, other than the distance stipulated as per section 383A of the Kerala Municipality Act, 1994 (20 of 1994) and ³⁸[sub-rule (6)] of rule 81 of these rules, the Secretary may allow a tolerance up to 5% of the minimum mandatory open space/yard to be provided as per these rules or twenty five centimeters, whichever is less, for the building constructed:

³⁹[Provided further that if any road widening project is taken up by any public agency after the building permit is issued and before the completion of the building as per the provisions of the Detailed Town Planning Scheme/Master plan or otherwise, the deficiency in setback due to the road widening shall not be treated as a violation of these rules and occupancy certificate shall be issued.]

Provided further that if no such occupancy certificate is issued within the said fifteen days, the owner may proceed as if such occupancy certificate has been duly issued to him.

On the expiry of fifteen clear days from the date of valid application for occupancy certificate, the applicant shall submit a letter stating that he is liable to get occupancy certificate and now it is deemed to have issued by the authority.

All Secretaries of Local Self Government Institutions shall acknowledge the receipt of the letter stated in the above paragraph with stamp and date on the same day on the duplicate copy of the letter. This shall be a deemed occupancy certificate. ⁴⁰*[Such deemed occupancy certificate shall be accepted by all the public authorities as proof of completion of the building in compliance to these rules and the municipality shall accept building tax from such date of having the occupancy certificate deemed.]

(4) The owner of a building may, if he intends to occupy the building before its completion, apply to the Secretary for that purpose together with partial ³⁵[completion report] by the owner and registered Institution / Architect / Building designer /Engineer / Supervisor in Appendix E2 and E4 respectively, and sufficient copies of plans and drawings of partially completed building.

(5) Secretary shall ensure the compliance of the provisions of these rules in respect of the partially completed building and on being satisfied that such occupancy will not endanger life, issue occupancy certificate in respect of such partially completed building.

21. Post Occupancy Audit- (1) The Secretary shall carry out Post Occupancy Audit except for residential buildings upto two storey, commercial buildings upto 50 square meters, religious buildings and buildings under group G1, G2 and I occupancies, within two years of issue of Occupancy Certificate.

(2) Post Occupancy Audit can be done at any time after two years after issue of Occupancy Certificate.

35. Substituted for the word ' completion certificate' by SRO no.628/2020 w.e.f.01.10.2020.

37. Inserted by SRO no.639/2020 w.e.f.01.10.2020.

38. Substituted for the words 'Sub-rule (5)' by SRO no. 639/2020 w.e.f.01.10.2020.

39. Proviso inserted by SRO no.639/2020 w.e.f.01.10.2020.

40. Inserted by SRO no.639/2020 w.e.f.01.10.2020.

*Whether the insertion is to be added to the existing sentence or as a separate sentence is not clear in the amendment rules. Here it is inserted as a separate sentence.

CHAPTER III

GENERAL PROVISIONS REGARDING SITE AND BUILDING REQUIREMENTS

22. General requirement regarding plot- (1) No land development or redevelopment shall be made or no building shall be constructed on any plot on any part of which there is deposited refuse, excreta or other offensive matter which in the opinion of the Secretary is considered objectionable, until such refuse, excreta or other offensive matter has been removed there from and the plot has been prepared or left in a manner suitable for land development or building purpose for the satisfaction of the Secretary.

(2) No land development or redevelopment shall be made or no building shall be constructed on a plot, which comprises or includes a pit, quarry or other similar excavation or any part thereof unless such plot has been prepared or left in a manner or condition suitable for land development or redevelopment or building purposes to the satisfaction of the Secretary.

(3) No land development or redevelopment shall be made or no building shall be constructed on a plot notified by Municipality which is liable to be flooded or on a slope forming an angle of more than 45 degrees with horizontal or on soil unsuitable for percolation or on area shown as floodable area in any Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016) or in sandy beds, unless it is proved by the owner to the satisfaction of the Secretary that construction of such a building will not be dangerous or injurious to health and the site will not be subjected to flooding or erosion or cause undue expenditure of public funds for providing sewers, sanitation, water supply or other public services.

(4) No construction shall be made to obstruct the natural drains and streams in a plot. Failure to comply with this instruction will invite penalization under Section 51 of the Disaster Management Act, 2005 (Central Act 53 of 2005).

(5) No building or part of a building shall be constructed or reconstructed or no addition or alteration shall be made to any existing building in the intervening spaces between the building and any overhead electric supply line as described in the Table 2 below and as specified in the Indian Electricity Rules as amended from time to time.

Provided that single storied buildings shall be allowed even if the above mentioned clearance is not available, if the applicant produces a no objection certificate from the Chief Electrical Inspector or an officer authorized by him, before issue of permit.

TABLE 2

CLEARANCE FROM OVERHEAD ELECTRIC LINES

Sl.No.	Type of Electric Supply Line	Minimum Vertical Clearance in metres	Minimum Horizontal Clearance in metres
(1)	(2)	(3)	(4)
1	Low and medium voltage lines	2.5	1.2
2	High voltage lines upto and including 33,000 volts	3.7	2
3	Extra high voltage lines above 33,000 volts	3.7	2
		plus 0.3 m for every additional 33,000 volts or part thereof	plus 0.3 m for every additional 33,000 volts or part thereof

23. ⁴¹[Prohibition for constructions abutting public roads/streets]- (1) No person shall construct any building other than compound wall or fence or outdoor display structure within 3 meters, from any plot boundary abutting national highways, state highways, district roads, other roads notified by Municipality, other un-notified roads with width 6m and above:

41. Substituted for the words 'Prohibition for constructions abutting public roads' by SRO no. 639/2020 w.e.f.01.10.2020.

Provided that ramps or bridges or steps or similar structures, all open to sky, with or without parapets or railings shall be permitted as access from the street to the building only in such cases where the level difference between the street and the plot does not permit natural access to the building. Cornice roof or weather shade, not exceeding 75 cms shall be permitted to project from the building into such 3 metres. In no case, access to more than one floor can be provided within this 3metres.

Provided further that the underneath of such flight of steps or ramp shall not be enclosed or made usable, however pillars may be permitted for its support.

(2) The minimum distance between plot boundary abutting the street and building other than a compound wall or fence or outdoor display structure shall be provided as in Table3.

TABLE 3

DISTANCE BETWEEN PLOT BOUNDARY ABUTTING THE STREET AND BUILDING

National Highway , State Highway, District Roads, other roads notified under section 383A of the Kerala Municipality Act 1994, other un- notified roads with width 6m and above	Other un-notified roads with width less than 6m
3 m	2 m

Provided that in the case of Cul –de –sac of whatever width but not exceeding 250 m length or pedestrian lanes and streets upto average 3 m width or internal roads with streets of whatever width within or leading to any residential colony it shall be sufficient if the distance between the plot boundary abutting the street and building is 2m for buildings upto 7 m height.

Provided further that in the case of lanes not exceeding 75 m length leading to one or more individual plots it shall be sufficient if the distance between the plot boundary abutting the lane and the building is 1.5 m.

(3) Any restriction under street alignment or building line or both, if any, fixed for area and restriction under any Master Plan / Detailed Town Planning Scheme/ Interim Development order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016) or any other rules or bye-laws shall also apply simultaneously to all buildings in addition to the provisions contained in sub-rule (1) and (2).

(4) Splay at road junctions, including 'Y' junctions shall be splayed as provided below. However original plot boundary can be considered for providing the mandatory yards.

Sl. No.	Road Width (in metres)	Splay / Offset (in metres)
(1)	Less than 12	3 X 3
(2)	Above 12 up to 21	4.5 X 4.5
(3)	Above 21	6 X 6

Provided that for roads with width less than 5 metres, this splay will not be applicable and when roads of different width form a junction, the respective splay of the corresponding road in this subrule is considered.

(5) The provisions contained in sub-rules 2 and 3 shall apply invariably to all buildings where the front, rear or side yard abuts a street or gain access through a street.

24. Height of buildings-(1) The maximum height of any building or part thereof shall be limited according to the width of the street as follows:-

(a) The maximum height of the building or part thereof shall not exceed twice the width of the street abutting the plot plus twice the width of the yard from the building to the abutting street;

(b) If a building plot abuts on two or more streets of different width, the building plot shall be deemed to abut the street that has the greater width for the purposes of this rule and

the height of the building shall be regulated by the width of that street and shall be continued at this height along the narrower street:

Provided that the height restriction as per this rule shall be compulsory only for buildings or part of building coming within 12 metres of building line:

(2) For buildings, structures and installations in the vicinity of airports, the stipulations with regard to height shall be further limited as subject to any notification issued by the Government of India under the Aircrafts Act, 1934 (Central Act XXII of 1934) and its amendments from time to time or approved zonal map issued for each airport. The permissible height of the building in this case shall be calculated upto the highest point of the building without any exemptions.

(3) In the case of construction or reconstruction of buildings or alteration or addition to existing buildings within any Security Zone, the overall height of building upto its topmost point shall not exceed 10 metres or as specified by the District Collector as per sub-rule (4) of rule 5, whichever is less:

Provided that if the overall height of any existing building in the Security Zone is 10 metres or more upto its topmost point, further vertical extension of that building shall not be permitted:

Provided further that the height of building shall be measured from the average level of ground contiguous to the building.

CHAPTER IV

OCCUPANCY

25. Occupancy of buildings –^{41A}[(1) All buildings existing or herein after proposed shall be classified, in one of the following occupancies, according to the use or character of occupancy namely:—

Non residential	GroupA1	Residential
	GroupA2	Lodging Houses and Special Residential
	GroupB	Educational
	GroupC	Medical/Hospital
	GroupD	Assembly
	GroupE	Office
	GroupF	Mercantile/Commercial
	GroupG1	Industrial I
	GroupG2	Industrial II
	GroupH	Storage
	GroupI	Hazardous
	GroupJ	Multiplex Complex]

Notes :-(i) Any building not specifically covered by any of the occupancies under sub rule (1), shall be in the group, which most nearly resembles its existing or proposed use.

(ii) Any building other than Multiplex Complex (group J occupancy) building which accommodates more than one use under sub rule (1) shall be included under the most restrictive occupancy group. However, occupancy shall be deemed to include the subsidiary uses which are contingent upon it.

(iii) The classification of buildings into occupancy groups are only for the purpose of these rules. The 'Occupancy group' is not synonymous with that in the zoning regulations stipulated in Master Plan / Detailed Town Planning Scheme / Interim Development Order under the Kerala Town and Country Planning Act, 2016 (9 of 2016)

(iv) All occupancies other than Group A1-Residential shall be treated as Non-residential for the purpose of these rules.

(v) Minor occupancy incidental to operations in another type of occupancy shall be considered as part of the main occupancy and shall be classified under the relevant group for the main occupancy.

(2) The description of occupancies is given below, namely:-

(a) Group A1 – Residential Building shall include any building in which sleeping accommodation is provided for normal residential purposes, with or without cooking and/or dining facilities. They shall include one or multifamily dwellings, apartment buildings or residential flats. Small professional offices, small household business or spaces for advocates, doctors, engineers, architects, chartered accountants, beauticians, tailors, photographers, videographers, telephone booth operators, computer professionals, typists, electrical or electronic equipment service professionals, not exceeding 50 sq. metres built-up area and used as part of principal residential occupancy are also included in this group. Crèches, daycare centres, children's nurseries, reading rooms⁴²[xxx] and educational buildings not exceeding 200 sq. metres of built up area are also included in this group.

(b) Group A2 - Lodging Houses & Special Residential shall include all lodging or rooming houses, seminaries/convents, orphanage, old age homes, dormitories,

41A. Substituted by SRO no.639/2020 w.e.f.01.10.2020.

42.Omitted the words and symbols 'libraries' by SRO no.639/2020 w.e.f.01.10.2020.

tourist homes, tourist resorts (or by whatever name called), hostels, hotels with or without conference halls, dining halls or assemblyrooms.

(c) Group B - Educational Buildings – These shall include any building or part thereof, exceeding 200 sq. metres of built-up area, used for school, college, day-care purposes, other institutions for education or research, libraries incidental to educational buildings, religious educational building such as madrasa, Sunday schools & the like and appurtenant assembly buildings having capacity not exceeding 200 persons.

(d) Group C - Medical or Hospital Building shall include any building or part thereof, exceeding 200 sq. metres of built up area which is used for purposes such as medical or other treatment or care of persons suffering from physical or mental illness, disease or infirmity, care of infants, hospitals, sanatoria, clinics, homes for the infirm, convalescent homes, mental hospitals etc, are included in this group.

(e) Group D - Assembly building shall include any building or part of a building exceeding 200 sq. metres of built-up area where people congregate or gather for amusement, recreation, social, religious, patriotic, political, civil, travel and similar purposes such as theatres, motion picture houses or cinemas, assembly halls for educational, dramatic or theatrical presentations, auditoriums, convention centres, wedding halls, community halls, exhibition halls, art galleries, museums, libraries, skating rings, gymnasiums, congregation, dance halls, club rooms, passenger stations or transport terminals, recreation piers, amusement park structures, viewing stands, grand stands, stadia and circustents.

⁴³[xxx]

(f) Group E - Office building shall include any building or part of a building having a total built up area of more than 200 sq. metres which is used for accommodating offices of public or private agencies or for keeping of records, accounts and similar purposes. Local, State and Central Government offices, buildings for office purposes constructed by private sector and quasi government agencies and buildings for the use of purposes, court houses, public utility buildings, jails and prisons are included in this group. All Information Technology Buildings are also included in this group. Further, in the case of Government Owned Information Technology Parks, Government Approved Private Information Technology Parks and Government Approved Private Information Technology Buildings, all buildings or part of buildings intended for providing ancillary or support services, amenities and utilities such as offices, residences, social amenities, recreational facilities, commercial establishments etc. shall also fall under this occupancy group.

(g) Group F - Mercantile or Commercial building shall include any building or part thereof which is used for display and sale of merchandise such as shops, stores, markets etc., either wholesale or retail. Banking and financial institutions, business houses and professional establishments of doctors, dentists, engineers, architects, lawyers, pathological laboratories, tailor shops, video shops, barbershop, beauty parlors, newsstands, milk booths, restaurants and non-nuisance type of small establishments using power motor or machine of capacity not exceeding 3 horse power are included in this group. Further, buildings or part of building used exclusively for parking of vehicles (parking buildings, parking plazas etc.) are also included in this group.

⁴⁴[Note:—Any building with not more than 200 sq.metres built up area accommodating the uses under Group C, D and E and with not more than 300 sq. metres built up area accommodating the uses under Group H shall be included in Group F].

43.Proviso omitted by SRO no. 639/2020 w.e.f.01.10.2020 .Prior to omission it read as 'Provided that it shall not include multiplexes in which each screen has a seating capacity less than 300 each'.

44.Note substituted by SRO no. 639/2020 w.e.f.01.10.2020.Prior to substitution it read as

'Note:—Any building with not more than 200 sq. metres built up area accommodating the uses under Group C, D,E and H shall be included in Group F'.

(h) Group G1 – Industrial – I building shall include any building or part of a building or structure in which products or materials of all kinds and properties are fabricated, assembled, manufactured or processed and the contents are of such comparative low combustibility and the industrial processes or operations conducted therein are-

(i) of such a nature that there are hardly any possibilities for any self-propagating fire to occur; or

(ii) liable to give rise to a fire which will burn with moderate rapidity or result in other hazardous situation and may give off a considerable volume of smoke, but from which neither toxic fumes nor explosions are to be feared in the event of fire.

Note :- Building under Group G1 – Industrial – I occupancy, shall generally, include Engineering work shops, Automobile service stations, Automobile wash stalls, Electroplating works, Service garages with repairing facilities, poultry farms with more than ⁴⁵[1000 birds], livestock farms with more than 6 animals, ⁴⁷[20 cows or 50 goats], furniture making units, Cashew factories, oil mills, Fish processing units, Coir factories, Water treatment/Filtration plants and Water pump houses, Clock and Watch manufacturing units, Bakeries and biscuit factories, confectionaries, Food processing units, food catering unit, Electric lamps (incandescent and fluorescent) and T.V. tube manufacturing units, Dry cleaning, dyeing and laundry units, Flour mills, Manure and fertilizer works (blending, mixing and granulating only) units, Oxygen plants, Plastic goods manufacturing and PVC pipe manufacturing units through injection/extrusion moulding, printing press, rubber goods manufacturing units, manufacture of synthetic leather, spray painting units, and textile mills; all up to ⁴⁸[1000 square metres] total built up area.

(i) Group G2 – Industrial – II building shall include any building or part of a building or structure in which products or materials of all kinds and properties are fabricated, assembled, manufactured or processed in which the contents or industrial processes or operations conducted therein are liable to give rise to a fire which will burn with extreme rapidity or result in other hazardous situation or from which poisonous fumes or explosions are to be feared in the event of fire.

Note (1): - Building under Group G2 - Industrial – II occupancy, shall generally, include Bituminized paper/ hessian cloth/ tar felt manufacturing, Cinema films and T.V. production studios, cotton waste factories, modern meat processing unit/slaughter houses wherein facilities mentioned in the Kerala Panchayat Raj (slaughter house and meat stalls) Rules, 1996 are provided, Electric and gas crematoria, distilleries, tyre retreading and resolving factories and petroleum refineries and LPG bottling plants.

Note (2):- For the purpose of these rules, all buildings with total built up area exceeding ⁴⁹[1000 square metres], under uses mentioned in item (h) above shall be included in Group G2 - Industrial – II occupancy.

(j) Group H - Storage building shall include any building or part thereof ⁵⁰[exceeding 300 square metres of built up area] used primarily for the storage or sheltering (including servicing, processing or repairing incidental to storage) of goods, wares or merchandise (except those involving highly combustible or explosive products or materials), vehicles and the like. Warehouses, freight depots, transit sheds, storehouses, garages, hangars, grain elevators, barns and silos are included in this group. Minor storage incidental to other occupancies shall be treated as part of predominant occupancy.

45. Substituted for the figures and word '30 birds' by SRO no. 639/2020 w.e.f. 01.10.2020.

47. Substituted for the figures and words '10 cows or the like' by SRO no. 639/2020 w.e.f. 01.10.2020.

48. Substituted for the figures and words '700 sq. metres' by SRO no. 639/2020 w.e.f. 01.10.2020.

49. Substituted for the figures and words '700 sq. metres' by SRO no. 639/2020 w.e.f. 01.10.2020.

50. Inserted by SRO no. 639/2020 w.e.f. 01.10.2020.

(k) Group I - Hazardous building shall include any building or part of a building which is used for the storage, handling, manufacturing or processing of highly combustible or explosive materials or products which are liable to burn with extreme rapidity and/or which may produce poisonous fumes or explosions; for the storage, handling, manufacturing or processing which involve highly corrosive, toxic or noxious alkalis, acids or other liquids or chemicals producing flame, fumes and explosive, poisonous, irritant or corrosive gases; and for the storage, handling or processing of any material producing explosive mixtures of dust which result in the division of matter into fine particles subject to spontaneous ignition.

Any process or activity, where raw materials used therein or wastes or effluents thereof would result in the pollution of the general environment are also included under this group.

Building under Group I – Hazardous occupancy shall generally include buildings and yards used for storage under pressure of more than 1Kg/cm² and in quantities exceeding 70 m³ of acetylene, hydrogen, ammonia, chlorine, phosgene, sulphur dioxide, carbon monoxide, methyl oxide and all gases subject to explosion, fumes or toxic hazard; Godowns or warehouses (combustible / hazardous goods), storage and handling of hazardous and highly inflammable liquids, oil terminals/depots and bulk storage of flammable liquids, crematoria, burial grounds, vaults, garbage dumping yards, abattoirs (slaughter houses), sewage treatment plants of capacity more than 100 KLD, stone crusher units, hot mixing plants of permanent nature (intended to function for more than six months), ready mix concrete plant (intended to function for more than six months), automobile fuel filling stations, coal, wood and timber yards, sawmills.

Sewage treatment plant of capacity less than 100 KLD and constructed as part of the main building, shall be treated as an ancillary building of the main use.

(l) Group J: - Multiplex complex shall mean an integrated entertainment and shopping centre/shopping complex or shopping mall, having more than one cinema hall/screens each with seating capacity of 300 or less. Apart from cinema halls, the entertainment area may have restaurants, cafeteria, fast food outlets, video games parlours, pubs, bowling alleys, health spa/centres, convention centres, hotels, other recreational activities and all other permissible uses under Group F. However, ⁵¹[habitable areas like service apartments] shall not be allowed in the same block where the multiplexes are set up and shall be allowed only as a separate block. Such a complex may spread over the site or be in one or more blocks which may be high-rise buildings or normal buildings. The total built up area of multiplex complex shall not be less than 12,000 sq. metres and the height of building shall not exceed 50 metres.⁵²[The height restriction of 30 meters for buildings for the same purpose under "Assembly Category" as specified in National Building Code of India, 2016 and subsequent amendments shall not be applicable for buildings under this occupancy group. The fire and rescue norms/standards as decided by ⁵³[Department of Fire and Rescue Services] shall be applicable for the height beyond 30 meters.]

26. Exterior and Interior open air spaces- (1) Every room intended for human habitation shall abut on an exterior or interior open space or verandah open to such exterior or interior open space and such open space shall be maintained for the benefit of the building exclusively and shall be entirely within the owner's own premises and shall be open to the sky and is barred from being subdivided, partitioned or legally bifurcated or transacted, in any manner whatsoever, till such date when the structure itself is demolished and shall be kept free from any erection thereon other than those specially allowed in these rules.

(2) In the case of buildings with multiple occupancy other than multiplex complex, yards for the most restrictive occupancy shall be provided.

51. Substituted for the words 'habitable areas like hotels and service apartments' by SRO no. 639/2020 w.e.f. 01.10.2020.

52. Inserted by SRO no. 639/2020 w.e.f. 01.10.2020.

53. Substituted for the words 'Fire and rescue department' by SRO no. 482 w.e.f. 29.06.2021.

(3) The required minimum setbacks shall be provided at the ground level itself for the whole building.

(4) The minimum yards for every building upto 10 metres in height shall be as per the Table 4 ⁵⁴[and if the yards stipulated in Table 4 cannot be maintained laterally throughout due to the peculiar shape of the plot, yards as per Table 4A shall be provided for every building up to 10 metres in height]:-

⁵⁵TABLE 4

YARDS FOR BUILDINGS UNDER DIFFERENT OCCUPANCIES														
Yards	Buildings in Group A1 & A2 of any built up area and Buildings in Group F with built up area not exceeding 200 sq. Metres	Building in small plots under Group A1 and F (built up area not exceeding 200 sq. metres and plot area not exceeding 125 sq. metres)	Buildings in Group B, C & E of built up area exceeding 200 sq. metres		Group D			Group F built up area exceeding 200 sq. metres	Group G1		Group G2	Buildings in Group H of built up area exceeding 300 sq. metres	Group I	Group J
			200-500 sq. metres	Above 500 sq. metres	200 – 500 sq. metres	500 – 800 sq. metres	Above 800 sq. metres		built up area up to 200 sq. metres	built up area exceeding 200 sq. metres				
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)	(12)	(13)	(14)	(15)
Front (in metre)	3	1.8	5	6	6	7.5	10.5	3	3	3	5	6	7.5	10.5
Rear (in metre)	1.5	1	2	2	2	3	3	1.5	2	3	5	3	7.5	5
(Sides in metre)	1	0.6	2	2	2	4	5	1	2	3	3	2	7.5	5

TABLE 4A

MINIMUM AND AVERAGE YARDS FOR BUILDINGS UNDER DIFFERENT OCCUPANCIES														
Yards	Buildings in Group A1 & A2 of any built up area and Buildings in Group F with built up area not exceeding 200 sq. Metres	Building in small plots under Group A1 and F (built up area not exceeding 200 sq. metres and plot area not exceeding 125 sq. metres)	Buildings in Group B, C & E of built up area exceeding 200 sq. metres		Group D			Group F built up area exceeding 200 sq. metres	Group G1		Group G2	Buildings in Group H of built up area exceeding 300 sq. metres	Group I	Group J
			200-500 sq. metres	Above 500 sq. metres	200 – 500 sq. metres	500 – 800 sq. metres	Above 800 sq. metres		built up area upto 200 sq. metres	built up area exceeding 200 sq. metres				
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)	(12)	(13)	(14)	(15)
Front Average (in metre)	3	1.8	5	6	6	7.5	10.5	-	-	-	-	6	-	-
Front Minimum (in metre)	1.8	1.2	3	4.5	4.5	5	6	-	-	-	-	4.5	-	-
Rear Average (in metre)	1.5	1	2	3	2	3	3	-	-	-	-	3	-	-
Rear Minimum (in metre)	1	0.5	1.5	1.5	1.5	1.5	1.5	-	-	-	-	1.5	-	-
Side Average (in metre)	NA	NA	2	2	2	4	5	-	-	-	-	2	-	-
Side Minimum (in metre)	1	0.6	1.5	1.5	1.5	1.5	1.5	-	-	-	-	1.5	-	-

*[Note — Average yard shall be calculated based on the area of the yard between the building and plot boundary]

54. Inserted by SRO no.639/2020 w.e.f.01.10.2020.

55. Table 4 substituted by SRO no. 639/2020 w.e.f.01.10.2020.

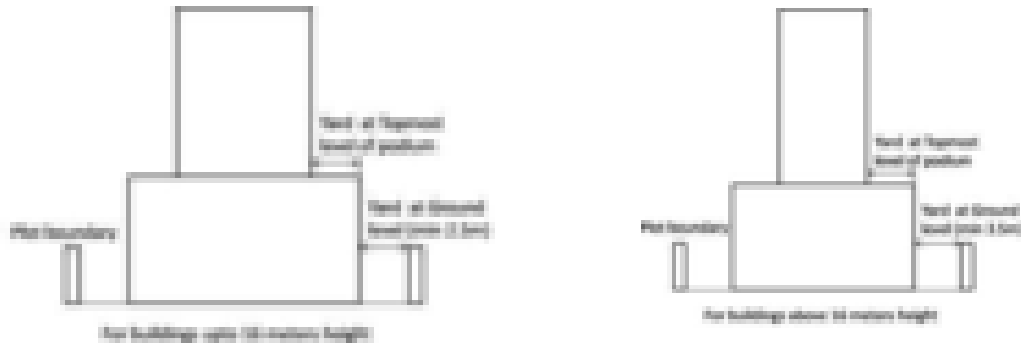
* Note inserted by SRO no.639/2020 w.e.f.01.10.2020. As per sub rule (11) of rule 2 of the amendment rules the 'Note' is prescribed to be added as part of the substituted first proviso and also after fourth proviso of sub-rule (4) of rule 26. But as the said first or fourth proviso or any other provisos of sub-rule (4) has no mention about average yard it may be suitable if added after the 'Table 4A. Hence the Note is inserted here.'

⁵⁶[Provided that for single family residential buildings in plots abutting un-notified road with width less than 6 metres, the front yard shall not be less than 2metres.]

^{57*}[Note — Average yard shall be calculated based on the area of the yard between the building and plot boundary.]

Provided further that any one yard other than front yard of a building referred in column(2) and (3) in Table 4 ⁵⁸[and 4A] can be reduced upto 50 centimetres if there is no opening on that side.

⁵⁹[Provided further that for buildings on podium, the minimum yards corresponding to the height of the building including podium can be given at two levels, i.e. one at the ground level and the other at the topmost level of the podium. For buildings up to 16 metres height, the height of podium shall be limited to 10 metres from ground level and in such cases, the minimum yards as per these rules for the height of podium shall be given at the ground level subject to a minimum of 2.5 metres. For buildings having more than 16 metres height, the height of podium shall be limited to 16 metres from ground level and in such cases, the minimum yards as per these rules for the height of podium shall be given at the ground level subject to a minimum of 3.5 metres.]



Provided also that in the case of appurtenant buildings used exclusively for the parking purpose of the main building and constructed in the same plot, the open yard abutting the street shall have minimum 3 metres and other sides shall have minimum 1 metre for buildings upto 10 metres in height and additional open space corresponding to height of the building shall be provided at the rate of 50 centimetres for 3 metres height or part thereof at the ground level itself. Such appurtenant building may abut the main building but the light and ventilation of the main building shall not be reduced below the required minimum by such abutting.

Provided also that unless otherwise specified in a Master Plan / Detailed Town Planning Scheme/ Interim Development order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016) , side yards may not be provided for buildings under group F mercantile or commercial occupancy, other than high rise buildings, in an area exclusively zoned for commercial use in such plan / scheme / order, if the owner of the plot abutting the property under construction voluntarily agrees for the same inwriting.

Provided also that for Group A1, A2 and F occupancy buildings ⁶⁰[with height of building up to 7 metres above ground level], any one side yard and/or rear yard can abut the boundary other than that of a street with the written consent of the adjoining land owner. If one land owner voluntarily agrees to abut the building in the neighbouring plot to his plot boundary, then the land owner may, also have the right to abut his building to the same plot boundary without a written consent.

(5) In case a group of buildings are to be put up within any plot belonging to the same owner or by different owners of adjoining lands jointly, the area of the land remaining after accounting for the mandatory front, rear and side yards from the boundary of the plot shall be considered as buildable area of the plot, and the minimum distance between any two buildings up to 10 metres height shall be 2 metres and for building(s) above 10 metres in height, the distance between two buildings shall be 3 metres.

56.Proviso substituted by SRO no. 639/2020 w.e.f.01.10.2020.Prior to substitution it read as 'Provided that for single family residential buildings the front yard of plots abutting un- notified roads with less than 6 m , shall not be less than 2 m'.

57.Note inserted by SRO no.639/2020 w.e.f.01.10.2020. *Already added as part of first proviso to rule 26(4)

58.Inserted by SRO no.639/2020 w.e.f.01.10.2020.

59.Proviso inserted by SRO no.639/2020 w.e.f.01.10.2020.

60.Substituted for the words 'up to two floors' by SRO no. 639/2020 w.e.f.01.10.2020.

(6) For buildings above 10 metres in height, in addition to the minimum front, rear and side yards and the minimum width of interior open space required for height upto 10 metres, there shall be provided increase in such minimum yard at the rate of 0.5 metre per every 3 metres height or fraction thereof exceeding 10 metres at the ground level itself, until the total width of yard reaches 16 metres and no further additional setback is required for additional height above this.

(7) Any room intended for human habitation and not abutting open air spaces on the front, rear or side shall abut on an interior open space whose width shall not be less than 2.4 metres:

(8) At least 50% of the total open space in the plot shall be left unpaved or, paved with suitable materials enabling percolation of rainwater.

(9) No construction or hanging of any sort shall be permitted to project outside the boundaries of the site.

(10) Every mandatory open space/yard provided as per these rules, either interior or exterior, shall be kept free from any erection thereon such as Generators, AC plant room, recreational space and the like, and shall be open to the sky, and only cornice, roof or weather shade not more than the width specified in Table 5 below, shall overhang or project over the said mandatory open space/yard.

TABLE 5
PROJECTIONS PERMISSIBLE

Sl.No.	Mandatory open space / yard as per these rules.	Width of projection permissible
1	below 0.60 metres	No projection
2	0.60 metres or more but below 1 metre	0.30 metres
3	1 metre or more but below 1.50 metres	0.60 metres
4	1.5 metres and above	0.75 metres

Provided that when the open space /yard actually provided is more than the minimum prescribed as per these rules, the width of cornice, roof or weather shade shall be permitted corresponding to the increase in the open space/yard provided.

Provided further that no door or window shall be permitted if the open space on that portion is less than 1 metre. However ventilator opening may be made above a height of 2.1 metres from the corresponding floor level if the open space on that side is at least 0.60 metres.

Provided also that in the case of construction of buildings in small plots and building construction as per approved schemes of these rules, windows shall be permitted if the open space on that side is at least 0.60 metres.

Provided also that flight of steps or ramps, all open to sky, with or without parapets or railings meant as access to upper or lower floors shall be permitted in the open space if such stair, step or ramp has minimum 0.60 metres distance from the boundaries.

Provided also that the underneath of such flight of steps or ramp, shall not be enclosed however pillars may be permitted for its support.

(8) The front, rear and side setbacks for constructions below the ground level shall be the same as that required for a 10 metre high building of the same occupancy group constructed above ground level.

27. Coverage and Floor Space Index-(1) The maximum percentage of coverage permissible for each occupancy shall limit the foot print of a building. The Floor Space Index value shall limit the maximum buildable area. Floor Space Index i.e., F.S.I. shall be calculated as shown below:

$$^{61} [F.S.I = \frac{\text{Total floor area on all floors}}{\text{Plot area}}]$$

61. Substituted for the words and symbols 'F.S.I. = $\frac{\text{Total built-up area}}{\text{Plot area}}$ ' by SRO no. 639/2020 w.e.f.01.10.2020.

Note: - (1) The area of plot to be taken for the calculation of floor space index and coverage shall be the total plot area without deducting the area required from the plot for any proposed road widening stipulated in statutory Town Planning Schemes/Plans under the Town and Country Planning legislation in force, unless otherwise stipulated specifically in such schemes.

(2) The percentage of coverage and the F.S.I value of buildings under different occupancies shall not exceed the maximum specified as in Table 6 below:

TABLE 6
COVERAGE AND FLOOR SPACE INDEX (F.S.I)

Sl.No.	Occupancy	Maximum permissible Coverage -	Maximum permissible F.S.I.	
			Without additional fee	With additional fee of Rs 5000 per sq. metre for the additional area
1	2	3	4	5
1	Residential A1	65	3	4
2	Lodging Houses & Special Residential A2	65	2.5	4
3	Educational B	Upto Higher Secondary	35	2.5
		Others	50	2.5
4	Medical / Hospital C	50	2.5	3.5
5	Assembly D	40	1.5	2.5
6	Office E	60	3	4
7	Mercantile / Commercial F	65	3	4
8	Industrial-I G1	60	3.5	-
9	Industrial-II G2	60	2.5	4
10	Storage H	70	3	4
11	Hazardous I	45	1.2	-
12	Multiplex complex J	65	3	4

(i) The value of maximum permissible coverage of a building of a particular occupancy group shall be limited by the value given under column (3) and shall be the maximum area covered by the building at any storey, fully or partly above ground level after accounting for the exterior open spaces (front, sides and rear) and interior openspaces.

(ii) For apartments / flats under Group A1 – Residential occupancy by Government or Quasi Government agencies of Joint venture with Government aimed at housing economically weaker sections (EWS) and or lower income groups (LIG) and Centrally Sponsored Housing Schemes for EWS, a maximum F.S.I. of 5 shall be permitted without additional fee, if built-up area of each and every dwelling unit in it is less than 100 sq. metres. Classification of income groups and matters related to the same shall be decided by the Government in consultation with the Committee constituted under the provisions of Chapter IX of these rules.

(iii) In the case of buildings used exclusively for worships, the maximum permissible coverage shall be 50 percent.

(iv) In the case of Government owned Information Technology Parks, Government approved private Information Technology parks, Government approved private Information Technology buildings under Group E occupancy, the maximum permissible F.S.I. shall be 4 and the maximum permissible coverage shall be 60%. The additional fee prescribed in Table 6 shall not be applicable in such cases.

(v) In the case of multiple occupancy buildings, required plot area is calculated for each floor separately taking in to account each occupancy in the floor based on the permissible coverage values as per these rules. Coverage shall be considered satisfactory only if such maximum among the calculated plot area for each floor is less than or equal to the actual plot area.

62.Substituted for the figures '40' by SRO no. 639/2020 w.e.f.01.10.2020.

(vi) In the case of a group of buildings within any plot, required plot area is calculated individually for each building in the plot based on the permissible coverage values as per these rules and the sum of the plot area so calculated is compared with the actual plot area. Coverage shall be considered satisfactory only if the calculated plot area is less than or equal to the actual plot area.

(vii) In the case of a multiple occupancy building as well as a group of buildings within a plot other than Group G2, I and J occupancies, the maximum permissible Floor Space Index shall be the weighted average of the Floor Space Index under the respective occupancies; weightage for each individual occupancy being the ⁶³[floor area] under each such occupancy and the total weightage being the sum total of ⁶³[floor area] of such building(s).

Weighted F.S.I. = $[f_1 \times A_1 + f_2 \times A_2 + f_3 \times A_3 + \dots] / A$

Where: $f_1, f_2, f_3 \dots$ - denote the maximum permissible F.S.I. of different occupancies in the building(s) within the plot,

$A_1, A_2, A_3, \dots$ - denote the ⁶³[floor area]s under respective occupancies in the building(s) within the plot; and

A - denotes the total ⁶³[floor area] of the building(s) and is equal to $A_1 + A_2 + A_3 + \dots$

28. Access- (1) The minimum width of access to a building and plot as well as the minimum width of the existing street giving access to the plot from the main street shall be as shown in ⁶⁴[Table 7, 8 and 8A] unless otherwise specifically mentioned elsewhere in these rules. The width of the main street shall not be less than the minimum width of access to the building and plot as well as width of street giving access to the plot.

⁶⁵[TABLE 7

ACCESS FOR GROUP A1 OCCUPANCY

Sl.No.	Occupancy	Total floor area of buildings in sq. metres	Minimum width of access required in metres
(1)	(2)	(3)	(4)
1(a)	Group A1 Occupancy with total floor area	Single unit up to 300	No minimum
		Multiple unit up to 300	1.20
		Above 300 up to 600	2.00
		Above 600 up to 1000	3.00
		Above 1000 up to 4000	3.60
		Above 4000 up to 8000	5.00
		Above 8000 up to 18000	6.00
		Above 18000 up to 24000	7.00
		Above 24000	10.00

TABLE 8

ACCESS FOR OCCUPANCY GROUPS A2,B,C,D,E,F

Sl. No	Occupancy	Total floor area of buildings in sq. metres	Minimum width of access required in metres
(1)	(2)	(3)	(4)
1	A2, B, C, D, E, F	Up to 300	1.20
		Above 300 - 1000	3.00
		Above 1000 - 1500	3.60
		Above 1500 - 6000	5.00
		Above 6000 - 12000	6.00
		Above 12000 - 18000	7.00
		Above 18000	8.00

63. Substituted for the words 'built-up area' by SRO no. 639/2020 w.e.f.01.10.2020.

64. Substituted for the words and figures 'Table 7 and 8' by SRO no. 639/2020 w.e.f.01.10.2020.

65. Tables 7 and 8 substituted by Tables 7, 8 and 8A by SRO no. 639/2020 w.e.f.01.10.2020.

66. Substituted for the words and figures 'Group A1 Occupancy with total built-up area' by SRO no.483/2021 w.e.f.29.06.2021

TABLE 8A
ACCESS FOR OCCUPANCY GROUPS G1, G2, H, I, J

Sl. No.	Occupancy	Total floor area of buildings in sq. metres	Minimum width of access required in metres
(1)	(2)	(3)	(4)
1	G1, G2	Up to 300	3.00
		Above 300 - 1500	3.60
		Above 1500 - 6000	5.00
		Above 6000	6.00
2	H	Above 300	7.00
3	I		7.00
4	J		12.00]

Provided that the access width of any building shall be modified to be in accordance with the provisions in any Town Planning Scheme for the area:

Provided further that other than for high rise buildings, in case there is deficiency as per provisions of these rules, in minimum width of the existing street giving access to the plot from the main street, at one or two short stretches (the total length of the street with reduced access width shall not be more than $\frac{1}{4}$ th of the total length of the street or 25 metres whichever is less), the Secretary, if convinced that the movement of vehicles and traffic will not be seriously affected, may allow a tolerance upto twenty centimetres in the minimum width of street at such stretches, required as per these rules.

Provided also that wherever off-street car parking is required for the building as per these rules, motorable access of width not less than 3metres shall be provided to the building and plot.

Provided also that in the case of A1 occupancy, it is necessary that if the number of units is not more than 8, then the width of such motorable access to off-street car parking shall not be less than 2.4 metres.

Provided also that in the case of automobile service stations, automobile wash stalls or service garages, all with repairing facilities under Group G1 occupancies, the access width shall not be less than 7metres.

⁶⁷[xxx]

Provided also that in the case of vaults, crematoria or burial grounds, the access width shall not be less than 3 metres.

Provided also that in the case of fuel filling station intended only to fuel boats and the like, the access width shall not be less than 5metres.

Provided also that in the case of type C Magazines as per the provisions containing in the Explosives Rules, 2008, such width shall not be less than 3.6 metres.

Provided also that internal access to an individual building shall be the mandatory access width required as per ⁶⁸[Table 7, 8 and 8A]above. An internal access can be through the mandatory open space of a building in any occupancy, in the group of buildings, provided the minimum distance between the building and the street giving access to the building shall be 3 metres for high rise buildings and 2 metres for other buildings.

Provided also that such internal street may be permitted in the open spaces which are not used for other mandatory uses such as off-street parking, recreational open space, loading/unloading space etc. specified in these rules.

67.Proviso omitted by SRO no. 639/2020 w.e.f.01.10.2020 .Prior to omission it read as

'Provided also that in the case of all livestock and poultry farms, the access width shall not be less than 1.2 metres if the total built up area is upto 500 sq. metres, 3 metres if the total built up area is above 500 sq. metres but upto 1000 sq. metres and 5 metres if the total built up area is above 1000 sq. metres.'

68.Substituted for the words and figures 'Table 7 and 8' by SRO no. 639/2020 w.e.f.01.10.2020

Provided also that in the case of Government and aided schools upto higher Secondary (including Vocational Higher Secondary) level, the existing access and street shall be sufficient for carrying out the following constructions, reconstruction, addition or alteration of building(s) in the plot, namely:

- (i) any addition of toilet blocks and other sanitation arrangements.
- (ii) other building works without increase in the ⁶⁹[total floor area] of all the buildings put together in the plot prior to carrying out such works.

Provided also that in the case of all existing schools upto the level of Higher Secondary, including Vocational Higher Secondary, if the ⁶⁹[total floor area] of the construction(s) including existing and proposed does not exceed 5000 sq. metres, 3.6 metres access shall be sufficient.

Provided also that in the case of high rise buildings, the minimum width of access shall be the width as stipulated in Chapter XVII of these rules.

Provided also that in the case of modern meat processing unit /slaughter houses and Electric and gas crematorium in Group G2 occupancy, 5metres access shall be sufficient.

⁷⁰[Provided also that in the case of buildings intended for the storage of LPG cylinders designated as white category as per the norms of the Pollution Control Board, the access width shall not be less than 6 metres.]

(2) In the case of access to the multiple occupancy building, the minimum width of access to a building and plot as well as the minimum width of existing street giving access to the plot from the main street shall be the minimum width of access required for the ⁶⁹[total floor area] of the building taken together as the most restrictive occupancy for the purpose of this rule.

(3) In the case of a group of buildings within any plot, the minimum width of access to the plot as well as the minimum width of existing street giving access to the plot from the main street shall be the minimum width of access required for the ⁶⁹[total floor area] of all the buildings taken together as the most restrictive occupancy for the purpose of this rule.

(4) No person shall at any time construct or cause or permit to construct or reconstruct any building which in any way encroaches upon or diminishes the area set apart as access to that building.

(5) No person shall construct a building or undertake construction work on a building which reduces the access to any building previously existing, below the minimum width required under these rules.

(6) No building shall be constructed so as to deprive any other building of an existing access.

(7) Every access shall be drained and lighted to the satisfaction of the Secretary and manhole covers or other drainage, water or any other fittings laid in such access shall be flush with finished surface level so as not to obstruct safe travel over the same.

(8) The clear headroom for motorable access within the plot shall not be less than 5 metres.

(9) Waterway other than sea routes will be considered as an access to islands as per these rules, if the following conditions are satisfied:-

- (a) Waterway which is considered as access to the island shall be navigable.
- (b) Road access as per these Rules shall be provided upto the public boat landing/jetty area except for single family residential buildings.
- (c) Approval shall be obtained from the Fire and Rescue Services Department.

69. Substituted for the words and figures 'total built up area' by SRO no. 483/2021 w.e.f. 28.06,2021

70. Inserted by SRO no.483/2021 w.e.f. 28.06,2021

29. Parking, loading and unloading spaces- (1) ⁷¹[Dimension of each off-street parking space provided for parking motor cars shall not be less than 5.5 metres x 2.7 metres. The area requirements for each off-street parking space for parking two-wheelers shall be 3 square metres and 1.5 square metres respectively.]

(2) For buildings of different occupancies, off-street parking spaces for motor cars shall be provided within the plot as specified in Table 9 and 10 as the case be.

(3) ⁷²[Parking requirement is calculated based on total floor area.]

⁷³[TABLE 9

OFF-STREET PARKING SPACE FOR APARTMENTS / FLATS UNDER GROUP-A1

Total floor area per Dwelling Unit	Off-Street Parking Spaces at the rate of
Up to 75 sq. metres	1 for every 3 dwelling units
Above 75 sq. metres up to 185 sq. metres	1 for every dwelling unit
Above 185 sq. metres upto 300 sq. metres	1.5 for every dwelling unit
Above 300 sq. metres	2 for every dwelling unit]

***Note:** Fractions if any in the total number of parking worked out shall be rounded off to the next whole number. In addition to the above, additional car parking space has to be provided inside the plot if required and on-street parking will not be permitted.

⁷³[TABLE 10

OFF-STREET PARKING SPACE FOR OCCUPANCIES OTHER THAN GROUP-A1

Sl. No.	Occupancy	One parking space for every or fraction of
(1)	(2)	(3)
1	Group A2-Lodging houses & special residential	90 sq. metres of floor area for total floor area up to 1200 sq. metres and at the rate of 60 sq. metres for the additional floor area in excess of 1200 sq. metres.
2	Group B-Educational (i) High Schools, Higher Secondary Schools, Junior Technical Schools, Industrial Training Institute etc. (ii) Higher educational institutions	(i) 300 sq. metres of total floor area (ii) 120 sq. metres of total floor area
3	Group C- Medical / Hospital	90 sq. metres of total floor area
4	Group D- Assembly	20 sq. metres of total floor area Note:—(i) In the case of wedding halls and community halls, for calculating the floor area for the purpose of parking, the floor area of either the auditorium or the dining hall, whichever is higher, alone need be taken. (ii) In the case of library, for calculating the floor area for the purpose of parking, the area of the stacking space for books shall be excluded.
5	Group E- Office Building	90 sq. metres of floor area for total floor area up to 1200 sq. metres and at the rate of 60 sq. metres for the additional floor area in excess of 1200 sq. metres.
6	Group F- Mercantile/ Commercial building exceeding 90 sq. metres floor area	90 sq. metres of floor area for total floor area up to 1200 sq. metres and at the rate of 60 sq. metres for the additional floor area in excess of 1200 sq. metres.
7	Group G1- Industrial-I Building	240 sq. metres of total floor area
8	Group G2- Industrial- II Building	240 sq. metres of total floor area
9	Group H-Storage	240 sq. metres of total floor area
10	Group J Multiplex complex	50 sq. metres of total floor area]

71. Sub-rule substituted by by SRO no. 639/2020 w.e.f.01.10.2020. Prior to substitution it read as 'Area of each off-street parking space provided for parking motor cars shall not be less than 15 sq. metres, length of the parking bay shall not be less than 5.5 m.'

72. Sub-rule substituted by by SRO no. 639/2020 w.e.f.01.10.2020. Prior to substitution it read as 'Parking requirement is calculated based on built-up area. The area provided for parking inside the building shall not be taken into account while calculating the built-up area for assessing the parking requirement of the building.'

73. Tables 9 and 10 substituted by SRO no. 639/2020 w.e.f.01.10.2020

* Note of Table 9 is retained here though it is not mentioned in the amendment.

Provided that in the case of a building/building complex accommodating more than one occupancy, parking as above shall be made available in the same plot itself, earmarking the occupancy wise parking areas as detailed in Table 9 and 10 for the respective occupancies:

Provided further that, in the case of Government Owned Information Technology Parks, Bio Technology buildings / Parks, Government Approved Private Information Technology Parks and Government Approved Private Information Technology Buildings under Group E occupancy, the off-street car parking requirement shall be at the rate of one parking space for every⁷⁴[100 square metres of total floor area] or fraction thereof.

(4) Every off-street parking space shall be provided with adequate vehicular access to a street, area of drives, aisles and such other provisions required and adequate area for maneuvering of vehicles in addition. Such drives, ramps, aisles intended for vehicular movements shall satisfy the following:

(i) Drive way leading to off-street parking space shall have width not less than 3 metres and shall be motorable. But in the case of A1 occupancy, if the number of units is not more than 8, then the width of such motorable access to off-street car parking shall not be less than 2.4 metres.

(ii) Width of ramp for driveway for one-way direction shall not be less than 3.5 metres, 5.5 metres for two-way direction and at curves it shall not be less than 4 metres and 6 metres respectively, and slope of such ramps shall not be steeper than 1:7.⁷⁵[But in case of A1 occupancy, if the number of parking is not more than 75 numbers, and in other occupancies if the parking is not more than 25 width of ramp for driveway for two-way direction may not be provided.]

(iii) The width of vehicular passage for rows of parking for motor cars shall not be less than⁷⁶[4.0 metres]

(iv) The headroom for the drive way, ramps, passage etc. for motor car movement shall not be less than 2.2 metres at any point.

(v) The headroom of floors exclusively used for parking of cars and two wheelers shall not be less than 2.2 metres.

⁷⁷[xxx]

(5) Wherever any off-street parking space is required under these rules, 25% of that area shall be provided additionally for parking two wheelers.

(6) In the case of apartments/flats, 15% of mandatory off-street parking space as in Table 9 shall be provided additionally, earmarked and maintained exclusively to accommodate visitors' parking.

(7) In addition to the parking space as in Table 10, in the case of Group F Mercantile or Commercial, Group G1- Industrial-I and Group G2- Industrial-II and Group H - storage occupancies, loading and unloading spaces each 30 sq. metres shall be provided within the plot, at the rate of one such space for each 1000 sq. metres of⁷⁸[total floor area] or fraction thereof, exceeding the first 700 sq. metres of⁷⁸[total floor area].

(8) Not exceeding fifty percent of each mandatory open yard shall be taken into account for calculating the required parking space if such open yard has adequate vehicular access and area for maneuvering.

(9) The minimum mandatory open spaces around any building(s) as well as mandatory parking spaces as per these rules shall not be sold or let out for parking of vehicles other than that for the building(s).

74. Substituted for the words, figures and symbols '120 sq. metres of built-up area' by SRO no. 639/2020 w.e.f. 01.10.2020.

75. Inserted by SRO no. 639/2020 w.e.f. 01.10.2020.

76. Substituted for the figures, words and symbols '4.5 metres' by SRO no. 639/2020 w.e.f. 01.10.2020.

77. Omitted by SRO no. 639/2020 w.e.f. 01.10.2020. Prior to omission it read as 'Minimum turning radius of 9 metres to be provided for fire tenders'

78. Substituted for the words 'built-up area' by SRO no. 639/2020 w.e.f. 01.10.2020.

(10) Of the mandatory off-street car parking requirement as per these Rules, fifty per cent at the maximum may be provided for by mechanised parking, on condition that the owner/occupant shall ensure proper safety, structural stability and functioning of such mechanized parking system at all times. Minimum headroom of parking lot in mechanized parking shall not be less than 2metres.

(11) In case of exclusive mechanized parking facility the proposed facility may abut building and/or 1 m from the boundaries irrespective of height of the facility.

⁷⁹[(12) All buildings requiring parking shall have facility for charging electrical vehicles. The government shall notify the number of charging points to be provided in accordance with the size and occupancy of the building as required from time to time.]

30. Approval for layout of buildings and usage of plot- Approval of the District Town Planner or the Chief Town Planner, as the case may be, shall be obtained for the usage of plots and lay out of buildings with area/dwelling units as stipulated in Table11.

TABLE 11
APPROVALS FROM TOWN AND COUNTRY PLANNING DEPARTMENT

	Occupancy	Buildings requiring approval of	
		District Town Planner	Chief Town Planner
	(1)	(2)	(3)
(a)	Apartments (Group A1)	Building(s) with number of dwelling units exceeding 100	
(b)	Lodging houses & Special Residential (Group A2)	Building(s) with total built-up area exceeding 8000 sq. metres.	
(c)	Educational (Group B) , Medical/Hospital (Group C), Assembly (Group D) & Office (Group E)	Building(s) with total built-up area exceeding 1500 sq. metres.	
(d)	Commercial (Group F)	Building(s) with total built-up area exceeding 8000 sq. metres.	
(e)	Group G1 Industrial - I & Group G2 Industrial - II	Building(s) with total built-up area exceeding 1500 sq. metres	
(f)	Storage and warehousing (Group H)	Building(s) with total built-up area exceeding 6000 sq. metres.	
(g)	Hazardous (Group I)	All Hazardous buildings	
(h)	Multiplex Complex (Group J)	--	All buildings under this occupancy group

Note:-In Table 11 above, built-up area includes the area of existing and proposed buildings.

Provided further that in the case of Type C Magazines as per the provisions contained in the Explosives Rules 2008, such approval of the District Town Planner or Chief Town Planner is not necessary. However, all other mandatory clearances applicable for such constructions shall be obtained.

31. Land sub-division and plotdevelopment-

1. For residential use:-

All new land subdivisions and plot developments shall be subject to the following, namely:-

(i) The area of any newly subdivided plot, reconstituted plot or building plot shall be not less than 125 sq. metres with an average width of 6 metres:

Provided that for row housing where side open spaces are not required, it is sufficient if the plot has an average width of 4.5 metres;

(ii) Every plot shall have a frontage of not less than 4 metres on any abutting street;

(iii) Every street in the layout shall have not less than 7 metres width and shall be motorable;

Provided that in the case of cul-de-sacs with length not exceeding 250 metres it is sufficient if the street (cul-de-sac) has not less than 5 metres width ⁸⁰[and in the case of cul-de-sacs not exceeding 75 metres, it is sufficient if the street (cul-de-sac) has not less than 3 metres width];

Provided further that in residential areas where motorable street cannot be made due to difficult terrain, the width of any new street shall not be less than 5metres and where the length of such street does not exceed 250 metre it is sufficient if the street has not less than 3metreswidth;

(iv) The minimum existing width of the street giving access to the land proposed for subdivision from the main street shall be as given in Table12:

TABLE 12

WIDTH OF STREET

Sl.No.	Total extent of Land	minimum width required (in metres)
1	Upto 0.5 hectares	1.5
2	More than 0.5 hectares upto 1 hectares	3.6
3	More than 1 hectare upto 2 hectares	5
4	More than 2 hectares	6

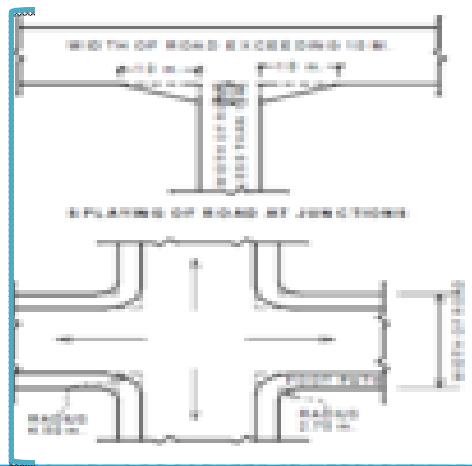
(v) When the area of the land under development work, layout or subdivision exceeding ten plots is 0.5 hectares or more, ten percent of the total area shall be provided for recreational open spaces and shall be suitably located to be accessible to the residents of the layout;

Provided that while considering the area of the land, the area of any contiguous land belonging to the same owner, though not proposed for immediate development shall be taken into account;

(vi) The recreational open space to be provided under item (v) shall have an access as if it were a separate plot and as far as possible it shall be in one piece and in no case less than 2 Ares in area with a minimum width of 6 metres;

(vii) The layout or subdivision proposal shall be in conformity with the provisions of Master Plan / Detailed Town Planning Scheme/ Interim Development Order, if any, in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), and if the land is affected by any reservation for a public purpose, the Secretary may agree to adjust its exact location to suit the development but not so as to affect its area;

(viii) The street junctions shall be splayed or rounded off to give sufficient turning radii and sight distance for vehicles and the side of the splay shall be a minimum of 4 metres for roads up to 10 metres and shall be a minimum of 10 metres for roads exceeding 10 metres width as shown in the figure below:



81

80. Inserted by SRO no.639/2020 w.e.f.01.10.2020.

81. Figure substituted by SRO no.639/2020 w.e.f.01.10.2020

(ix) In the case of lay out or sub division of land having an area of two hectares or more a suitable location for an electric transformer shall be provided;

(x) In the case of layout for subdivision of land, where the number of residential plots exceeds 10 and plot area less than 0.5hectare approval of the Secretary, Local Self Government Institution shall be obtained as per the provisions of thisrule.⁸²[In case of layout for subdivision of land, where the number of residential plots is less than 10 and plot area less than 0.5 hectare, approval from the Secretary is not required.]

(xi) In the case of layout for subdivision of land, where the number of residential plots exceeds 20 or if the area of the land is above 0.5 hectare approval of the District Town Planner shall be obtained.

(xii) If the site forms part of approved layout, copy of sub division layout shall be enclosed along with the plans for approval;

(xiii) Adequate arrangements for surface water drainage shall be provided with suitable drains etc;

(xiv) For the entire period of land development, the owner shall display the details of the permit near the entrance to the site in a board of size not less than 100 centimetres x 75 centimetres. The details to be displayed include name and address of the owner and developer with phone number, details of plots such as number, area and use, the area and location of recreational open spaces, road widths, number and date of approval of the District Town Planner/Chief Town Planner, number and date of the permit and the name of Local Self Government Institution; and

(xv) In the case the number of plot of layout for subdivision exceeds 10, any yard adjoining internal road/street of building(s) upto 10 metres height can be reduced to 2 metres.

2. For industrial use:-

All new land sub- divisions and plot developments shall be subject to the following:-

(i) The width of every new street, public or private, intended for use as a motor way giving access to or through an organized industrial area with not less than six constituent units, shall be minimum 10 metres;

Provided that in the case of Group G1 Industrial-I units or cul-de-sac not exceeding 250 metres length, the minimum road width shall be 7 metres.

(ii) The minimum size of industrial plot abutting street shall be 400 sq. metres in extent with a width of not less than 15metres;

Provided that the minimum plot requirement in item (ii) shall not apply to Group G1 Industrial-I units;

(iii) In industrial layouts a place for installation of transformer shall beprovided;

(iv) The approval of the District Town Planner shall be obtained for the layout of industrial streets and land sub-division exceeding fiveplots;

The usage of plots proposed for development or redevelopment shall be governed by the provisions contained in the Master Plan / Detailed Town PlanningScheme/Interim Development Order, if any, in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016)prepared for the locality;

Provided that where no such plan exists, the usage of plots shall be as approved by the District Town Planner or an officer authorized byhim.

82.Inserted by SRO no.639/2020 w.e.f.01.10.2020

3. For mercantile (commercial) use:-

All new land sub-divisions and plot developments shall be subject to the following: -

- (i) The width of every new street, public or private, intended for use as motor way giving access to or through a commercial precinct consisting of a continuous row of shops exceeding ten in number shall not be less than 10 metres except in the case of cul- de-sac not exceeding 150 metres length, where the minimum width shall be 7metres;
- (ii) The frontage of every commercial plot abutting the street, shall have a minimum width of 6metres;
- (iii) The minimum size of plot within a layout proposed for commercial development shall not be less than 60 Sq.metres;
- (iv) For every plot within a layout for commercial development, building line from the street shall not be less than 3metres;
- (v) No plot intended to house a service garage or auto workshop within a layout for commercial development shall be of an area less than 300 sq. metres and an average plot width less than 12 metres;and
- (vi) The approval of the District Town Planner shall be obtained for the layout of all new Commercial Street and land sub-division exceeding fiveplots.

CHAPTER V

PARTS OF BUILDING

32. Mezzanine floor-(1) The built-up area of mezzanine floor shall not exceed one third area of the main floor or room accommodating the mezzanine floor.

(2) The clear headroom beneath and above the mezzanine floor shall not be less than 2.2 metres.

33. Height of room-The height of room intended for human entry in a building other than residential occupancy and livestock/poultry farm shall not be less than 3 metres:

Provided that in the case of airconditioned rooms it shall not be less than 2.4 metres.

34. Sanitation Facilities-

(1) Size of bathroom and latrine.-

(1) The area of bathroom shall not be less than 1.50 sq. metres with either side not less than 1.1m, area of a latrine shall not be less than 1.10 sq. metres with one side not less than 1.0 metre:

Provided that the area of combined bathroom and latrine shall be not less than 2.2 sq. metres with one side not less than 1.1 metres:

(2) The height of bathroom or latrine shall be not less than 2.20 metres.

(2) Water closet.-Every building above 50 square metres of built up area shall be provided with at least one water closet.

(3) Calculation of sanitation facilities

(1) Sanitation facilities to be provided for occupancies other than Group A1 shall be provided in numbers not less than those stipulated in Table 14 and Table 15, as the case may be. The occupant load for this purpose shall be computed at the rate given in Table 13.⁸³ [Area of parking given inside the building can be deducted from the built-up area for calculating sanitation facilities.]

TABLE 13
OCCUPANT LOAD FOR CALCULATING SANITATION REQUIREMENTS

<i>Sl.No</i>	<i>Occupancy</i>	<i>Built-up area in sq.metres / person</i>
1	Group A2, B, C,E and F	5.9
2	Group D and J	1.8
3	Group G1 , G2 , H and I	30

Note :- It may be assumed that 2/3 of the number are males and 1/3 are females.

83.Inserted by SRO no.639/2020 w.e.f.01.10.2020

TABLE 14
SANITATION REQUIREMENTS

Sl. No	Fitments	Assembly occupancy and Multiplex complex, Theatres, Auditorium, Art Galleries, Libraries, Restaurants, Wedding halls, Community halls		Assembly	Assembly	Assembly
				Bus Terminal	Railway Station	Air ports
(1)	(2)	(3)		(4a)	(4b)	(4c)
1	Water Closet	1 per 200 males or part thereof and 1 per 100 females or part thereof for the first 1000 sq.meters of built up area and 1 per 400 males or part thereof and 1 per 200 females or part thereof for the remaining area.		4 for first 1000 persons and 1 for every subsequent 1000 persons or part thereof	5 for first 1000 persons and 1 for every subsequent 1000 persons or part thereof	5 for first 1000 persons and 1 for every subsequent 1000 persons or part thereof
2	Urinals	1 per 50 persons or part thereof for the first 1000 sq.meters of built up area and 1 per 100 persons or part thereof for the remaining area.		6 for first 1000 persons and 1 for every subsequent 1000 persons or part thereof	6 for first 1000 persons and 1 for every subsequent 1000 persons or part thereof	6 for first 1000 persons and 1 for every subsequent 1000 persons or part thereof
3	Wash Basin	1 for every 200 males and 1 for every 200 females for the first 1000 sq.meters of built up area and 1 per 400 males and 1 per 400 females or part thereof for the remaining area.		4 wash basins in each male and female toilet stalls	4 wash basins in each male and female toilet stalls	4 wash basins in each male and female toilet stalls
4	Bath					

Sl. No	Fitments	Hotels	Storage occupancy	Boarding Institutions/Hostels/Dormitories	Other educational institutions	Office/mercantile occupancies	Industrial occupancy
		(5)	(6)	(7)	(8)	(9)	(10)
1	Water Closet	1 per 100 males and 1 per 100 females	1 per 50 males and 1 per 25 females	1 per every 10 boys and 1 per every 8 girls	1 per every 40 boys and 1 per every 25 girls	1 for every 25 males or part thereof and 1 for every 15 females or part thereof	1 per every 25 males and 1 per every 15 females
2	Urinals	1 for every 25 persons or part thereof	1 per 100 males or part thereof	1 per every 25 boys	1 per every 50 boys	1 for every 25 persons or part thereof	1 per every 25 persons or part thereof
3	Wash Basin	1 for every 25 persons or part thereof		1 per every 10 boys and 1 per every 10 girls	1 per every 40 boys and 1 per every 40 girls	Preferably one on each floor	
4	Bath	1 per 100 persons		1 per every 10 boys and 1 per every 10 girls			As required for particular trades or occupancy

TABLE 15

SANITATION REQUIREMENTS FOR MEDICAL/HOSPITAL OCCUPANCY

Sl.No	Fitments	Hospitals with indoor patients ward	Hospitals with outdoor patients		Administration Building	
		For males and females	For males	For females	For male personnel	For female personnel
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1	Water Closet	One for every 8 beds or part thereof	One for every 100 persons or part thereof	Two for every 100 persons or part thereof	One for every 25 persons or part thereof	One for every 15 persons or part thereof
2	Ablution taps	One in each water closet plus one water tap with draining arrangement in the vicinity of water closets and urinals for every 50 beds or part thereof	One in each water closet. One water tap with draining arrangement shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals		One in each water closet. One water tap with draining arrangement shall be provided for every 50 persons or part thereof in the vicinity of water closets and urinals	
3	Wash Basins	Two up to 30 beds; add one for every additional 30 beds or part thereof	One for every 100 persons or part thereof		One for every 25 persons or part thereof	
4	Baths with shower	One bath with shower for every 8 beds or part thereof			One on each floor	
5	Bed pan washing sink	One in each ward				
6	Cleaners sink	One in each ward minimum	One per floor minimum		One per floor minimum	
7	Kitchen sink and dish washers (where kitchen is provided)	One in each ward minimum				
8	Urinals		One for every 50 persons or part thereof		Nil upto 6 persons, 1 for 7-20 persons, 2 for 21-45 persons, 3 for 46-70 persons, 4 for 71-100 persons. From 101 to 200 persons add at the rate of 3%. For over 200 persons add at the rate of 2.5%.	

Provided that in the case of Information technology parks / technology parks sanitation requirements shall be that of 75 % of the office occupancy.

(2) The Minimum sanitation facilities to be provided in hazardous buildings shall be as given below:

- at the rate of one water closet for the first 50 males or part thereof and two water closet for the first 50 females or part thereof and thereafter one water closet for every additional 70 persons or part thereof, whether male or female;
- at the rate of one urinal for every 100 males or part thereof;
- at the rate of one drinking water fountain for every 100 person or part thereof;
- at the rate of one washing facility for 50 persons or part thereof ;and
- In cases where the total number of workers does not exceed 5, at least one water closet shall be provided.

(3) Segregated sanitation for Visitors in Public Buildings

(a) In respect of the following new buildings, special segregated sanitation facilities as separate block shall be provided within the plot, in a conspicuous location, outside the main building block(s):

- (i) Civil stations, Municipal offices, Taluk offices, Village offices;
- (ii) Any other office in plots owned by Government or Municipality as decided by the Government or Municipality respectively from time to time;
- (iii) Hospitals with total built-up area more than 1000sq.metres;
- (iv) Bus stations, railway stations, airports and public water transport terminals;
- (v) Automobile fuel filling stations.

(b) Such sanitation facility shall be at least 10 percent of the sanitation requirement stipulated in Tables 14 and 15 for water closets, urinals and wash basins subject to a minimum of one WC, urinal and washbasin each for male, one WC and washbasin each for female and one WC and washbasin each for disabled persons. The minimum standards for WC and Washbasin for disabled shall be as provided in rule 42.

(c) It must be accessible to visitors and general public during the operational hours of the building.

(4) As far as possible, low water consumption plumbing fixtures shall be provided in all buildings.

(5) In the case of Government owned Information Technology Parks, Government approved Private Information Technology Parks, Government approved private Information Technology buildings under Group E occupancy, additional sanitation facilities for visitors need not be provided.

35. Staircases and fire escape staircases-

(1).Staircases.-

(1) Any building having more than one floor shall be provided with a staircase unless each such floor is independently accessible from ground.

(2) The number and width of stair shall be determined with respect to the occupant load as table 16 of these rules and maximum travel distance between two stairs shall not be ⁸⁴[greater than] 60m.

(3) For such stair:-

- (a) minimum width of stair shall be 120 centimeters,
- (b) minimum width of tread shall be 30 centimeters,
- (c) maximum height of riser shall be 15 centimeters
- (d) minimum height of handrail shall be 90 centimeters

(4) The minimum headroom in a passage under the landing of a staircase and under the staircase shall be 2.2m.

(5) Any building having more than three floors including basement floor(s) shall have at least two staircases, one of which may be a fire escape staircase:

(6) Escalators can be provided instead of staircases. The width of such escalators shall not be less than one metre.

(2) Fire escape staircase:-

(1) Fire escape staircase shall be provided for every building under:-

- (a) Residential occupancy exceeding three storeys above ground level;
- (b) Non-residential occupancies exceeding two storeys above ground level

84.Substituted for the words 'less than' by SRO no. 639/2020 w.e.f.01.10.2020

*Note:-*Fire escape staircase is one which is connected to public areas and/or common areas on all floors and leads directly to exterior open space at ground, has at least one side abutting external wall, this side being provided with openable glass or break open glass or fully open and has landing areas accessible from the external side to facilitate rescue operations during an emergency.

(2) Width of fire escape staircase shall not be less than one metre;

(3) Tread shall not be less than 25 centimetres;

(4) Risers shall not exceed 19 centimetres and the number of risers shall not exceed 16 per flight of stairs;

(5) Height of handrail of a fire escape staircase shall not be less than 100 centimetres and not more than 120 centimetres;

(6) The spacing between the⁸⁵[balusters] should be less than 15 centimetres;

(7) The use of spiral staircase shall be limited to buildings up to 10 metres in height. Spiral staircase shall not be less than 150 centimetres in diameter and shall be designed to give adequate head room;

(8) Fire escape stairs shall have straight flight for building exceeding 10 metres height;

(9) Entrance to fire escape stair shall be separated and as far as possible remote from other staircase(s) if any;

(10) If the staircase provided for the building upto three storeys satisfies the provisions of fire escape stair also, no separate fire escape stair is needed.

(3) Ramps.-

Ramps, if provided as a substitute for stairways, shall be laid with a slope not exceeding 1 in 10 and such ramp shall comply with all requirements of a stairway and shall be surfaced with approved non-slippery materials.

36. Travel distance to emergency exit-(1) Every building meant for human occupancy shall be provided with emergency exit sufficient to facilitate safe escape of occupants in case of fire or other emergency.

(2) Emergency exits shall be located in such a way that the travel distance on each floor shall not exceed 30 metres for every occupant.

(3) Emergency exits may be either horizontal or vertical.

(4) Emergency exits in the case of ground floor may be a doorway, corridor or passage to an internal staircase or external staircase, ramps to the street or to the roof of a building, which may be horizontal exits leading to the ground or adjoining building at the same level. In the case of upper or lower floors, emergency exits may be a staircase leading to the ground.

Provided that lifts and escalators shall not be considered as emergency exits.

37. Exit Width-(1) The unit of exit width used to measure the capacity of any exit shall be 50 centimetres, a clear width of 25 centimetres shall be counted as an additional half unit and clear width less than 25 centimetres shall not be counted for exit width.

(2) Occupants per unit exit width shall be as in Table 16.

⁸⁵.Substituted for the word 'balustrades' by SRO no. 639/2020 w.e.f.01.10.2020

TABLE 16
OCCUPANTS PER UNIT EXIT WIDTH

Sl.No.	Group of Occupancy	No. of Occupants per unit exit width of Stairway	No. of Occupants per unit exit width of Doors
(1)	(2)	(3)	(4)
1	GroupA1 Residential	25	75
2	GroupA2 Lodging Houses & Special Residential	50	75
3	GroupB Educational	25	75
4	GroupC Medical / Hospital	25	75
5	GroupD Assembly	60	90
6	GroupE Office	50	75
7	GroupF Mercantile (Commercial)	50	75
8	GroupG1 Industrial -I	50	75
9	GroupG2 Industrial - II	50	75
10	GroupH Storage (including Warehousing)	50	75
11	GroupI Hazardous	25	40
12	GroupJ Multiplex Complex	50	75

(3.) For determining the exit width required, the number of persons in any floor or the occupant load shall be based on the actual number of occupants but in no case less than that specified in Table 17.

TABLE 17
OCCUPANT LOAD

Sl.No.	Group of Occupancy	Occupant Load (Builtup area in square metres per person)
(1)	(2)	(3)
1	GroupA1 Residential	12.5
2	GroupA2 Lodging Houses & Special Residential	4.0
3	GroupB Educational	4.0
4	GroupC Medical / Hospital	15.0
5	GroupD Assembly	1.5
6	GroupE Office	1.5
7	GroupF Mercantile / Commercial	4.5
8	GroupG1 Industrial -I	10.0
9	GroupG2 Industrial - II	10.0
10	GroupH Storage (including Warehousing)	30.0
11	GroupI Hazardous	10.0
12	GroupJ Multiplex Complex	4.5

(4) Exits shall be either horizontal or vertical type.

(5) An exit may be a doorway corridor or passageway to an internal staircase or an external staircase (upstairs, downstairs or both), or a ramp which has access to the street or to the roof of a building;

Provided that lifts and escalators shall not be considered as exits.

(6) For determining the exit width of staircases, the width of one flight of stair is considered.

38. Doorways-(1) Every exit doorway shall open into an enclosed stairway or a horizontal exit or a corridor or passageway providing continuous and protected means of egress.

(2) No exit doorway shall be less than 75 centimeters in the case of residential and 1.2metres in the case of all other occupancies.

(3) Revolving door shall not be provided as a means of fire exit.

39. Corridor, verandahs and passageways-The clear width of any corridor, verandah or passageway in any building shall be not less than 1.0 metre at any point. The width of passages giving access to the staircase shall not at any point be less than the width of the stair.

40. Lift /Escalator- (1) Any building exceeding three storeys in the case of group C- Hospital/medical occupancy and four storeys in the case of other occupancies shall have at least one lift.

Provided that additional lift shall be provided at the rate of one lift for every 2500 sq. metres of the total built up area or part thereof (except parking area provided inside the building) in excess of the first 4000 square metres, or by adopting the provisions in the National Building Code for calculating the number of lifts/ escalator, in which case, the respective registered engineer, architect etc. shall furnish certificate, design calculation and specifications all duly signed, along with the application for building permit. The certificate shall be to the effect that the lifts/ escalator provided conform to the provisions of the National Building Code.

(2) The planning, design and installation of lifts / escalator shall be in accordance with Part 8, Volume 2, Section 5 in National Building Code of India, 2016.

(3) Whenever more than one lift is required as per sub-rule (1) or byelaws made under the Act, at least one lift shall be a higher capacity lift that can carry a stretcher.

(4) In the case of highrise apartment building having more than 16 dwelling units, at least one lift capable of carrying a stretcher shall be provided:

41. Lighting and Ventilation- (1) Every habitable room shall be furnished with sufficient number of openings such as windows and ventilators affording effectual means of admission of light and air by direct communication with the external air or shall be sufficiently lighted and ventilated by artificial means.

(2) No portion of a room shall be assumed to be lighted if it is more than 7.5 metres away from the opening assumed for lighting that portion unless it is artificially lighted.

(3) Windows and ventilators which open into a verandah shall be deemed to communicate with the external air, if such verandah is not more than 3 metres wide and open throughout its entire length into an open space open to the sky, the width of such open space being not less than 3.0 metres. Trellising, mesh, grill or net may, however, be provided on the open side of the verandah;

(4) Every kitchen shall be ventilated according to the standards stipulated for habitable rooms and shall have suitable flue for the escape of smoke and heated air unless it is provided with an approved form of smokeless installation.

(5) Every bathroom or latrine shall be provided with sufficient light and ventilation.-

(6) Every bathroom or latrine shall have at least one of its walls abutting on an open space or open verandah or an air shaft if not centrally air conditioned; the size of air shaft shall not be less than that specified in Table 18.

TABLE 18
SIZE OF AIRSHAFT

Sl.No.	No. Of Storeys	Area of the airshaft in square metre	Minimum width of Airshaft in metre
(1)	(2)	(3)	(4)
1	Upto 3	1.08	0.9
2	Upto 6	2.4	1.2
3	Upto 10	3.0	1.5
4	Above 10	5.0	2.0

(7) All buildings coming under the purview of sub rule (5) of Rule 5 shall also follow the lighting and ventilation standards mentioned in the KSECBC.

^{85A}**[41A. In-building Solutions.-** Necessary provision for in-building solutions for the small cell deployment including cable ducts and power connections as stipulated by the Department of Information Technology, Government of Kerala, from time to time, shall be made mandatory for all buildings other than low risk buildings.]

42. Provisions for Differently-abled, Elderly and Children- All buildings under occupancy groups A2, B,C,D, E,F and J which have access to the public and all apartment buildings/residential flats under occupancy group A1 shall be provided with the following facilities for the differently-abled, elderly and children:

- (1) Every such building shall have easy access to the main entrance through a ramp.
- (2) Every public building exceeding 1000 sq. metres and residential flats exceeding 2500 sq. metres built-up area shall have lift or separate approach through a ramp (intended for the differently-abled and elderly) to each floor. The minimum cage dimensions of such lift shall be as follows:

- (i) Clear internal width 110cm
- (ii) Clear internal depth 200cm
- (iii) Entrance door width 90cm

- (3) The maximum gradient of any ramp approach intended for the differently-abled, elderly and children shall not exceed 1 in 12 and shall be finished with non-slippery material. The minimum width of ramp shall be 120 cm. and provided with handrails of 80 cm height on both sides. Minimum gap from the adjacent wall to the hand rail shall be 50mm. The slope of all such ramps shall be constant within a building. Entrance landing shall be provided adjacent to ramp with the minimum dimension 120 cm x 150cm.

- (4) Toilets:-

A minimum of one special water closet shall be provided for the use of the differently-abled and elderly with essential provision of a wash basin at an easily accessible location with proper signages:

Provided that in the case of such special toilets:

- (a) These shall be provided at the ground floor for A1, A2,B,C,D,E, F & J occupancies and at every floor in multiples of three for A2,B,C,D,E, F & J occupancies.
- (b) Minimum size of toilet shall be 1.50 m x 1.75m.
- (c) Minimum clear opening of the door shall be 90 cm. wide, the door shall swing out, or be sliding or folding type.
- (d) Suitable arrangements of vertical/horizontal handrails with 5cm. clearance from the wall shall be provided in the toilet.
- (e) The water closet seat shall be 50 cm. above from the floor level:
- (f) At least one sink in each floor shall have a knee room of 70cm. high under the sink; and
- (g) Locks of such toilet doors shall be of a type that can be opened from outside in case of emergency.

(5) Parking facilities:-

(a) 3% of the required parking subject to a minimum of one car space, shall be provided near the entrance, exclusively for use of the differently-abled with maximum travel distance of 30 metres, from the building entrance.

(b) The width of such parking bay shall be at least 3.6metres.

(6) Walks and paths:-

(a) Walks shall be smooth with hard level surface suitable for walking and wheeling. Avoid grates and manholes in walks. If grates cannot be avoided, then bearing bar shall be perpendicular to the travel path and opening between bars shall not be greater than 12mm in width.

(b) The walkway shall not cross vehicular traffic.

(7) In Group A2 Lodging Houses & Special Residential, one room for every 25 rooms or part thereof shall be set apart for the differently-abled.

(8) Other SpecialTreatments

(a) All obstructions and projections up to a minimum of 2.1 metre height from the finished floor level shall be avoided.

(b) Recoil doors shall be avoided, wherever there is access to the general public;

(c) Minimum & clear opening of the entrance door shall be 90 cm and it shall not be provided with a step that obstructs the passage of a wheel chair user.

(d) Appropriate signages shall be provided at salient locations for facilitating the differently-abled.

43. Other provisions for Apartment buildings under Group A1 Residential occupancy- (1)Any residential apartment having more than 12 dwelling units in a single plot or single building shall be provided with a recreational space of suitable size but minimum dimension of such recreational open space shall be more than 1.2 m.

(2) The recreational open space as per sub rule (1) shall not be less than ⁸⁶[6% of the total floor area] of all floors taken together. A minimum 35% of such recreational space shall be provided outside the building on the ground itself. Remaining recreational space may be provided either inside a building or outside or both. The recreational space, if provided outside a building on the ground, shall be exclusive of parking areas, driveways and the like. Recreational open space ⁸⁷[shall be given in ground level and may be provided] above utility areas such as underground sump, sewage treatment plants only after providing adequate safety measures. Recreational space shall not be provided above manholes. If recreational space is partly provided on any open terrace, the recreational space so provided shall not be more than 25% of the open terrace area. Such space shall be enclosed all around either by walls or parapet walls made of stable materials to a height of not less than 150 centimetres with grill mesh of size not more than 10 centimeters x 10 centimetres over it up to further height of 150 centimeters. Such recreational space in open terrace shall be provided with safety measures including exits as per theserules.

Note- (1) Spaces like swimming pool, recreation hall or health club shall also be considered as recreation space for this purpose.

(2) The recreation space may be provided as a single unit or as differentunits.

(3) The recreational space(s) so provided shall be easily and safely accessible to differently-abled persons including children with specialneeds.

⁸⁸[(3) Provision for LPG piped gas system / LPG articulate system shall be provided in all apartments with adequate safety measures.

86.Substituted for the words, figures and symbols '6% of the total built-up area' by SRO no. 639/2020 w.e.f.01.10.2020.

87.Substituted for the words, figures and symbols 'shall be given in ground level' by SRO no. 639/2020 w.e.f.01.10.2020

88. Sub rules (3) and (4) inserted by SRO no. 483/2021 w.e.f. 29.06.2021

(4) In the case of existing apartments, provision for LPG piped gas system / LPG articulate system shall be provided within 3 years of the date of commencement of the Kerala Municipality Building (Amendment) Rules, 2021.]

44. Other provisions for Group D Assembly Occupancy buildings-(1) The height of room in Assembly occupancy buildings shall be minimum 4 metres;

Provided that in the case of air conditioned auditoriums/halls it shall be minimum 3 metres;

(2) The clear head room beneath and above the mezzanine or balcony shall be not less than 3 metres.

Provided that such headroom shall not be less than 2.4 metres in air conditioned rooms.

(3) The height of store room, ⁸⁹[xxx] lumber, and cellar rooms shall not be less than 2.4 metres.

(4) Balconies or galleries or mezzanines shall be restricted to 25 per cent of the total built-up area of assembly hall area.

(5) The maximum slope of the balcony or gallery or mezzanine shall not exceed 35 degrees.

(6) The Standard of ventilation in assembly occupancy buildings shall be 28 cu.m fresh air per seat per hour.

(7) In the case of Cinema theatres, the location, size and building construction shall conform to the Provisions in the Kerala Cinema Regulations, 1988 as amended from time to time and the IS:4878-1968, Byelaws for construction of Cinema Buildings.

(8) In the case of alteration to existing authorised cinema hall(s)/theatre(s) into multiple screens without increasing the total seating capacity, and if such internal alteration include only structures relating to fixing of cinema screen(s) and interior partitioning, Secretary shall permit such internal changes of the building, subject to the following conditions:-

(i) in the case of addition, alteration, reconstruction or change in occupancy of the existing cinema theatres whether having existing valid license or had a valid license as per Kerala Cinemas (Regulation) Act, 1958 (32 of 1958), building permit shall be issued only if a cinema theatre having 1/3rd seating capacity of the existing theatre, is also proposed/retained.

(ii) the existing coverage, total built-up area on all floors, total seating capacity and height of building shall not be exceeded;

(iii) the available off-street parking spaces and yards or open spaces or setbacks of existing authorised building(s) shall not be reduced;

(iv) provisions contained in rule 81(9) and 81(10) of these rules shall apply irrespective of whether the building is a high-rise building or not;

Provided that works as specified in item (i) to (iv) of rule 8 for which permit is not necessary may also be carried out along with such alteration;

Provided further that the provisions in this sub-rule is applicable to only those existing authorised cinema halls/buildings which are to be used exclusively for showing films.

45. Other provisions regarding Group G1 and G2 industrial occupancy buildings- (1) Location of any industry shall conform to the provisions contained in the Kerala Factories Rules, 1957 or any other Central or State Act or Rules or Regulations in respect of industrial location and licensing in force.

(2) In areas falling under the purview of the Kerala Industrial Single Window Clearance Boards and Industrial Township Area Development Act, 1999 (5 of 2000), provisions as applicable under that Act shall be followed.

89. Omitted the words and symbols 'toilets', by SRO no.639/2020 w.e.f.01.10.2020.

(3) All work rooms in buildings under industrial occupancy shall be provided with a built-up area computed at a rate, not less than 4.2 sq. metres. per person employed in such rooms, exclusive of built-up area occupied by the machinery and breathing space of 15 cubic metres perworker:

Provided that the areas of any work room shall be not less than 9.5 Sq. metres.

(4) The minimum height of work room shall depend upon the type of industry, the noxious gases which might be produced or the heat generated due to the process, the specification of room construction, the number of workers employed in any work area and the comfort conditions available through installation of mechanical ventilation or air conditioning system:

Provided that the height of any work room shall not be less than 3.6 metres measured from the floor level to the lowest point in the ceiling.

(5) Height of office, laboratory, entrance hall, canteen, cloakroom etc. shall not be less than 3metres.

(6) In the case of store rooms, ⁹⁰[xxx]the height shall not be less than 2.4metres.

46. Other provisions regarding Group H Storage occupancy buildings- Every building or part thereof, designed or intended for the storage of food stuffs shall conform to the requirements specifiedbelow:

(1) every building unless supported on pillars shall have continuous foundation walls extending from at least 60 centimetres below ground level to at least 15 centimetres above ground level or shall have a continuous floor of masonry or reinforced concrete or other quality rat-proof-material.

(2) all openings in foundations or floors, windows and drains and all junctions between foundations and walls of the building shall be effectively rat-proofed; windows and doors shall be securely covered with rat-proof screening or grillage or shall be tightly closed with metal sheeting, concrete or other equallyrat-proof-material.

47. Other provisions regarding Fuel filling stations under Group I Hazardous occupancy- (1) The location and or construction of fuel tank and vent-pipe shall be governed by the provisions of the Petroleum Rules,2002.

(2) A clear space of not less than 7.5 metres shall be provided all around the retail dispensing units of fuel fillingstation.

Provided that in the case of fuel pumping station intended to fuel boats and the like, the retail dispensing unit shall be installed at a distance of not less than 3 metres from the boundary of waterfront.

(3) The kiosk or sales office shall have a minimum open space of 1metre from the plot boundaries other than that abutting thestreet.

(4) In the case of canopies with sheet roof attached to automobile fuel filling stations, a setback of not less than 3metres from road boundaries abutting the plot and not less than one metre from other plot boundaries shall be provided. Such canopy shall not be counted for calculation of coverage and F.S.I.

48. Certain Buildings exempted-Single family residential buildings, other than apartments under Group A1 residential occupancy shall be exempted from the provisions in this chapter.

90. Omitted the words 'and toilets,'by SRO no.639/2020 w.e.f.01.10.2020

CHAPTER VI

HUTS AND BUILDINGS IN SMALL PLOTS

49. Special provisions for huts (1) Provisions in this rule shall apply to construction of huts. All statutory acts and laws will be applicable to the construction of huts.

- 1. Prohibition for commencing work without permission:-** No person shall commence the construction or reconstruction of a hut without first obtaining permission for such work.
- 2. Provisions regarding distance from road, etc:-**
 - (1) The minimum distance between the plot boundary abutting any street other than National Highway, State Highways, or District roads or other roads notified by Municipality, other un-notified roads with width 6m and above and a hut shall be 1.0metre.
 - (2) All sides including the front and rear shall have minimum 60 centimetres distance from all the boundaries other than that abutting a road.
- 3. Certain provisions not to apply:-** Provisions regarding F.S.I., coverage, dimension of building parts, light and ventilation shall not apply to huts.
- 4. Application for permit:-**
 - (1) Any person intending to construct or reconstruct a hut shall submit an application in white paper, typed or written in ink addressed to the Secretary along with a site plan showing the built-up area and the boundaries of the plot and nearby street, if any, and document to prove ownership.
 - (2) The application fee shall be as in Schedule I
- 5. Disposal of Application:-** The Secretary shall verify the application, document and site plan and after being convinced of the boundaries and bonafides of ownership, issue permit within 14 days from the date of receipt of the application and necessary permit fee as shown in schedule II.
- 6. Council bound to decide on application:-**
 - (1) The council shall be bound to take a decision as to whether permit shall be given or rejected, if the applicant makes a request in writing after the expiry of fourteen days from the date of submission of application that the Secretary has failed to dispose of the application.
 - (2) The applicant may commence with the construction or reconstruction in conformity with the provisions contained in the Act and these Rules, as if the permit has been granted, if the Council fails to dispose of the application within 30 days from the date of submission of the request in writing.
- 7. Reasons for rejection to be specified:-**
 - (1) The secretary shall not reject an application for construction or reconstruction of hut without specifying the reasons for such rejection and the same shall be intimated to the applicant.
- 8. Period of permit and its extension:-** The permit shall be valid for 5 years from the date of issue and may be extended for further one year on submission of application in white paper, typed or written in ink, affixed with necessary court fee stamp, within its valid period, and payment of fifty percent of the permit fee.
- 9. Completion report and occupancy certificate:-**
 - (1) The applicant shall, on completion of the construction or reconstruction of hut for which the permit was issued, report the matter in white paper, typed or written in ink to the Secretary, specifying the date of completion

- (2) The Secretary shall, if satisfied that the construction or reconstruction is as per the permit granted, issue occupancy certificate not later than 10 days from the date of receipt of the report.

50. Special provisions for construction in small plots-

- (1) **Applicability:** The provisions in the Kerala Municipality Building rules, 2019 shall apply to construction of building under Group A1-Residential and/or Group F- Commercial occupancy, in plots not exceeding 125 sq.metres of area subject to modifications in this chapter:

Provided that permit shall not be granted under this rule to one and the same person or with his consent to another person, for constructing different buildings, whether separately or abutting each other, in plots formed by division of one or more plots, he remaining as owner of more than one such divided plots or if that person has another plot abutting the proposed plot.

- (2) **Number of floors to be limited.**-The number of floors allowed shall be 3 floors and stair-room with maximum height of building restricted to 10 metres excluding stairroom.

- (3) **Certain provisions not to apply.**-Provisions regarding F.S.I., coverage, access width, height restriction with regard to width of road and the yard abutting the road, off-street parking, dimension with regard to building parts and light and ventilation shall not apply to buildings under this Chapter.

CHAPTER VII ROWBUILDINGS

51. Special provisions for rowbuildings

1. **Applicability:** The provisions in the Kerala Municipality Building Rules, 2019 shall apply to construction of row buildings subject to modifications in this chapter:
2. **Row buildings to be allowed on declared streets.**-The Secretary shall permit the construction or reconstruction of row buildings only on the sides or part of a side or sides of any street, where the Municipality has by declaration published, decided to allow row buildings.
3. **Number of units that can be permitted.**-The number of dwelling units in a row of buildings shall not exceed ten.

Note :- A row building with separate entry and exit and separated by common wall from other row buildings abutting it shall be deemed to be one unit for this purpose.

4. **Plot area.**-The area of plot for one unit shall not exceed 85 sq. metres.
5. **Maximum floors.**-The maximum number of floors permitted shall be two and a staircase room.
6. **Certain provisions not to apply.**-Provisions regarding F.S.I., Coverage, access width, height restriction with regard to width of road and the yard abutting the road, dimension of building parts, light and ventilation and off street parking contained in these rules shall not be applicable to row buildings.
7. **Submission of application etc.**-Application for permit and other documents required as per these rules may be submitted either jointly or individually.
8. **Reconstruction, etc. of existing row buildings.**-

Notwithstanding anything contained in these rules, in the case of existing row buildings, under Group A1 – Residential occupancy, reconstruction, repair, alternation or addition, both horizontal and vertical shall be permitted irrespective of whether it is on the side of a street where row buildings are permitted or not, and irrespective of the plot area, and setbacks provided. In such case, the number of floors shall be limited to two.

CHAPTER VIII

BUILDING CONSTRUCTION UNDER APPROVED SCHEMES

52. Provision for construction under approved Schemes- Provisions in this chapter shall apply to construction or reconstruction or addition or alteration of any building in individual plots under any Government approved Schemes for economically weaker section and financed or built by Government, Municipality, Housing Board, Scheduled Castes and Scheduled Tribes Development Corporation, Fishermen Welfare Corporation, Matsyafed, Harijan Welfare Department, ⁹²[Social Justice Department] or any Government Department, Quasi Government Agency, or Housing Co-operative Societies. The provisions in this Chapter shall also apply to buildings financed or built by any Municipality at any level to its beneficiaries.

53. Area and floor restrictions-

- (1) Total floor area of each dwelling unit shall not exceed 66 sq.metres.
- (2) Number of floors shall be limited to two and a stair case room.

54. Setback provisions-

(1) The minimum distance between the plot boundary abutting any street other than National Highways, State Highways, ⁹³[xxx] district roads, other roads notified by Municipality, other roads with width ⁹⁴[6m] and above and the building, other than a compound wall or fence or outdoor display structure, shall be minimum 1.50 metres.

(2) Front yard shall have minimum 1.00 metre width.

(3) In the case of individual developed plots requiring no layout approval from the District Town Planner, there shall be average 60 centimetres open space on the sides and the rear:

Provided that no door shall be allowed on any portion, if that portion does not have minimum 1 metre open yard.

(4) In the case of buildings requiring layout approval of District Town Planner, the side yards and rear yard shall be provided as shown in the building layout:

Provided that no portion of the building shall encroach, project or overhang beyond the plot boundaries.

55. Certain provisions not to apply- Provisions regarding F.S.I., coverage, off-street parking space, access width, height restriction with regard to width of road and the yard abutting the road, dimensions with regard to building parts, light and ventilation shall not apply to building under this chapter.

56. Application for permit and its disposal- (1) Where the construction or reconstruction or addition or alteration is proposed to be done by individuals separately, an application in white paper, typed, or written in ink and affixed with necessary court fee stamp shall be submitted by the individual concerned to the Secretary, along with a site plan showing proposed building footprint and document to prove his ownership. The number of floors and the area in each floor shall be specified in the application.

(2) Secretary shall, if convinced of the boundaries and bonafides of the ownership and that the building is in accordance with the rules in this Chapter, issue permit.

(3) There shall be no application fee in the case of individual application and the permit fee in the case of individual application shall be as shown in Schedule-II.

(4) Where the construction or reconstruction or addition or alteration is proposed to be done by the Department, Corporation, Board, Agency, Local Self Government Institution or Society themselves, layout for sub-division shall be obtained from the Secretary and no building permit is necessary.

92. Substituted for the words 'Social Welfare Department' by SRO no. 483/2021 w.e.f. 29.06.2021.

93. Omitted the words 'PWD roads,' by SRO no. 639/2020 w.e.f. 01.10.2020.

94. Substituted for letter and figure '5m' by SRO no. 639/2020 w.e.f. 01.10.2020

CHAPTER IX

SPECIAL PROVISIONS FOR LARGE-SCALE DEVELOPMENT PROJECTS APPROVED BY GOVERNMENT

57. Applicability of the Provisions- Provisions in this chapter shall apply only to large scale development projects, expansion projects approved by Government, by order, and for availing benefit of higher Floor Space Index, the projects shall have an area not less than 1 hectares, an investment exceeding Rs.100 crores including land value and which shall provide for employment, for not less than 500 persons as per commissioning of the project.

58. Constitution and functioning of the committee- (1) The Government may accord sanction for the project mentioned above, based on the recommendation of a committee, to be constituted by the government for the purpose, consisting of the following members:

(i)	The Principal Secretary / Secretary to Government, Local Self Government Department	Chairperson
(ii)	The Director, Department of Urban affairs	Member
(iii)	The Chief Town Planner, Department of Town and Country Planning	Convenor
(iv)	The District Officer of the Department of Town and Country Planning having jurisdiction over the district concerned	Member
(v)	Secretary(s) of the Local Self Government Institution(s) concerned	Member(s)

(2) The developer shall submit the project report, detailing the demand, feasibility and Environmental Impact Assessment aspects of the project, together with the approval, if necessary, obtained from the Ministry of Environment and Forests, Government of India to the Convener of the committee and the Convener shall make all arrangements for convening meeting of the committee at the earliest and the committee shall consider and dispose of the project report within a period of one month from the date of receipt of the same.

(3) The Convener shall fix the venue, date and time of the meeting in consultation with Chairperson and shall be responsible for safe custody of records and communications there of.

(4) The meeting shall be presided over by the Chairperson or in his absence by a member to be authorised by him.

(5) The quorum of the meeting shall be majority of the total number of members of the committee for the project.

(6) The developer shall also produce before the committee, all required clearances from the State and Central Government agencies concerned.

59. Provision for supporting infrastructure-(1) Adequate provision shall be made for supporting infrastructure such as water supply, sewage, solid waste management, power supply etc.

(2) Separate sewage treatment plant and systems for solid waste management shall be provided and maintained by the developer at his cost.

60. Memorandum of Understanding- There shall be Memorandum of Understanding between the developer and the Secretary of the Local Self Government Institution concerned with adequate provisions for bringing the project into effect.

61. Other provisions-

(1). The F.S.I. permissible for the project:- The ⁹⁶[maximum F.S.I permissible] for such projects shall be 1.25 times the maximum value stipulated in column (6) & (8) of Table 6 under⁹⁷[27(2) of the respective occupancy] and in conformity with the Notes there under subject to a maximum of 6 and the fee for the additional F.S.I. shall be as stipulated in column (8).

(2).Minimum width of access:- The minimum width of access shall be 12metres.

(3).Ceiling for Residential use:-Area for residential uses, if any, included in the projects shall not exceed 40% of the land area of the project and shall be incidental to the mainuse(s).

(4).Period for completion:-The project shall be completed within a period of five years, if not specified otherwise.

96.Substituted for the words 'F.S.I permissible' by SRO no. 639/2020 w.e.f.01.10.2020.

97. Substituted for the words 'rule 27 (2)' by SRO no. 639/2020 w.e.f.01.10.2020

CHAPTER X

CONSTRUCTION IN PLOTS PART OF WHICH HAVE BEEN SURRENDERED FREE OF COST FOR ROAD DEVELOPMENT

62. Provisions to apply as modified for constructions in certain plots- (1) In the case of buildings newly proposed or alteration or addition proposed on existing buildings in plots left after part of the same plot has been surrendered free of cost to the Municipality, Development Authority, or Government Department or Quasi-Government organization for new road formation or road widening or junction improvement or formation or development of any facility relating to road structure, other provisions in these rules shall apply subject to the modifications in this chapter:

Provided that the applicants seeking benefit under this chapter shall apply in writing to the Secretary in the form in Appendix A2:

Provided further that the provisions under this chapter shall not apply to the road envisaged in any layout as per these rules:

Provided also that the benefit under the provisions in this chapter shall not be allowed to the constructions in such plots, if the land is not surrendered for the implementation of the scheme in total:

Provided also that such road formation or road widening or junction improvement or formation or development of facility relating to road structure shall form part of the annual plan or five year plan of the implementing agency concerned or shall have a budgetary allocation and shall form part of and conform to any Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016) , if any such plan / scheme/ order exists:

Provided also that any deviation from the proposals of a Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), in the new road formation or road widening or junction improvement or formation or development of any facility relating to road structure, shall be carried out only affecting variation or revision, as the case may be, of such plan / scheme / order:

Provided also that in the case of roads which have no widening proposals as per any Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), or which falls in areas which are not covered by any such plan / scheme / order, it shall be a project proposed or taken up, with the prior approval of the Local Self Government Department in consultation with the Chief Town Planner of the state:

- (i) by the local self-government institutions or Development Authority by resolution; or
- (ii) Sanctioned or undertaken by a Government Department, Quasi- Government Organization or institution; or
- (iii) By registered Residents Association or a Social Welfare Organisation.

Provided also that the surrendered land shall not be used for purposes other than that envisaged in the scheme.

(2) The surrendering of the land shall be made as per the relinquishing procedure laid out in the Kerala Land Relinquishment Rules, 1958 and the land shall be demarcated and taken into possession by the authority concerned. The existing compound wall or fencing or any structure within the land so surrendered shall be demolished by the owner at his risk and cost and the new boundary shall be demarcated suitably by permanent demarcating structures. The building permit shall be issued only after completing the above procedure.

(3) The Government may, either suo motu or at the request of the Municipality concerned, formulate road widening scheme by free surrender of land with such conditions as it deems fit for the success of the scheme it shall have overriding effect over other provisions of these Rules.

63. Usage of Plot- The usage of plot proposed for the development or redevelopment of land or construction of any building shall be governed by the provisions contained in the Master Plan / Detailed

Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), for the area.

64. Other provisions-

(1) Coverage and Floor Space Index.-

(a) Maximum coverage permissible by the committee constituted under rule 65 shall not exceed 80 per cent for residential, special residential, mercantile or commercial, small industrial and storage occupancy; 60 per cent for assembly, office and industrial occupancy, 50 per cent for educational, medical or hospital and 40 percent for hazardous occupancy under Group I.

(b) The maximum built-up area permissible based on the F.S.I. values for various occupancies shall be calculated as follows.

Built-up area based on F.S.I. permissible as per column (4) as applicable, of table 6 in rule 27 for the extent of the plot prior to surrendering of the land + an incentive built-up area of twice the F.S.I. permissible as per column (4), as applicable, of Table 6 in rule 27 for the extent of land surrendered free of cost.

Provided that the maximum F.S.I. permissible calculated in the above manner shall not exceed the F.S.I. as per column (6) or (8), as applicable, of Table 6 for the entire land.

Provided further that F.S.I. of column (6) or (8) as applicable of Table 6 in rule 27 for the entire land shall be permitted on payment of additional fee at the rate specified in Table 6, for the difference in area if any.

(2) Set back, height, etc.-

(1) For buildings up to 10 m under various occupancies, the mandatory open space/setback from the proposed road boundary to the building shall be reduced by the breadth of the land so surrendered from that side, subject to the minimum of 3.0m from the boundary of the proposed road:

Provided that, in the case of plots up to 125sq.metres of area left after surrendering the land for road schemes other than National Highways and State Highways, the committee constituted under rule 65 may, considering the width of the land, surrendered and left behind shall permit reductions in the said distance to such extent that, after such reduction, there shall be a minimum of 1.50metre distance from the abutting new road boundary:

Provided further that the setbacks on all other sides shall be reduced in proportion to the percentage of the land surrendered subject to a maximum reduction of 50% of the mandatory open space required for the respective occupancies for buildings up to 10m.

Provided also that in the case of high rise buildings safety provisions for high rise buildings as provided in Chapter XVII of these rules shall apply.

(2) In addition to the minimum front, rear and side open spaces required as per(1)above for height up to 10 metres, proportionate increase in such minimum open spaces at the rate of 0.5 metres for every 3 metres height exceeding 10 metres shall be provided.

(3) Notwithstanding anything contained in these rules, in the case of buildings, part of which has been demolished for the purposes specified in rule 62, construction or reconstruction of wall with or without door(s) or shutter(s) shall be permitted on the side abutting the road, without structural alteration:

Provided that the door shutter shall not open outward.

(4) Building lines specified in Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), other than special building lines prescribed considering the urban design or heritage aspects, and general provisions regarding restriction on height with respect to

width of street and front set back shall not apply to the constructions under this chapter.

(3) Parking.-

Parking requirements shall be reduced in proportion to the percentage of land surrendered to the extent that after such deductions a minimum of 75% of the parking required as per these rules shall be provided.

65. Constitution of Special Committees-(1) The Government may, on receipt of a request to that effect from any Municipality or suomotu, if found necessary, by order, constitute a Special Committee, for the purposes of any or all Municipalities, to consider and decide on the application for building permits that may be submitted under the provisions of this Chapter.

(2) The Special Committee shall consist of the following members, namely:-

(i) Mayor of the Municipal Corporation / Chairperson of the Municipality, who shall be the Chairperson of the Committee.

(ii) Chairperson of the Development Authority, if any, constituted for the area

(iii) Senior Town Planner / Town Planner of the District office of the Town and Country Planning Department or an officer not below the rank of a Deputy Town Planner authorized.

(iv) Executive Engineer (Roads), Public Works Department having jurisdiction in the area or an Officer not below the rank of an Assistant Executive Engineer authorized.

(v) Executive Engineer (Buildings), Public Works Department having jurisdiction in the area or an Officer not below the rank of Assistant Executive Engineer authorized.

(vi) Town Planner of the development authority, if any, constituted for the area or an Officer not below the rank of a Deputy Town Planner authorized.

(vii) Secretary of the Municipality concerned, shall be the convener of the Committee.

(vii) One or two representatives of the Department, Authority, Institution, Association or organisation in charge of or responsible for carrying out or proposing or sponsoring the formation or widening of the road or improvement of the junction or other works envisaged under this chapter, co-opted, if so desired by the committee.

(3) The quorum for the meeting shall be four including the Convener and the Chairperson.

(4) The Convener shall, considering the number of applications and urgency of the work to be executed, convene the meetings of the Committee at such place and time, as may be fixed in consultation with the Chairperson, by giving at least seven clear days notice to all the members. Copies of plans pertaining to the applications, required under these rules, along with the agenda notes containing technical report on all the applications shall be forwarded to the members along with the notice.

(5) The convener shall place before the Committee only such applications included in the agenda notes circulated, which otherwise comply with all the provisions of these rules, Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016) , if any, for that area and other relevant statutes, and shall issue permit as decided by the Committee. The Convener shall also maintain detailed registers for the minutes and for the land so surrendered.

(6) The Committee shall initiate and take actions to promote and monitor implementation of the road scheme in total. The Committee may also promote land-pooling scheme wherever feasible to enable the implementation of the scheme in total.

66. Buildings part of which has been demolished for the purposes specified in rule 62- Notwithstanding anything contained in these rules, in the case of buildings part of which has been demolished for the purposes specified in rule 62, even if the land is not freely surrendered, Secretary

shall permit construction or reconstruction of wall with or without door(s), shutter(s) on the side abutting such road, without structural alteration.

Provided that this rule is limited for the purpose of construction or reconstruction of such wall on the side abutting the road affected by the widening/ development of the road.

CHAPTER XI

ACCESSORY BUILDINGS AND SHED

67. Certain buildings and sheds exempted-Permit, as per these rules, is not necessary for the construction of any building used or intended to be used exclusively for the purposes of a plant house or metre house, bathrooms or toilets or cabin for watch and ward or sheds for keeping fuel or firewood for the domestic use of its owner or for keeping agricultural implements, tools, rubbish or other materials or for watching crops or kennel for keeping not more than six dogs ⁹⁸[xxx] all incidental to Group A1 residential occupancy building:

Provided that area of such structures shall be limited to fifteen per cent of the open space.

Provided further that the height of such structure(s) shall be limited to 2.5 metres.

Provided also that the distance from the boundary abutting the road to the accessory building shall be equal to that necessary for a single storeyed residential building.

Provided also that the accessory building shall have minimum 1metre distance from the boundaries and other building(s).

68. Temporary hut or shed-(1)The Secretary may grant permission to a person to erect for a specified period or huts or sheds of a purely temporary nature for stabling or similar purposes or hot mix plant or concrete mix plant, on general conditions as may be fixed by the Council.

(2) The Secretary may, on the failure of the person to demolish or dismantle the shed or hut or hot mix plant or concrete mix plant at the expiry of the period specified, cause it to be demolished or dismantled and the cost thereof shall be recovered from such person as if it were an arrear of property tax due under the Act.

(3) Application for permission to erect temporary hut or shed or hot mix plant or concrete mix plant shall be submitted in white paper typed or written in ink, affixed with necessary court fee stamp and accompanied by document to prove ownership or consent of the owner, if the land is not owned by the applicant.

(4) The Secretary shall, if convinced of the ownership, issue permit with or without condition and specifying the period beyond which the hut or shed or hot mix plant or concrete mix plant shall not be retained.

98.. Omitted the words 'or cattle shed for keeping not more than six cattle and their calves or cage/aviary for keeping not more than twenty hens or ducks,' by SRO no.639/2020 w.e.f.01.10.2020.

CHAPTER XII

WALL AND FENCE

69. Prohibition of commencement of work-- The construction or reconstruction of any wall or fence of whatever height bounding or abutting on any public street or public property or public water course shall not be begun unless and until the Secretary has granted permission for the execution of the work:

Provided that any gate or grill or door or other structure shall not open or project into the adjacent property or street.

70. Submission and disposal of application-(1) An application to construct or reconstruct a wall or fence shall be submitted in white paper, typed or written in ink and affixed with necessary court fee stamp.

(2) Application shall contain site plan and documents to prove ownership.

(3) The site plan shall clearly show all the streets, paths, lanes abutting or leading to the plot and also contain a description of the materials used for the work.

(4) Application fee shall be as in Schedule -I

(5) The Secretary shall, if convinced of the plan and genuineness of the ownership, issue permit not later than 15 days from the date of receipt of the application.

(6) A wall or fence abutting a street junction shall be sufficiently splayed as in rule 23(4).

(7) The permit fee shall be as in Schedule -II.

71. Completion report- The owner shall on completion of the work submit a completion report to the Secretary, in white paper typed or written in ink, specifying the date of completion.

CHAPTER XIII

SPECIAL PROVISIONS FOR CERTAIN CONSTRUCTIONS

72. Special provisions for addition etc. over buildings existing on the 30th March 2000- (1) Notwithstanding anything contained in these rules, alteration or addition or extension of the first floor or the second floor or both and or conversion or erection of roof, shutter or door shall be permitted to buildings existing on the 30th March 2000 subject to sub - rules (2) to (10) of this rule, even though the existing building and proposed floor(s) or work does not satisfy the provisions under rules 23, 26, 28 and the provisions under Chapter V.

Provided that alteration of existing building shall be permitted for the limited purpose of constructing staircase or ramp or flight of steps for use as access to the proposed floors, if such alteration satisfies the provisions under rule 23(2).

Provided further that the owner shall have no right to claim cost or compensation for both the existing building and the proposed floor(s) or any portion thereof if the same is required to be demolished in future for any road widening or development under any scheme approved by Government or an authority under them:

Provided also that the owner shall be responsible for the structural stability and other safety of the building, both the existing and the proposed:

Provided also that the alteration or addition (extension) or other works mentioned in this rule above shall be permitted even if the existing building has one basement floor.

(2) The proposed alteration or addition (extension) shall satisfy the provisions regarding clearance from overhead electric lines specified under Table 2 of rule 22(5) and if such clearance is not available, no objection certificate issued by the Chief Electrical Inspector or an Officer authorised by him shall be produced for issuing permit.

(3) The distance from the boundary abutting road to the proposed second floor over the existing building having ground floor and first shall be that of the first floor, if the said distance is less than that required under rule 23.

(4) The distance from the boundary abutting a road to the proposed first floor or first and second floors over the existing building having ground floor, shall be that of the ground floor, if the said distance is less than that required under rule 23.

(5) In the case of residential or lodging houses and special residential or mercantile/ commercial buildings alteration or addition (extension) of floor(s) or conversion of roof shall be permitted only if the existing building and the proposed floor(s) have average 60centimetres open space from the boundaries of all the plots on its sides including rear:

Provided that if any portion or side of the building abuts the plot boundary or have an open space less than that specified above, a consent document issued by the owner of the plot on the abutting portion/side shall be produced along with the application for permit:

Provided further that not more than two sides shall be permitted to abut the boundary even with such consent document.

(6) In the case of occupancies other than that mentioned under sub-rule(5), alteration or addition (extension) of floor(s) or conversion of roof shall be permitted only if the existing building and the proposed floor(s) have average 1.00 metre open space from all the plots on its sides including rear:

Provided that no industrial occupancy building under Group G2 and hazardous occupancy building under Group I shall be permitted under this rule.

(7) The maximum coverage permissible shall, if the proposed is for first and second floors, be that of the ground floor over which such floors are proposed and if the proposal is for second floor, be that of the first floor over which such floor is proposed:

Provided that the proposed floor(s) shall not extend beyond the limits of the existing building.

(8) The maximum floor space index permissible under this rule shall be as in Table 6 under rule 27(2) and for calculating the maximum floor space index, the built-up area of the proposed construction and built-up area of the existing building shall be taken into account.

(9) Off street parking shall be provided as in Table 9 & 10 under rule 29 for the proposed floor(s) irrespective of whether off street parking is available for the existing building or not:

(10) In the proposed alteration or addition (extension) of first and second floor(s) door shall be permitted only on the side or portion having 1 metre open space, window shall be permitted only on the side or portion having minimum 60 centimetres open space and no opening shall be permitted on the side or portion having less than 60 centimetres open space.

73. Conversion of roof, shutters etc. of buildings existing before the commencement of these rules- (1) Conversion of roof with the same or a different material shall be permitted to any building, irrespective of whether such building conforms to the provision in these rules or not:

Provided that the clear distance of the roof edges from the plot boundaries shall not be reduced from the existing distance, but however where sufficient distance is available, it can be reduced to such extent that the provisions regarding projections permissible into open space as provided in rule 26 is observed.

Provided further that no portion of the roof shall encroach or project into the street or the neighboring plots and water from the roof shall not be allowed to fall into the street or the neighboring plots or the plot boundaries:

Provided also that no permission shall be necessary for conversion of roof with grass, leaf or thatch:

(2) Conversion of shutters or doors with the same or a different material shall be permitted in any building irrespective of whether such building conforms to the provisions in these rules or not:

Provided that the area or height of the building shall not be increased.

74. Construction of additional sheet/tiled roof over the terrace of certain single family residential buildings- (1) In the case of single family residential buildings upto three storeys and height not exceeding 10 metres, Secretary may permit construction of additional sheet/tiled sloping roof, over the terrace floor of such building for a maximum height of ¹⁰⁰[2.4m], if he is satisfied that:

(a) such additional construction over the terrace is done for extra protection of such terrace from rain, and not for any habitable use;

(b) such additional roofed terrace area is kept open on all sides and not enclosed fully or even partly with wall/ grill / Window/ shutter/ any type of partition or the like, other than:-

(i) parapet wall of height upto 1.20 metres,

(ii) columns to support such additional roof,

(iii) portion of such building, including the stair cabin leading to the terrace if any,

(iv) other structures such as water tank, rainwater harvesting arrangements and the like, complementary to the terrace area;

(c) any projection of such additional roof into the mandatory yard is in accordance with the provisions contained in these rules; and

(d) the building, including such additional roof structure also comply with the provisions of the Act and any other law applicable.

(2) Such terrace area covered with additional roof as in sub rule (1) shall not be reckoned to calculate built-up area as per these rules, except for calculation of permit fee.

100. Substituted for the words '1.8m' by SRO no. 639/2020 w.e.f.01.10.2020.

(3) The application fee and permit fee shall respectively be as stipulated in Schedule I and Schedule II as for a pucca building.

(4) Under no circumstance, the height of building including the height of such additional roof, shall qualify that for a high-rise building.

(5) Mandatory clearances, certificates of approval, NOC, concurrences etc. as per these rules or bye laws made under the Act and any other law shall be obtained wherever applicable.

(6) Construction of additional sheet/tiled roof over the terrace of buildings for all occupancies other than single family residential buildings upto three storeys and height not exceeding 10 metres, shall be considered as another floor and shall be taken for the calculation of all mandatory requirements as per these rules.

CHAPTER XIV

WELLS, RAINWATER HARVESTING

75. Wells

1. Essentially of permit-

- (i) No new well shall be dug without the permission of the Secretary.
- (ii) Where any person intends to dig an open well /tube well/bore well, he shall submit an application in the form in Appendix A1 to the Secretary, together with site plan and documents to prove the ownership.
- (iii) The site plan shall show the position and dimension of the well and all existing and proposed buildings and structures in the site and within 7.5 metres radius from that well.

2. Setback-

- (i) The set back from any street shall be as that required for a building.
- (ii) There shall be minimum 1.20 metres set back from other boundaries.
- (iii) The well may be located within or abutting or away from the building in the plot.
- (iv) No leech pit, sock pit, refuse pit, earth closet or septic tank shall be allowed or made within a distance of 7.5 metres radius from any existing well used for supply of water for human consumption or domestic purpose or within 1.2 m distance from the plot boundaries.

3. Wall and surrounding- The well shall be protected with brick wall with minimum 1 metre height.

4. Fees- The application fee and permit fee shall be as in Schedule I and Schedule II respectively.

5. Approval of plan and issue of permit- The Secretary shall, if convinced of the boundaries and plan and bonafides of the ownership approve the plan with or without modification and issue permit. In the case of tube wells, once the clearance from Ground Water Department is obtained by the applicant and furnished, the Secretary shall issue the permit on the same day of receipt of application along with prescribed fee.

6. Validity and extension-(1) The permit once issued shall be valid for three years and cannot be extended.

7. Completion report- The applicant shall submit a completion report to the Secretary, in white paper typed or written in ink, specifying the date of completion.

76. Rain water harvesting:-

(1) Groundwater recharging arrangements-

(i) Unless otherwise stipulated specifically in a Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), workable ground water recharging arrangements shall be provided as an integral part of all new building constructions through collection of roof top rainwater.

(ii) The components of workable groundwater recharging arrangements, as stipulated in sub rule(1) above, shall include:

- (i) Roof gutters
- (ii) Down pipe
- (iii) Filter unit
- (iv) Recharge well or recharge pond or percolation pit

Provided that, open well or pond within the plot can be used as recharge components as mentioned in item (iv) above.

Provided further that, filter unit as mentioned in item (iii) shall be mandatory only in situations where rainwater is recharged directly to the groundwater through open wells, pond and the like.

(iii) In exceptional cases such as water logging or impermeable subsoil conditions to considerable depths, the ground water recharging arrangements for building constructions need not be made mandatory.

(iv) The owner(s)/occupier(s) shall maintain the roof tops and the groundwater recharging arrangements in healthy / working conditions.

(2) Rainwater storage arrangements-

(1) Unless otherwise stipulated specifically in a Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), workable rainwater storage arrangements shall be provided as an integral part of all new building constructions through the collection of roof top rain water for all occupancies, except hazardous occupancy,¹⁰¹[storage occupancy buildings and single family residential buildings constructed in plots having area less than 5cents and/or having built-up area upto 300sq.metres.]

(2) The components of a workable rainwater storage arrangement, as stipulated in sub-rule (1) above, shall include: -

- (i) Roof gutters
- (ii) Down pipe and first flush pipe arrangement
- (iii) Filter unit and
- (iv) Storage tank with provisions for drawing water and spill over.

(3) The minimum capacity of the storage tank, as stipulated in sub-rule (2)(iv) of the rain water storage arrangement shall be at the rate given below:

Group A1	25 litres/sq. metre of Covered area
Group A2	25 litres/sq. metre of Covered area
Group B	50 litres/sq. metre of Covered area
Group C	50 litres/sq. metre of Covered area
Group D	50 litres/sq. metre of Covered area
Group E	50 litres/sq. metre of Covered area
Group F	25 litres/sq. metre of Covered area
Group G1 & Group G2	50 litres/sq. metre of Covered area
Group J	25 litres/sq. metre of Covered area

Note: - Covered area means the area mentioned in item (aa) of sub-rule (1) of rule 2.

(4) The owner(s)/occupier(s) shall maintain the roof tops and the rain water storage arrangements in healthy working conditions.

(5) If both ground water recharging arrangements and rain water storage arrangements are required to be provided as laid out in this chapter, in addition to rain water storage arrangements, arrangements for carrying the spill over water from storage tank to recharge well or recharge pond or percolation pit need only be provided.

3. Urban Forestry- As per section 4 of The Kerala Promotion of Tree Growth in Non-Forest Areas Act, 2005 (46 of 2005);

(1) Every owner or occupant of a land other than single family residential building shall, within a period of one year from the date of issue of occupancy certificate, plant trees so as to conform to the standards prescribed by Secretary from time to time.

101. Inserted by SRO no. 639/2020 w.e.f. 01.10.2020

(2) Planting of trees shall be made at the rate of minimum of one tree per 450 sqm of plot area for plots exceeding 450 sq. metres of area. Total number of trees would include the existing trees in the plot also.

(3) A space of minimum 1 m X 1.5 m has to be provided for planting trees.

(4) It shall be the duty of the owner or occupier of the land who is required to plant a tree or trees to ensure that they grow properly.

CHAPTER XV

SOLAR ASSISTED WATER HEATING/LIGHTING SYSTEM

77. Rooftop Solar Energy Installations-(1)The following categories of new buildings with total built-up area exceeding 500 sq. metres shall be provided with Rooftop Solar Energy Installations (Rooftop photovoltaic power station, or rooftop PV system) ¹⁰²[covering a minimum of 50 % of the roof area].:-

- GroupA1 Apartment houses or residential flats
- GroupA2 All buildings under Lodging houses and specialresidential
- GroupC Medical or hospital buildings (withinpatients)
- GroupD Community halls, Auditorium, weddinghalls

Provided that, there shall be provision for Rooftop Solar Energy Installations in the case of single family residential building having built-up area for more than 400 sq.metres.

(2) Such buildings shall have open area on the roof top, which receives direct sunlight where the Rooftop Solar Energy Installations can be installed.

(3) The Secretary shall, before issuing occupancy certificate, ensure that all new buildings mentioned in sub rule (1) have completed installation of Rooftop Solar Energy Installations.

78. Solar assisted water heating system in buildings- (1)All new buildings with total built-up area exceeding 500 sq. metres in the following categories in which there is a system of installation for supplying hot water shall also have an auxiliary solar assisted water heating system:-

- GroupA1 Apartment houses or residential flats
- GroupA2 All buildings under Lodging houses and specialresidential
- GroupC Medical or hospital buildings (withinpatients)
- GroupD Community halls, Auditorium, weddinghalls

Provided that, there shall be provision for solar water heater system in the case of single family residential building having built-up area for more than 400 sq.metres.

(2) Such buildings shall have open area on the rooftop, which receives direct sun light where the solar water heating system can be installed. There shall be provisions for continuous water supply to the solar water heating system and for distribution of hot water from the solar water heating system to various distribution points where hot water is required through insulated pipe lines.

(3) The water storage capacity requirements of the solar water heating system shall be decided on each case by the registered Institution/Architect/Engineer/Building Designer/Supervisor, as the case may be. The recommended minimum capacity shall not be less than 25 litres per day for each bathroom and kitchen, subject to the condition that maximum of 50% of the total roof area is provided with the system.

(4) Specifications: Installation of Solar Assisted Water Heating Systems shall conform to BIS specification IS 12933. The solar collectors used in the system shall have the BIS certification mark.

(5) The Secretary shall, before issuing occupancy certificate, ensure that all new buildings mentioned in sub-rule (1) have completed installation of solar assisted water heating system.

(6) Buildings under the purview of sub rule (5) of rule 5 shall follow Kerala State Energy Conservation Building Code (KSECBC) Standards. Residential facilities, hotels and hospitals with a centralized system (other than Systems that use heat recovery¹⁰³[xxx]) shall have solar water heating ¹⁰³[xxx].

102.Substituted for the words'so as to generate minimum 5% of the connected load' by SRO no. 639/2020 w.e.f.01.10.2020.

103.Omitted the words 'for at least 1/5 of the design capacity'by SRO no.639/2020 w.e.f.01.10.2020.

CHAPTER XVI

WASTE DISPOSAL

79. Waste management- (1) Every new building shall be provided with provisions for segregation of waste wherever applicable and safe disposal of waste.

(2) Every new building of built-up area exceeding 100 sq.metres shall be provided with septictankofsuitablesizeunlessitisconnectedtoapublicseweragesystemorsewage treatment plant. The design criteria and construction shall be as per the Code of Practice for the septic tanks – IS 2470.

(3) Every new residential building of built-up area exceeding 300 sq.metres shall be provided with suitable systems such as bio gas plants etc. for the disposal of bio degradable waste, unless there exist organized system for collection and disposal of such waste. For all other occupancies waste management system as stipulated by Pollution Control Board shall be provided.

(4) Leech pit, sock pit, refuse pit or septic tank shall have a minimum distance of 1.20 metres from the plotboundaries.¹⁰⁴[For single family residential buildings, this distance shall be reduced to 30 centimetres.]

(5) In wedding halls where cooking and dining facilities are provided, proper and adequate arrangements for collection and hygienic disposal of solid and liquid waste shall be ensured to the satisfaction of the Secretary.

(6) ¹⁰⁵[Water Reuse for gardening etc.: All buildings under Group A1 (Residential apartments only) and A2 occupancy having total built-up area more than 2000 sq.metres and all buildings under B, C, D, E, F and J occupancies having total built-up area more than 5000 sq.metres and all buildings under G1, G2 and I occupancy shall incorporate in-situ liquid waste treatment plant and special provision for reusing treated waste water generated out of the use of water.]

¹⁰⁶[XXX]

¹⁰⁷[**79A. Management of Construction and Demolition Waste**– (1) Every permit holder for construction of a building, and for demolition of an existing building or concrete structure shall be responsible for safe disposal of waste generated during the process of such construction and demolition in accordance with the Construction and Demolition Waste Management Rules 2016

(2) The Government shall from time to time fix the Waste disposal charges for municipalities or a group of municipalities payable by applicants at the time of submitting applications seeking permits. It shall be competent for Government to fix differential charges depending on load and distance factor.

(3) The Government shall in consideration of the provisions of the said Rules by notification provide for mechanisms for transportation, utilization, processing and downstream uses of the finished and intermediary products for construction and other purposes including their mandatory usage in specific types of infrastructure.

104. Inserted by SRO no. 639/2020 w.e.f.01.10.2020.

105. Sub-rule substituted by SRO no. 639/2020 w.e.f.01.10.2020. Prior to substitution it read as 'Water Re-use and Recycling: All buildings under Group A1 (Residential apartments only) and A2 occupancy having total built-up area more than 2000 sq. metres shall incorporate in-situ liquid waste management treatment plant and special provision for recycling and reusing of waste water generated out of the use of water'

106. Sub-rule omitted by SRO no. 639/2020 w.e.f.01.10.2020. Prior to omission it read as 'Water Re-use and Recycling: All buildings under B, C, D, E, F and J occupancies having total built-up area more than 5000 sq. metres and all buildings under G1, G2 and I occupancy shall incorporate in-situ waste liquid waste management treatment plant and special provision for recycling and reusing of waste water generated out of the use of water.'

107. Rule 79A added by SRO no. 628/2020 w.e.f.01.10.2020

(4) Municipalities shall establish or cause to establish waste processing facilities for such wastes on Public Private Partnership mode or outsourced model or lease franchise model or on any structure utilizing the funds accrued from the charges and other receipts with them including plan fund.

(5) The Government shall provide technical and financial support to Municipalities for the above purposes.

CHAPTER XVII

SAFETY PROVISIONS FOR HIGHRISE BUILDINGS

80. High rise building- For the purposes of this Chapter, 'high rise building' means a building having a height of 16 metres or more, or with more than ¹⁰⁸[5] floors (excluding basement floor(s)), other than telecommunication towers/poles.

In the case of high rise buildings, the provisions in these rules elsewhere shall apply subject to modification in this chapter.

81. Safety provisions-***(1) Staircase.-**

(1) Every high rise building shall have at least two staircases, including fire escape staircases.

(2) The height of the handrail in the staircase shall not be less than 90 centimetres and if balusters are provided no gap in the balusters shall be more than 10 centimetres wide.

***(2) Guard rails or parapets.-**

Every balcony overlooking any exterior or interior open space shall be provided with parapet walls or guard rails of height not less than ¹⁰⁹[1.20metres] and such guard rails shall be firmly fixed to the walls and slabs and may also be of blank walls, metal grills or a combination of both.

Provided that if metal grills are used they shall not be made of continuous horizontal members to prevent climbing on them:

Provided further that guard rails shall not be made of glass or any similar material which are not reinforced to prevent breaking.

The spacing between the grills/ rails should be less than 10centimetres.

(3) Fire escape staircase.-

Every highrise building shall be provided with a fire escape stairway and shall be as specified in rule 35.

(4) Ducts.-

(i) Every opening to interior or exterior duct shall be provided with protective covering consisting of strong parapet wall having not less than 90 centimetres height from every floor level and the portion above such parapet wall shall be provided with openable and lockable shutters fixed with opaque or translucent glass which do not cause splinters when broken; the shutters shall be provided with opaque metal sheets or with metal grills or bars either in the front or on the rear.

(ii) Parapet walls of 1.2metres height should also be provided around duct openings at the terrace level. At the top of the duct, metal grills or bars may be provided either above or below the top cover of the duct so as to reinforce the protection. The spacing between the members shall not be more than 10 centimetres.

(iii) All windows at a height of not less than 2metres from ground level which can be opened to an open space either interior or exterior shall be fitted with sufficiently strong metal grills or bars in such a way that the spacing between the members is not more than 10 centimetres.

(iv) All Openings at various floor levels to vertical duct, provided for the purpose of lighting and ventilation shall be at a height of not less than 1.5metres from the respective floor level. The openings shall be fitted with grill mesh of size not more than 10centimetres x 10centimetres.

108.Substituted for the figure '4' by SRO no.628/2020 w.e.f.01.10.2020.

*The font style is 'Regular' in the official publication. Here 'Bold' font style is used as in the style used for items (3) to (11) "

109.Substituted for the figures and symbol and word '1.50 metres' by SRO no.628/2020 w.e.f.01.10.2020.

(5) Access.- The minimum width of access to a high rise building and plot as well as the minimum existing width of the street giving access to the plot from the main street shall be **5metres** or as prescribed elsewhere in these rules, whichever is higher.

(6) Open spaces.-

(i) Clear motorable open spaces of minimum 5 metres width to facilitate fire-fighting shall be provided for the building at any two adjacent sides, of which, one is contiguous to the street/access. Such motorable open spaces shall be kept free of vehicle parking or any other erections or projections thereon other than projections of roof or weather shade or cornices of not more than 75 centimeters width. However, ramp provided as access to the basement floor can be given in this open space if through movement of fire engine is not obstructed in any way.

(ii) In case a group of buildings are to be constructed within any plot belonging to the same owner or by different owners of adjoining lands jointly, the area of the land remaining after accounting for the mandatory front, rear and side yards from the boundary of the plot shall be considered as buildable area of the plot where the buildings may be constructed subject to the conditions regarding floor space index, coverage, access, light & ventilation etc. for the whole plot, distance between the various blocks within this area shall be a minimum of 5 metres.

***(iv)** Adequate passage way and clearances required for fire fighting vehicles to enter the premises shall be provided at the main entrance; the width of such entrance shall be not less than 5 metres or as stipulated elsewhere in these rules, whichever is higher. If an arch or covered gate is constructed, it shall have a clear headroom of not less than 5 metres.

(7) Lift for residential apartments.-

Every high rise apartment building having more than 16 dwelling units shall be provided with at least one lift capable of carrying a stretcher:

Provided that if only one lift is required for the building as per the rule 40, that lift shall be one capable of carrying a stretcher.

(8) Parapets of terrace floor.-

Where access is provided over the terrace floor or to the terrace floor, the edges of the terrace floor shall be provided with parapet walls made of stable materials to a height of not less than 120 centimetres.

(9) Structural design.-

Application for construction or reconstruction or addition or alteration of any high rise building shall be accompanied by one set of structural design, including that regarding seismic forces as per the provisions contained in the National Building Code of India as amended from time to time and certified drawings and a structural stability certificate prepared and issued by a StructuralEngineer.

Provided that the provisions regarding the height of building as specified in the National building code of India, 2016 shall not apply to multiplexes.

(10) Safety Plan.-

In the case of High rise buildings, every application for approval shall be accompanied by safety plan suitable for the proposed construction in accordance with the Health and Safety Manual published by the Labour Department.

***Clause (iii) is not seen in the official publication**

(11) Site supervision:-

(1) The owner shall appoint a person, registered or deemed to have been registered under the provisions of Chapter XXI, competent to supervise such works as per Appendix H2 of these rules, as full time supervising professional at the site, from the commencement to the completion of the work. Such person shall have a minimum of 3 years of experience in supervising works of similar nature.

Provided that, no activities shall be undertaken at the site in the absence of such site supervising professional.

(2) The owner shall intimate the Secretary, the details of the appointed supervising professional including his/her date of appointment, photo identity proof and proof of experience along with a copy of the acceptance of appointment duly signed by the supervising professional. The owner shall also intimate the Secretary in writing about replacement, if any, of such supervising professional together with all details specified above without any delay.

Provided that if the work is executed through any person/persons or agency/agencies like developer, the responsibility of appointment of site supervising professional as stipulated in this rule shall be vested with such person/persons or agency / agencies.

(3) The supervising professional shall:-

(i) Ensure that the construction is carried out as per the approved plans, specifications and structural design.

(ii) Take adequate safety precautions at all stages of construction or reconstruction or addition or alteration or repair or demolition or removal of the various parts of the building for safe guarding the life of workers and public against hazards consequent on any aspect of the work.

(iii) Ensure that all protective works carried out to safe guard the adjoining properties during construction are sufficient and in good order to ensure safety.

(iv) Ensure at every stage of construction, that the quality of construction and/or materials used for construction is as per the specifications for that work.

(v) Ensure that the debris, construction wastes or materials are safely and clearly disposed.

82. Display of the details of the permit etc.- (1) For the entire period of construction, the owner shall display the details of the building permit near the entrance to the site in a board of size not less than 100 centimetres X 75 centimetres. The details to be displayed include the date and the number of building permit, name and address of the owner and developer with phone number, the occupancy group of the building, the number of floors, coverage, F.S.I., area earmarked for parking in sq.metres and the use in each floor.

(2) Prior to commencement of the construction, all sides of the plot shall be covered with protective fencing and screen to ensure safety and convenience of the adjoining properties. Such protective fencing and screen shall be retained throughout the construction period.

(3) Adequate safety measures shall be ensured by the owner and the developer for protection against damage to health, life, buildings and property of the inhabitants around, during and after building construction and land development. The owner and developer shall be solely responsible for any such damages.

^{109A}CHAPTER XVIII

TELECOMMUNICATION TOWERS

83. Essentiality of permit.- No person shall erect or re-erect any non-Governmental telecommunication tower or telecommunication pole structures or accessory rooms or make alteration or cause the same to be done without first submitting an intimation in Appendix A5 along with the required documents and fees to the Secretary for each such tower or telecommunication pole structures.

84. Special Provisions.-

(1) Distance from road and boundaries:-

(i) The base of the tower or poles shall have minimum 3 meters distance from the plot boundary abutting the road, whether it is proposed on land or over a building, even if the building is having less than 3 meters distance:

Provided that the distance from road boundary to the accessory rooms such as equipment rooms, shelters, or generator rooms proposed over a building shall be that of the building.

(ii) In addition to the distance specified under sub-rule(1), set back required for road widening proposed in any Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (Act 9 of 2016), shall also be provided.

(iii) Distance from other boundaries of the plot to the base of the telecommunication tower or pole or structure or accessory rooms shall be minimum 1.20 meters:

Provided that if the telecommunication tower or pole structures or accessory rooms are proposed over a building, the distance from the boundaries other than that abutting a road, shall be that of the existing building;

Provided further that if the building abuts any plot boundary and the telecommunication tower or pole structures or accessory rooms are also proposed to abut that boundary then consent of the owner of the plot on the abutting side shall be obtained and produced along with the intimation;

Provided also that no portion of the telecommunication tower, pole structure or accessory room shall project or over hang into the neighboring plots.

109A. Chapter XVIII substituted by SRO no. 100/2023 17.01.2023. Before substitution it read as

"CHAPTER XVIII

TELECOMMUNICATION TOWERS

83. Essentiality of permit.-No person shall erect or re-erect any non-Governmental telecommunication tower or telecommunication pole structures or accessory rooms or make alteration or cause the same to be done without first obtaining a separate permit for each such tower or telecommunication pole structures from the Secretary.

84. Special Provisions.-

(1) Distance from road and boundaries.-

(i) The base of the tower or poles shall have minimum 3 metres distance from the plot boundary abutting the road, whether it is proposed on land or over a building, even if the building is having less than 3 metres distance:

Provided that the distance from road boundary of the accessory rooms such as equipment rooms, shelters, or generator rooms proposed over a building shall be that of the building.

(ii) In addition to the distance specified under sub rule (1)(i), set back required for road widening proposed in any Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), shall also be provided.

(iii) Distance from other boundaries of the plot to the base of the telecommunication tower or pole or structure or accessory rooms shall be minimum 1.20metres:

Provided that if the telecommunication tower or pole structures or accessory rooms are proposed over a building, the distance from the boundaries other than that abutting a road, shall be that of the existing building;

(2) Provisions regarding F.S.I. and height:-

The provisions regarding F.S.I., coverage, height restriction with regard to width of road and distance from the boundary abutting road and dimension of parts of building shall not apply to telecommunication towers or pole structures or accessory rooms such as equipment rooms, cabins, shelters or generator rooms.

Provided that the height of the telecommunication towers or pole structures or accessory rooms, including the height of the building if they are proposed over a building, shall be restricted as in sub-rule(2) and (3) of rule 24.

Provided further that additional distance from boundary abutting the road and other boundaries of the plot proportionate to increase in height of the tower shall not be necessary for the telecommunication tower or pole structures or accessory rooms or for the building over which they are proposed.

(3) Accessory rooms: -

(i) In case of accessory rooms such as equipment rooms, cabins or generator rooms essential for the service that are to be installed along with a telecommunication tower or telecommunication pole structure or separately, plans/drawings of the rooms shall be attached either along with the intimation to Secretary or separately.

(ii) The accessory room may be made with any material but shall be used only for housing equipment related to the operation of telecommunication tower or telecommunication pole structure. The installation of electricity generator is allowed with insulated sound-proof cabin only.

(iii) Every construction or installation, ancillary or necessary for the telecommunication system other than telecommunication tower, pole structures, and accessory rooms shall conform to the relevant rules applicable to such construction or installation and license or permit required under such rules shall also be obtained.

(iv) The telecommunication tower or ancillary structures shall not prevent or block the access, exit or entry or reduce the width of such access, exit or entry of building or in no way badly affect the safety measures or amenities provided in the building in which it is erected.

(4) Electrical line clearance:-

Every tower or ancillary construction shall satisfy the minimum vertical and horizontal clearance from electrical lines as stipulated in the Indian Electricity Act, 1910 and Indian Electricity Rules, 1956 as amended from time to time and also any regulation issued by the State Electricity Board.

(109A. Chapter XVIII before substitution)

Provided further that if the building abuts any plot boundary and the telecommunication tower or pole structures or accessory rooms are also proposed to abut that boundary then consent of the owner of the plot on the abutting side shall be obtained and produced along with the application for permit:

Provided also that no portion of the telecommunication tower, pole structure or accessory room shall project or over hang into the neighboring plots.

(2) Provisions regarding F.S.I. and height.-

The provisions regarding F.S.I., coverage, height restriction with regard to width of road and distance from the boundary abutting road and dimension of parts of building shall not apply to telecommunication towers or pole structures or accessory rooms such as equipment rooms, shelters or generator rooms.

Provided that the height of the telecommunication towers or pole structure or accessory rooms, including the height of the building if they are proposed over a building, shall be restricted as in sub rule(2) and (3) of rule 24.

Provided further that additional distance from boundary abutting the road and other boundaries of the plot proportionate to increase in height of the tower shall not be necessary for the telecommunication tower or pole structures or accessory rooms or for the building over which they are proposed.

(3) Accessory rooms.-

(i) Accessory rooms such as equipment rooms, shelters or generator rooms essential for the service shall be permitted along with a telecommunication tower or telecommunication pole structure or separately, if a request is made in the application and plans/drawings of the rooms are attached either along with the application for permit or separately.

(5) Protective Wall:-

(i) Every tower erected on the ground and through which electric power is transmitted or passed shall be provided with protective wall or grill at a distance of minimum one meter from any point of the base.

(ii) The wall or grill shall have a minimum of 1.20 meters height and shall be kept under lock and key, if provided with door.

(6) Protection from lightning:-

Every telecommunication tower shall be provided with sufficient protection against lightning, conforming to I.S. 2303-1969-Code of Practice, as amended from time to time.

(7) Warning lights and colour specifications:- Every telecommunication tower, above 40 meters height, shall be provided with Warning Lights (ANL) and colour specifications as stipulated by the Telecommunication Department or any other applicable statutes.

85. Damage and liability.-(1) The applicant/owner/Telecom service provider shall be responsible for the structural stability of the telecommunication tower and the building in which it is erected and for any damage caused due to inadequate safety measures.

(2) Erection of any telecommunication tower or pole structures or accessory rooms shall be done only over authorised buildings which are structurally safe.

86. Town Planning Scheme provisions.- Telecommunication towers or pole structures or accessory rooms can be erected in any zone of Master Plan/Detailed Town Planning Scheme/Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (Act 9 of 2016) if any, or over any building irrespective of its occupancy.

(109A. Chapter XVIII before substitution)

(ii) The cabin may be made with any material but the area of such cabin shall not exceed 15 sq. metres and the installation of electricity generator is allowed with insulated sound-proof cabin only.

(iii) Every construction or installation, ancillary or necessary for the telecommunication system shall conform to the relevant rules applicable to such construction or installation and license or permit required under such rules shall also be obtained.

(iv) The telecommunication tower or ancillary structures shall not prevent or block the access, exit or entry or reduce the width of such access, exit or entry of building or in no way badly affect the safety measures or amenities provided in the building in which it is erected.

(4) Electrical line clearance.-

Every tower or ancillary construction shall satisfy the minimum vertical and horizontal clearance from electrical lines as stipulated in the Indian Electricity Act, 1910 and Indian Electricity Rules, 1956 as amended from time to time and also any regulation issued by the State Electricity Board.

(5) Protective Wall.-

(i) Every tower erected on the ground and through which electric power is transmitted or passed shall be provided with protective wall or grill at a distance of one metre from any point of the base.

(ii) The wall or grill shall have a minimum of 1.20 metres height and shall be kept under lock and key, if provided with door.

(6).Protection from lightning.-

Every telecommunication tower shall be provided with sufficient protection against lightning, conforming to I.S. 2303-1969-Code of Practice, as amended from time to time.

(7). Warning lights and colour specifications.-

(i) Every telecommunication tower shall be provided with two Aviation Warning Lights (ANL) each at 40 metres and 70 metres height from the ground level and one at the top, the two lights at 40 metres height shall be fixed in one set of opposite and that at 70 metres height shall be fixed at the other set of opposite corners.

(ii) Every telecommunication tower shall be painted with international orange and international white colors alternatively each with 5 metre band, starting with international orange at the top.

85. Damage and liability.-(1) The applicant/owner shall be responsible for the structural stability of the telecommunication tower and the building in which it is erected and for any damage caused due to inadequate safety measures.

87. Submission of intimation.-(1) Intimation for erection or re-erection or alteration of any nonGovernmental telecommunication tower or telecommunication pole structures or accessory rooms shall be submitted to the Secretary in the form in Appendix A5 along with the following documents:-

- (i) Two copies of site plan, location, elevation, sectional elevation for Telecommunication towers and two copies of site plan and location plan in the case of telecommunication pole structures;
- (ii) structural stability certificate if required as per these rules;
- (iii) copy of agreement executed with department of Telecommunications or license or permit issued by an authority approved by Government of India from time to time;
- (iv) document to prove ownership;
- (v) receipt of payment of fee for erection Telecommunication towers or pole structures or accessory rooms;
- (vi) required NOC as per rule 5(4) of these rules and other applicable statutes.

The submission of intimation gives the right for the applicant to proceed with commencement of work.

Note:- (1) Ownership document may be property tax receipt or land tax receipt or mortgage deed or deed of agreement or license or consent document.

(2) No structural stability certificate shall be necessary in the case of telecommunication pole structures and accessory rooms.

(.....109A. Chapter XVIII before substitution)

(2) Erection of any telecommunication tower or pole structures or accessory rooms shall be permitted only over authorised buildings which are structurally safe.

86. Site approval etc.-(1) No site approval shall be necessary for the construction of telecommunication towers, telecommunication pole structures or accessory rooms essential for such service.

(2) Telecommunication towers or pole structures or accessory rooms shall be permitted in any zone of Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 (9 of 2016), if any, or over any building irrespective of its occupancy.

87. Submission of application and its disposal.-(1) Application for permit shall be submitted to the Secretary in the form in Appendix A1 along with two copies of site plan, location, elevation, sectional elevation, structural stability certificate if required as per these rules, copy of agreement executed with department of Telecommunications or license or permit issued by an authority approved by Government of India from time to time and document to prove ownership.

Note. - (1) Ownership document may be a sale deed or mortgage deed or deed of agreement or license or consent document, etc.

(2) No structural stability certificate shall be necessary in the case of telecommunication pole structures and accessory rooms.

(3) In case the telecommunication tower is proposed above any building, structural stability certificate shall be submitted in respect of that building also.

(4) The site plan shall show plot dimensions, access street width, details of existing structures within the plot with their uses, height, number of floors, set back from the plot boundaries and between them; proposed tower and ancillary structures.

(5) The structural stability certificate shall be prepared and issued by a Structural Engineer registered as per these rules. In the case of towers erected by Central or State Government or Quasi- Government Organisation, the structural stability certificate may be prepared and issued by a competent engineer employed in such firms. The drawings submitted shall also be duly certified for the structural stability.

(6) Application fee shall be Rupees one thousand and permit fee shall be:-

- (a) For towers of any height, rupees ten thousand;
- (b) For pole structures (one unit with any number of poles) rupees two thousand and five hundred.
- (c) No separate application fee shall be necessary for the accessory rooms essential for the use of telecommunication tower or pole structures but permit fee shall be remitted corresponding to their area as in the case of a pucca building.

(7) For the purpose of levying fee, the height of the tower shall be taken from the base of the tower and not from the base of the building.

(3) In case the telecommunication tower is proposed above any building, structural stability certificate shall be submitted in respect of that building also.

(4) The site plan shall show plot dimensions, access street width, details of existing structures within the plot with their uses, height, number of floors, set back from the plot boundaries and between them; proposed tower and ancillary structures for telecommunication towers. In the case of telecommunication pole structures, the site plan shall show plot dimensions, details of the existing structure and proposed location of the pole structure in the existing site.

(5) The structural stability certificate shall be prepared and issued by a Structural Engineer registered as per these rules. In the case of towers erected by Central or State Government or Quasi-Government Organisation, the structural stability certificate may be prepared and issued by a competent engineer employed in such firms. The drawings submitted shall also be duly certified for the structural stability. In the case of telecommunication pole structures, structural stability certificate is not necessary. (6) Fee for erection or re-erection or alteration of any non-Governmental telecommunication tower or telecommunication pole structures or accessory rooms shall be:-

(a) For towers of any height, rupees ten thousand;

(b) For pole structures rupees two thousand and five hundred; and

(c) For the accessory rooms essential for the use of telecommunication tower or pole structures, fee, at the rate of Rs.15 per sq. m. of built-up area shall be remitted.

88. Completion Report.-(1) After completion of the work of the telecommunication tower or pole structures and accessory rooms the applicant and /or the service provider and the engineer shall submit a completion report in writing to the Secretary along with a copy of the intimation submitted to the Secretary prior to the construction of the telecommunication tower or pole structures and accessory rooms as the case may be.

(2) The Secretary can carry out inspection to check whether the telecommunication tower or pole structures and accessory rooms are erected as per the provisions in these rules at any time.]

(.....109A. Chapter XVIII before substitution)

(8) The Secretary shall, if convinced of the boundaries and ownership of the plot, plan and drawings and genuineness of the certificates, issue permit, not later than 15 days from the date of receipt of the application.

(9) The permit issued under sub rule(8) shall be a work permit and the construction or erection of telecommunication tower or telecommunication pole structures or accessory rooms essential for the use of such tower or pole structures shall be completed within one year from the date of issue of the permit.

(10) The period of the permit shall be extended for a further period of one year if an application for the same is submitted to the Secretary, within the valid period of the permit.

(11) The application for extension of the period of permit shall be submitted in white paper, typed or written in ink, affixed with necessary court fee stamp; original permit shall also be attached.

(12) No application fee shall be necessary for extension of period of permit but fee for extension shall be equal to fifty per cent of the fee for original permit in force at the time of extension.

[88. Completion report].-(1) After completion of the work of the telecommunication tower or pole structures and accessory rooms as per permit, the applicant and the engineer shall submit to the Secretary [completion report] as in Appendix E1 and Appendix E3 respectively, along with a certificate of structural safety / stability of the tower and the building, if the tower or pole is constructed over a building.

(2) The Secretary shall, if satisfied that the work has been completed as per permit, issue use certificate as in Appendix F2 not later than 15 days from the date of receipt of the [completion report] allotting a number, included in a different series from that allotted to buildings, on the basis of which the authorities concerned may allow power connection, etc. for use of the service.

Provided that if no such use certificate is issued within the said 15 days, the applicant /owner may proceed as if such use certificate has been duly issued to him.

CHAPTER XIX

ACTION AGAINST UNAUTHORIZED CONSTRUCTIONS

89. Deviation during construction and power of Secretary to require alteration in work.-(1) The applicant shall, if he intends to make any deviation from the approved plan or specification, submit revised plans and drawings and obtain permit afresh, against the previous permit.

Provided that in such cases the permit fee in excess of the original permit fee already remitted need only be paid and the date of expiry of the permit shall be that of such previous permit;

Provided further that no permit is necessary for effecting minor deviations such as shifting the position of access to plots in the case of lay outs and shifting the position of rooms, stairs, lifts, windows, doors or ventilators and their sizes in the case of building constructions if they do not conflict with these rules;

Provided also that the deviations mentioned in the above proviso shall be incorporated in the completion plan and submitted along with ³⁵[completion report].

(2) Where it comes to the notice of the Secretary that a work:-

- (i) is not in accordance with the plans or specifications approved;
- (ii) is in contravention of any of the provisions of the Act or these rules, bye-law or declaration made thereunder;

he may, by notice, require the person for whom such work is done:-

- (a) to make such alterations as may be specified in the notice with the object of bringing the work in conformity with the plans or specifications approved or the provisions so contravened; or
- (b) to show cause why such alterations should not be made; within such period as may be specified in the notice:

Provided that any construction carried out in deviation of the approved plan or specific conditions, shall not be required to be altered as per the approved plan if such construction does not violate the provisions or specific conditions contained in the Act or these rules.

(3) Where the person to whom the notice under sub-rule (2) is issued does not show cause as aforesaid, he shall be bound to make the alterations specified in such notice.

(4) Where the person to whom the notice under sub-rule (2) is issued shows sufficient cause as aforesaid, the Secretary may, cancel the notice and in other cases, by order confirm or modify the notice.

90. Demolition or alteration of work unlawfully commenced, carried on or completed.-(1) Where the Secretary is satisfied-

(a) that the construction, reconstruction or alteration of any building or digging of any well:-

- (i) has been commenced without obtaining the permission of the Secretary or in contravention of the decision of the Council; or
- (ii) is being carried on, or has been completed otherwise than in accordance with the plans or specifications on which such permission or decision was based; or
- (iii) is being carried on or has been completed in breach of any of the provisions contained in the Act or these rules or bye-law or order made or issued thereunder or any direction or requisition lawfully given or made thereunder; or

(b) that any alteration required by notice issued regarding deviation has not been duly made; or

35. Substituted for the word ' completion certificate' by SRO no.628/2020 w.e.f.01.10.2020.

(c) that any alteration of or addition to any building or any other work made or done for any purpose in or upon any building has been commenced or is being carried on or has been completed in contravention of the provisions regarding accessory buildings and sheds.

he may make a provisional order requiring the owner or the person for whom the work is done to demolish the work done or so much of it as, in the opinion of the Secretary, has been unlawfully executed or to make such alterations as may, in the opinion of the Secretary, be necessary to bring the work in conformity with the provisions of the Act, these rules, bye-laws, direction, order or requisition as aforesaid, or with the plans and specifications on which such permission or decision was based, and may also direct that until the said order is complied with, the owner or such person shall refrain from proceeding with the work.

(2) The Secretary shall serve a copy of the provisional order made under sub-rule (1) to the owner or the person for whom such work is done together with a notice requiring him to show cause within a reasonable time to be specified in such notice why the order should not be confirmed.

(3) ¹¹⁰[Where the owner or the person for whom the work is done fails to show cause to the satisfaction of the Secretary, the Secretary may confirm the order or modify the same to such extent as he may think fit to make, and such order shall then be binding on the owner or the person for whom the work is done and on the failure to comply with the order, the Secretary may himself cause the building or part thereof demolished or the well dismantled, as the case may be, and the expenses thereof shall be recoverable from the owner or such person.]

*Provided that, any construction or reconstruction or addition or alteration of any building or digging of any well, commenced, being carried on or completed without obtaining approved plan or in deviation of the approved plan shall not be directed to be altered or demolished, if such construction or reconstruction or addition or alteration of building or digging of well does not violate any provisions or specific conditions contained in the Act or these rules and may be considered for regularization under the provisions in these rules.

(4) Notwithstanding anything contained in sub-rule (2) or sub-rule (3), the Secretary may also initiate prosecution proceedings against the owner or the person for whom the work has commenced, being carried on or has been completed.

(5) The Government may, either suo motu or on application made by any person aggrieved, after examining the records and giving an opportunity to be heard for the applicant and the person who has carried out the construction or reconstruction or alteration or addition of any building or any structure or digging of any well as in sub-rule (1) and Secretary, if convinced that the construction or reconstruction or alteration or addition of the building the structure or digging of the well has been carried out violating the provisions contained in the Act or these rules or any other rules issued under the Act or any lawful direction issued by the Government or Secretary, direct the Secretary to revoke the permit and/or stop the work and/or require to modify the construction and/or demolish the construction or reconstruction or alteration or addition or fill up the well within a period to be specified in that direction. The Government may also directly revoke the permit and/or stop the work in such cases.

(6) The Government may, if the Secretary fails to execute the direction issued under sub-rule (5) to demolish a construction or reconstruction or alteration or addition or fill up the well within the period specified therein, make necessary arrangements for the same and may recover the expenses from the Municipality concerned.

91. Order of stoppage of building works in certain cases.-(1) Where the erection of any building or the execution of any work has been commenced or is being carried on (but has not been completed) without obtaining the permission of the Secretary or in contravention of any decision of the Council or any provision in the Act or these rules or byelaws made there under or any lawful direction or requisition given or made under the Act or these rules or byelaws made there under, the Secretary may without prejudice to any other action that may be taken under these rules, by order require the person at whose instance the building or the work has been commenced or is being carried on, to stop the same forthwith. The status of the work at the time of issuance of stoppage of work may be noted by Secretary.

110. Inserted by SRO no.628/2020 w.e.f.01.10.2020.

*The existing sub rule is entered as a 'Proviso' to the newly inserted portion though it is not prescribed in the amendment rules to do so.

(2) Where the order under sub-rule (1) is not complied with, the Secretary may require any police officer to remove such person and all his assistants and workmen from the premises within such time as may be specified in the requisition and such police officer shall comply with the requisition accordingly.

(3) After the requisition under sub-rule(2) has been complied with, Secretary may, if he thinks fit, require in writing the assistance of a police officer or depute by a written order an officer or employee of the Municipality to watch the premises in order to ensure that the erection of the building or, execution of the work is not continued and the cost thereof shall be paid by the person at whose instance such erection or execution was being continued or to whom notice under sub-rule(1) was given, and shall be recoverable from such person as an arrear of property tax under the Act.

CHAPTER XX

REGULARISATION OF UNPERMITTED CONSTRUCTIONS AND DEVIATIONS

92. Power of the Secretary to regularise certain constructions.—The Secretary shall have the power to regularise construction or reconstruction or addition or alteration of any building or digging of any well or telecommunication tower or any structure or land development or any other work for which permission of the Secretary is necessary under this rule commenced, being carried on or completed without obtaining approved plan or in deviation of the approved plan:

Provided that such work shall not be in violation of any of the provisions of the Act or these rules.

Provided further that permit may be granted for continuing works already commenced without obtaining permit after levying fee equivalent to the compounding fee for regularization as per these rules for such part already constructed and permit fee for the remaining unconstructed part;

Provided further that such power shall not relieve the Secretary of his responsibility in detecting and preventing such work and in taking other actions as per these rules:

Provided also that where the work was commenced, being carried on or completed after the statutory period specified in rules 14, 49(6), 70 or 87 and as per rules, such work shall be considered as duly permitted and not one requiring regularisation.

93. Submission of application and procedure for its disposal.—(1) Application for regularization shall be submitted in the form in Appendix A1.

(2) The application for regularization shall be accompanied by documentary evidence of ownership of plot, site plan, elevation, building plan, service plan, parking plan wherever the building requires parking, and other details and specifications as are necessary in the case of an application for new building permit; in the case of deviation from approved plan, the approved plan and permit already obtained shall also be submitted.

(3) The procedure for disposal of an application for regularisation shall be that followed in the case of an application for new permit.

94. Application fee.—The application fee shall be as specified in Schedule I.

95. Decision to be intimated.—(1) The Secretary shall by written order either grant or refuse to grant regularization.

(2) The Secretary shall, if the decision is to grant regularisation intimate the fact to the applicant in writing specifying the amount to be remitted as compounding fee and the period within which the amount has to be remitted.

(3) The Secretary shall, on receipt of the compounding fee, and compliance of the condition, if any specified, issue order as in Appendix- G1 absolving the person from all liabilities and regularizing the construction, and record the details thereof in a register to be kept as a permanent documents in the form in Appendix – G2.

(4) The compounding fee shall be double the permit fee in force.

Provided that in the case of deviated or additional construction only the area so deviated or added shall be considered for the calculation of compounding fee.

(5) The Secretary shall, if the decision is to refuse regularisation, intimate the fact to the applicant specifying the reasons for such refusal and the period within which such building or part of building has to be demolished or the well filled up:

Provided that an application for regularisation shall be refused only on such grounds on which approval of site or permission may be refused.

96. Demolition of buildings not regularised.—(1) Where the owner fails to demolish the building or structure or part thereof or fill up the well as directed in the order refusing regularisation or fails to remit the compounding fee within the time specified, or fails to comply with any condition stipulated in the

order granting regularisation within the time specified, the Secretary shall himself cause the building or part thereof demolished or the well filled up as the case may be, and the expenses thereof shall be recovered from the owner as if it were an arrear of property tax due under the Act:

Provided that in the case of an order refusing regularisation, the building or part thereof shall not be demolished or well filled up or prosecution initiated as in sub-rule (2) until and unless the time prescribed for filing appeal from such an order has not been expired.

(2) Notwithstanding anything contained sub-rule (1), Secretary may also take prosecution proceedings against the owner.

CHAPTER XXI

REGISTRATION OF INSTITUTION, ARCHITECTS, ENGINEERS, TOWN PLANNERS, ETC.

97. Plans and drawings to be prepared and signed by Architect, etc.- In these rules, wherever it is required that a plan or drawing or specification shall be one prepared and signed by or a certificate shall be one so certified and signed by an Institution, Architect, Building Designer, Engineer, Town Planner or Supervisor and such Institution, Architect, Building Designer, Engineer, Town Planner or Supervisor shall be a person registered or deemed to have been registered under the provisions in this chapter.

An Institution under any university in the state, offering Bachelor's degree and/or Master's degree in Architecture and/or Civil Engineering may also register under the provisions in this chapter. In such situations, the Head of Department of Architecture or Civil Engineering as the case may be, shall certify and sign the plan or drawing or specification, affixing the official seal of the department.

98. Registering Authority.-The Regional Joint Director, Urban Affairs Department, shall be the Registering Authority for the respective regions of the State.

99. Application and procedure for registration.-(1) Any person or institution having the requisite qualification may submit an application for registration in the form in **Appendix- H1-A** or **Appendix H1-B** as the case may be.

(2) A person employed in the service of Government or Quasi-Government or Government owned Corporation or Board, Authority or Government Companies or Banks is not eligible for registration.

Provided that paid Apprentices under the Apprentices Act,1961 (Central Act 52 of 1961) are considered as not employed for this purpose.

(3) The application shall be affixed with necessary court fee stamp and shall be attached with true copy of certificate showing educational qualification and experience.

In the case of institutional registration, true copy of the following documents shall be attached with the application affixed with necessary court fee stamp:-

(i) valid registration/recognition of Bachelor's degree course in Architecture from Council of Architecture or that in Civil Engineering from All India Council for Technical Education (AICTE) as the case may be, and

(ii) affiliation of the institution to a university in the State.

(4) The Registering Authority shall, if convinced of the genuineness of the documents, issue registration certificate in the form in **Appendix-H3** after collecting the registration fee.

(5) The registration once made shall be valid for four years from the date of registration certificate. The registration certificate shall be renewable on payment of renewal fee with a request in white paper affixed with necessary court fee stamp made within the valid period of registration. In the case of institutional registration, true copy of document(s) showing valid registration/recognition of Bachelor's degree course in Architecture from Council of Architecture or that in Civil Engineering from All India Council for Technical Education (AICTE) as the case may be, shall also be attached with the application for renewal.

Provided that if the registration could not be renewed within the said valid period, the registering authority shall, on receipt of the application, renew the registration collecting a fine 50 per cent of the registration fee in case of delay up to 30 days and with a fine 100 per cent of the registration fee in case of delay upto 60 days from the date of expiry of the registration, in addition to the registration fee as per these rules.

Provided further that a license issued under the Kerala Municipality Building Rules, 1999 shall be deemed to have been issued under these rules and shall continue to be valid for the period for which that license was issued and the holder of the said license shall be eligible for registration under these rules.

Provided also that in the case of Institutional registration, any change of person in the capacity of the Head of Department of Architecture or Civil Engineering, as the case may be, shall be officially intimated by the Principal/Head of Institution to the registering authority with name and specimen signature of such person.

(6) The fee for registration and renewal shall be the same and shall be at the rates shown below:

Institution (Architecture)	: Rs 6000
Institution (Civil Engineering)	: Rs 6000
Building Designer A	: Rs 6000
Building Designer B	: Rs 5000
Engineer A	: Rs 6000
Engineer B	: Rs 5000
Town Planner A	: Rs 6000
Town Planner B	: Rs 5000
Supervisor Senior	: Rs 4000
Supervisor A	: Rs 3000
Supervisor B	: Rs 2000

¹¹¹[(7) For providing self certified building permit, a registered Architect /Institution/ Building Designer/ Town Planner / Engineer / Supervisor shall empanel with the registering authority and shall submit an application in Appendix Q for empanelment. All empanelled licensees shall undergo training as prescribed by Government from time to time.

The fee for empanelment shall be the rates shown below:

Architect	: Rs 12000
Building Designer A	: Rs 12000
Building Designer B	: Rs 10000
Engineer A	: Rs 12000
Engineer B	: Rs 10000
Town Planner A	: Rs 12000
Town Planner B	: Rs 10000
Supervisor Senior	: Rs 8000
Supervisor A	: Rs 6000
Supervisor B	: Rs 4000]

100. Qualification for registration.- No person shall be eligible for registration in the category in column (1) unless he possesses the qualification as in column (2) of Appendix-H2

101. Registration in more than one category.-A person shall be eligible for registration in more than one category if he possesses the requisite qualification and submits separate application, and fee for registration in each such category.

102. Certification of Professionals for KSECBC compliance.-(1)A person who fulfils the eligibility criteria specified in the Energy Conservation (Minimum qualification for Energy Auditors and Energy Managers) Rules, 2006 and has qualified National Examination for Energy Conservation Building Codes Compliance

(2) The Empanelled Energy Auditors (Building), whose services are engaged by the owner, shall (a) verify and certify—

- (i) the design of the building keeping in view the design criteria, energy goals of the project, energy systems performance verification plan, and the modelling approach;
- (ii) the energy conservation measures based on the design approach for the project under consideration;

111. Sub rule (7) inserted by SRO no.483/2021 w.e.f. 29.06.2021

(iii) construction documents and compliance documents, compliance forms and checklists specified to ensure that the building complies with the Code and these rules;

(iv) energy performance index ratio of the proposed building;

(b) furnish a certificate under its seal and authorized signature to the effect that drawings, specifications, construction documents, compliance documents and forms prepared covering building envelope, comfort system and controls, lighting and electrical power systems, wherever applicable, and all other Code related documentation prepared for submission to the authority having jurisdiction ensuring compliance with these rules;

(c) inspect the building works from the design stage to its commissioning stage of buildings including their uses under these rules and based on his certification, the authority having jurisdiction shall issue building permit, approve construction of building, issue completion and occupancy certificates;

(d) the Empanelled Energy Auditors (Building) shall ensure that none of the professionals or employees working under him/her is engaged in any work in connection with the construction or alteration of the concerned building covered under these rules to ensure that there is no conflict of interest with his/her official duties with the interests of the authority having jurisdiction;

(e) report to State designated agencies on such unusual technical issues that may arise due to issue of building permit or construction of building or during occupancy stage;

(f) provide inputs to the National and State Energy Conservation Building Code Implementation Committees to facilitate for better implementation of the Kerala State Energy Conservation Building Code and Kerala Energy Conservation (Building Code) Rules 2017;

(g) promote norms and standards specified in the Kerala State Energy Conservation Building Code

CHAPTER XXII

²⁰[THE ART AND HERITAGE COMMISSION]

103. Constitution of the Commission.-(1) The constitution and functioning of the commission shall be as per Kerala Town and Country Planning Act, 2016 (9 of 2016)

(i) Notwithstanding anything contained in these rules and with due regard to the conservation of buildings, precincts and natural features of heritage value, the commission shall have powers to recommend to permit or recommend to decline land developments, uses and constructions including additions, alterations demolitions etc., within the areas identified or advised by the commission as having heritage value.

(ii) The Municipality shall seek such recommendations of the commission, and the recommendations of the commission shall be binding to the Municipality including any particular architectural or aesthetic form of construction in the case of land developments and constructions in such area.

(2) Notwithstanding anything contained in these rules, for buildings more than 20 floors and certain areas suggested by the Government, Kerala Urban Arts Commission may enforce urban design and architectural control to the buildings and open spaces. These shall be detailed out keeping in view of the location characteristics development requirements for the area.

20. Substituted for the word 'The Kerala Urban Arts Commission' by SRO no.628/2020 w.e.f.01.10.2020.

CHAPTER XXIII

VIGILANCE, DANGEROUS AND DEFECTIVE WORKS, APPEAL, ETC.

104. Secretary to submit report.-(1) Secretary shall submit to Government every three months report with respect to the following:-

- (i) total number of applications for building permit received during the period;
- (ii) total number of applications in which building permit was issued and or refused;
- (iii) details of applications in which decision was not taken within the stipulated time specified as per these rules as the case may be, from the date of receipt and the reasons therefore;
- (iv) details of applications referred to the Council, by the applicant
- (v) total number of applications received for regularisation, of unauthorized or deviated constructions;
- (vi) total number of applications for regularisation disposed of specifying the number of applications sanctioned and or refused, if refused, details of further action taken;
- (vii) number of applications for regularisation pending, disposal;
- (viii) total number of illegal constructions detected and action taken thereon; and
- (ix) details of Government directions received and action taken thereon.

(2) Government shall, after considering the report, take action as they deem proper.

105. Vigilance.-(1) There shall be a State Level Vigilance wing headed by the Chief Town Planner (Vigilance) under the Local Self Government Department to perform the functions entrusted by Government by order from time to time with regard to vigilance functions pertaining to building constructions and land developments.

(2) All District Town Planning offices will render assistance to the State Level Vigilance wing for inspections and reporting building constructions and land developments.

(3) The District Police Officer shall render all assistance to the Chief Town Planner (Vigilance), if so requested, for discharging their duties.

106. Stoppage of dangerous or defective works.-(1) Notwithstanding anything contained in these rules, the Secretary may, at any time stop the construction or reconstruction or alteration of any building, if in his opinion, the work in progress is a danger to human life.

(2) The Secretary shall have the power to condemn any work or material which in his opinion is unsatisfactory or as per the direction given by the Chief Town Planner (Vigilance) or is likely to constitute a danger to health and any work or material so condemned shall be remedied, amended or made good or shall be removed in full or in part and replaced by new work or material, to the Satisfaction of the Secretary.

107. Penalty for unlawful building.-(1) The owner of a building or well and the registered institution / Architect / Engineer/ Town Planner/ Supervisor who has made a certificate under rule 6 (3) as specified in Annexure J1 with respect to the construction under consideration or a person to whom notice is issued under these rules shall, where the construction or reconstruction of such building or tower or any structure or digging of such well—

- (a) is commenced without the permission of the Secretary; or
- (b) is carried on or completed otherwise than in accordance with the particulars on which such permission was based; or

(c) is carried on or completed in contravention of any lawful order or in breach of any provision contained in the Act or these rules, or bye-law made there under or any direction or requisition lawfully given or made; or

(d) about which any alteration or addition required by any notice issued by the Secretary under these rules, is not duly made; or

(e) about which a direction, if any, given by the Secretary under these rules is not complied with,

be liable, on conviction by competent court, to a fine which may extend, in the case of building to ten thousand rupees and in the case of a well or hut to one thousand rupees and to a further fine which may extend in the case of a building to one thousand rupees and in the case of a well or hut to two hundred and fifty rupees for each day during which the offence is continued:

Provided that if any construction or reconstruction of a building or digging of a well unlawfully carried out by a person has been regularised by the Secretary, he shall not be punished.

(2) Where any building, erected in violation of any standard or condition or direction lawfully issued under the provisions of the Act or these rules, becomes a threat to public safety or to human life, the owner or builder and the registered institution / Architect / Engineer/ Town Planner/ Supervisor who has made a certificate under rule 6 as specified in Annexure J1 with respect to the construction under consideration of such building shall on conviction by a competent court, be punishable with imprisonment which may extend to one year.

(3) The Secretary may take prosecution proceedings under sub-rule (1) or sub-rule (2).

108. Appeal.-(1) Any person aggrieved by an order passed by the Secretary may submit an appeal to the Tribunal for Local Self Government Institutions constituted under section 271S of the Kerala Panchayat Raj Act, 1994.

(2) Without prejudice to the provisions contained in the Act, an appeal may be filed against any order,—

(i) approving or disapproving building site;

(ii) granting or refusing permit to execute work;

(iii) confirming, modifying or cancelling the notice requiring alteration of work;

(iv) confirming the provisional order requiring demolition of building or part thereof or filling up of well;

(v) regularising construction or reconstruction or alteration of building or digging of well erection of telecommunication tower or pole structure, conversion or erection of shutter or door, conversion of roof, etc. or rejecting such regularisation; and

(vi) stopping erection of building or execution of work.

(vii) passed or action taken by the Secretary under these rules;

(viii) issued on the basis of the decision of the Special Committee;

(ix) passed by the Chief Town Planner or the District Town Planner.

(3) Any person aggrieved by any of the action in the discharge of the administrative functions by the local self government institutions or an employee or an officer of the local self Government institutions as explained herein may submit there grievances to the ombudsman for redressal.

(4) Ombudsman is an authority constituted for Local Self Government Institutions at the state level for conducting investigations and enquires in respect of any action involving corruption or maladministration or irregularities in the discharge of administrative functions of the Local self Government Institutions or by an employee or an officer working under Local self Government Institutions or by an employee or an officer working in any office or institution transferred to such Local Self Government Institutions or by elected member of Local Self Government Institution including its

President or Chairperson and for the disposal of such complaints in accordance with the provisions of section *271(G) of the Kerala Panchayat Raj Act (13 of 1994).

109. Removal of doubts, etc.- The Government shall have power, if any doubt arises with regard to the interpretation or otherwise of any provision or if any difficulty arises in the implementation of any provision, to clarify the doubt or to issue necessary direction for removing the difficulty.

¹¹²**[APPENDIX- A1**
[See rules 5(1)(b), 75(1), 87(1) and 93(1)]
APPLICATION FOR PERMIT/REGULARISATION

..... Municipal Corporation / Municipal Council / Town Panchayat

1. Name in capital letters :
2. Address
 - (i) Permanent address of the owner :
 - (ii) To which communications are to be sent :
3. Nature of development/construction
 - (i) Division of plot :
 - (ii) New construction :
 - (iii) Reconstruction :
 - (iv) Alteration/Addition/Extension :
 - (v) Digging of well :
 - (vi) Change in occupancy :
 - (vii) Demolition :
 - (viii) Roof changing :
4. Details of plot
 - (i) Revenue Village :
 - (ii) (a) Survey No. :
(b) Resurvey No. :
 - (iii) Sub Division :
 - (iv) Taluk :
 - (v) District :
 - (vi) Extent in Sq.m. :
 - (vii) Nature of ownership :
 - (viii) Number and date of deed/Document :
 - (ix) Registrar's Office :
 - (x) Ward No. :
 - (xi) Authorised number of the nearest building :
 - (xii) Nearest Electric Post/Telecom Post number :
5. Whether the land, if any, contiguous to this plot of the owner shown in the site plan [Rule 6(4)(a)(i)] : Yes/No
6. Usage of surrounding plots in general
 - North :
 - East :
 - South :
 - West :
7. Whether Government or Quasi Government :
8. Details of the Construction

(i) Details of Proposed Building(s)

Floors	Building No. 1				Building No. 2		
	Occupancy:				Occupancy :		
	Height of the building m				Height of the building -..... m		
	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)	Floor area (Sq.m.)	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)
Basement floor							
Ground floor							
Total							

Add separate sheet if required, duly signed by both the licensee and the Owner

112. Appendix A1 substituted by SRO no.628/2020 w.e.f.01.10.2020.

(ii) Details of Existing Building(s)

Floors	Building No. 1				Building No. 2		
	Occupancy:				Occupancy :		
	Height of the building m				Height of the building -..... m		
	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)	Floor area (Sq.m.)	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)
Basement floor							
Ground floor							
Total							

Add separate sheet if required, duly signed by both the licensee and the Owner

- (iii) Total Built-up Area :
 (iv) Total Covered Area :
 (v) Total parking area provided inside the building(s) :
 (vi) Total Floor Area :
 (vii) Estimated cost of construction :

9. Basic KMBR Verification w.r.t. proposed plot

Sl.No.	Rule No.	Description	Required / permissible	Provided
1		Access width to the plot		
2		Coverage		
3		Floor Space Index		

10. Basic KMBR Verification w.r.t. proposed building(s)

(a) Building No. 1

Sl.No.	Rule No.	Description	Required / permissible	Provided
1		Access width to the building (in m)		
2		Minimum distance from the abutting road/access to other building(s) (in metre)		
3		No. of Four-wheeler parking		
4		Area of Two-wheeler parking		
5		No. of Parking for Differently abled		
6		No. of Parking for Visitors		
7		Loading/unloading space (in sq. metre)		
8		Set Backs (in metre)		
		Front		
		Side 1		
		Side 2		
9		Rear		
9		Exit Width (in metre)		
10		No. of Stair case(s)		
11		No. of Fire Escape Stair case(s)		
12		Rainwater storage capacity (in litre)		
114 13		Connected load in kW for buildings coming under rule 2.1 and 2.2 of the Kerala State Energy Conservation Building code rules 2017		

Add separate sheet if required, duly signed by both the licensee and the Owner

11. Provisions of Town Planning Schemes, if any, applicable to the construction

(i) Zoning

Sl.No.	Name of the TP Scheme	Stage (Sanctioned/ Published)	Zone	Permissibility of proposed construction as per the scheme

113. Substituted for the words 'KMBR' by SRO no. 483/2021 w.e.f. 29.06.2021

114. Inserted by SRO no. 483/2021 w.e.f. 29.06.2021

(ii) Road Widening

Sl. No.	Name of the TP Scheme	Stage (Sanctioned/ Published)	Existing Width of road (in m)	Proposed Width of road (in m)	Building Line (in m)	Set Back Required from Existing road boundary(inm)	Set back provided (in m)

12. Permissibility with respect to Kerala Conservation of Paddy Land and Wet and Act 2008 / KLU Order 1967

- (i) Type of land as per BTR :
(ii) Type of land as per Data Bank :

13. If the application is for regularisation,

- (i) Whether construction completed or not :
(ii) If not completed, the stage of construction :

14. Details of permit/approved plan already obtained.

15. Details of fee paid: Application fee: Layout scrutiny fee:

- (i) Amount
(ii) No. and date of receipt

16. Details of documents, plans, certificate, etc. enclosed.

17. Details of NOC obtained.

Sl.No.	Required	Whether enclosed or not	Details of the NOC / Clearances

18. DECLARATION

I, hereby
.....

declare that the measurements, specifications and other details mentioned above are correct, complete and true to the best of my knowledge and belief and that I shall abide by the approved plan and the provisions in the Act and Rules in undertaking the construction.

Place:

Signature of the applicant with name

Date:

19. CERTIFICATE

Certified that the site plan is prepared after verification of ownership document and site and the measurements shown are found to be correct.

Signature:

Name:

Reg.No.:

Address:

(Registered Institution, Architect, Engineer, Town Planner, Supervisor)

Place:

Date:

20. CERTIFICATE

Certified that the building plan is prepared in accordance with the provisions in the Kerala Municipality Building Rules, 2019, Kerala Municipality Act, 1994 and the provisions contained in the sanctioned Town Planning Schemes, if any.

Signature:

Name:

Reg. No.:

Address:

(Registered Institution/Architect/ Engineer/ Town Planner/Supervisor)

Place:

Date:

21. UNDERTAKING

I, hereby undertake that the building construction and/or land development will be carried on/being carried on/was carried on as per the approved plan and permit in accordance with the rules in force.

Signature:

Name:

Reg. No.:

Address:

(Registered Institution/Architect/Engineer/ Town Planner/Supervisor)]

Place:

Date:

¹¹⁵[APPENDIX- A1A

(See rules 5(1) (c), 19A(2))

APPLICATION FOR APPROVAL OF THE BUILDING SITE AND FOR THE PERMISSION TO EXECUTE THE WORK

..... Municipal Corporation / Municipal council / Town Panchayat

1. Name in capital letters :

Applicant(s)	Owner(s)

2. Address

(i) Permanent address of the owner :

(ii) To which communications are to be sent:

3. Nature of development / construction

(i) New construction :

(ii) Reconstruction :

(iii) Alteration / Addition / Extension :

(iv) Change in occupancy :

4. Details of plot

(i) Revenue Village :

(ii) (a) Survey No. :

(b) Resurvey No. :

(iii) Sub Division :

(iv) Taluk :

(v) District :

(vi) Extent in Sq.m. :

(vii) Nature of ownership :

(viii) Number and date of deed / Document :

(ix) Registrar's Office :

(x) Ward No. :

(xi) Authorised number of the nearest building :

(xii) Nearest Electric Post / Telecom Post number:

5. Whether the land, if any, contiguous to this plot of the owner shown in the site plan [Rule 6 (4) (a) (i)] : Yes / No

6. Usage of surrounding plots in general

North :

East :

South :

West :

7. Whether Government or Quasi Government :

8. Details of the Construction

(i) Details of Proposed Building(s)

Floors	Building No. 1				Building No. 2		
	Occupancy:				Occupancy :		
	Height of the building m				Height of the building m		
	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)	Floor area (Sq.m.)	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)
Basement floor							
Ground floor							
Total							

Add separate sheet if required, duly signed by both the empanelled licensee and the Owner

115.Appendix A1A inserted by SRO no.483/2021 w.e.f. 29.06.2021.

(ii) Details of Existing Building(s)

Floors	Building No. 1				Building No. 2		
	Occupancy:				Occupancy :		
	Height of the building m				Height of the building -..... m		
	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)	Floor area (Sq.m.)	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)
Basement floor							
Ground floor							
Total							

Add separate sheet if required, duly signed by both the empanelled licensee and the Owner

- (iii) Total Built-up Area :
- (iv) Total Covered Area :
- (v) Total parking area provided inside the building(s) :
- (vi) Total Floor Area:
- (vii) Estimated cost of construction :

9. Basic KPBR Verification with respect to proposed plot

Sl.No.	Rule No.	Description	Required / permissible	Provided
1		Access width to the plot		
2		Coverage		
3		Floor Space Index		

10. Basic Kerala Municipality Building Rule Verification w. r. t. proposed building(s)

(b) Building No. 1

Sl.No.	Rule No.	Description	Required / permissible	Provided
1		Access width to the building (in m)		
2		Minimum distance from the abutting road/access to other building(s) (in metre)		
3		No. of Four-wheeler parking		
4		Area of Two-wheeler parking		
5		No. of Parking for Differently abled		
6		No. of Parking for Visitors		
7		Loading/unloading space (in sq. metre)		
8		Set Backs (in metre)		
		Front		
		Side 1		
		Side 2		
9		Rear		
		Exit Width (in metre)		
		No. of Stair case(s)		
		No. of Fire Escape Stair case(s)		
12		Rainwater storage capacity (in litre)		
13		Connected load in kW for buildings coming under rule 2.1 and 2.2 of the Kerala State Energy Conservation Building code rules 2017		

Add separate sheet if required, duly signed by both the licensee and the Owner

11. Provisions of Town Planning Schemes, if any, applicable to the construction

(iii) Zoning

Sl.No.	Name of the TP Scheme	Stage (Sanctioned/ Published)	Zone	Permissibility of proposed construction as per the scheme

(iv) Road Widening

Sl. No.	Name of the TP Scheme	Stage (Sanctioned/ Published)	Existing Width of road (in m)	Proposed Width of road (in m)	Building Line (in m)	Set Back Required from Existing road boundary (inm)	Set back provided (in m)

12. Permissibility with respect to Kerala Conservation of Paddy Land and Wet and Act 2008 / KLU order1967

(i) Type of land as per BTR :

(ii) Type of land as per Data Bank :

13. Details of permit/approved plan already obtained.

14. Details of fee paid: Application fee: Layout scrutiny fee:

(i) Amount

(ii) No. and date of receipt

15. Details of documents, plans, certificate, etc. enclosed.

16. Details of NOC obtained.

Sl.No.	Required	Whether enclosed or not	Details of the NOC / Clearances

17. **DECLARATION**

I,hereby declare that the measurements, specifications and other details mentioned above are correct, complete and true to the best of my knowledge and belief and that I shall abide by the approved plan and the provisions in the Kerala Municipality Act, 1994 and Kerala Municipality Building Rules,2019 in undertaking the construction.

Place:

Date:

Signature of the owner with name

18. **CERTIFICATE**

Certified that the site plan is prepared after verification of ownership document and site and the measurements shown are found to be correct.

Signature:

Name:

Place:

Date:

Reg.No.: of Empanelled licensee

Address:

19. **CERTIFICATE**

Certified that the building plan is prepared in accordance with the provisions in the Kerala Panchayath Building Rules, 2019, Kerala Panchayath Raj Act, 1994 and the provisions contained in the sanctioned Town Planning Schemes, if any.

Place:

Date:

Signature:

Name:

Reg. No. of empanelled licensee:

Address:

20. **UNDERTAKING**

I,hereby undertake that the building construction and / or land development will be carried on / being carried on / was carried on as per the approved plan and permit in accordance with the rules in force.

Place:

Date:

Signature:

Name:

Reg. No. of Empanelled licensee

Address:]

¹¹⁵[APPENDIX- A1B

(See rules 19A(2))

ACKNOWLEDGMENT RECEIPT

..... Municipal Corporation / Municipal council / Town Panchayat

No.....

Dated.....

Details of application

1. Application No. :
2. Name of owner :
3. Reg no. of Empanelled licensee:
4. Occupancy of the proposed construction:
5. Floor area of the proposed construction:
6. Date of receipt of application:

It is hereby acknowledged that the application for self certified building permit submitted by
Sri/Smt.....has been received in this office on

Name and Signature
Office seal Official Designation]

APPENDIX- A2

FORM OF APPLICATION FOR CONSTRUCTION IN PLOTS PARTS OF WHICH HAVE BEEN SURRENDERED FREE OF COST FOR ROAD DEVELOPMENT

[See rule 62(1)]

(To be submitted along with the application for permit)

..... Municipal Corporation / Municipal council / Town Panchayat

1. Name of applicant(s)(in capital letters) :

2. Address:

(i)

Permanent address of the applicant(s) :

(ii)

To which communications are to be sent :

3. Details of land surrendered under Rule 62(1) :

(i) Details of Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act, 2016 as per rule 62(1)

(a) Name of the Plan/ scheme :

(b) Name of the Road development project :

(c) Present stage of implementation :

(d) Zoning provisions :

(e) Other provisions:

(ii) (a) Name of project applicable as per Rule 62(1):

(b) Implementing Agency :

(Local Self Government Institution/ Development Authority/

Government Department/

Quasi Government Organisation/Institution/ Registered Residents Associations/

Social Welfare Organisation)

(c) Present stage of implementation :

(iii) Details of land in sq. m :

(Enclose sketch with all detailed measurements) :

(a) Total extent of land :

(b) Extent of land required for implementation of the scheme in total from the plot :

(c) Land surrendered free of cost for the scheme :

(d) Percentage of land surrendered :

(iv) Survey No./Re Survey No. of the surrendered land :

(v) Name of the owner of the land so surrendered :

(vi) Details of Relinquishment : (Enclose copies of relinquishment) :

4. Applicability of special provisions :

Item	Required / permissible as per general provisions	Required / permissible as per special provisions	Provided	Remarks of the Special committee
Coverage				
F.S.I.				
Set backs: Front				
Side 1				
Side 2				
Rear				
Height				
Parking				

DECLARATION

I, hereby declare that the measurements, specifications and other details mentioned above are correct, complete and true to the best of my knowledge and belief and that I shall abide by the approved plan and the provisions in the Act and Rules in undertaking the construction.

Place:

Date:

Signature of the applicant with name

5.

CERTIFICATE

Certified that the site plan is prepared in accordance with the Kerala Municipality Building Rules 2019, Kerala Municipality Act 1994, provisions contained in the Master Plan / Detailed Town Planning Scheme / Interim Development Order in force under the Kerala Town and Country Planning Act 2016 and road development proposals of the implementing agency.

Place:

Date:

Signature:

Name:

Reg.No.:

Address:

(seal)

(Registered Institution/ Architect/ Engineer/ Building Designer /Town Planner/ Supervisor)

APPENDIX-A3

[See rule5(1)(a)]

APPLICATION FORM FOR PERMIT FOR DEVELOPMENT/ REDEVELOPMENT OF LAND

To

The Secretary,

..... Municipal Corporation / Municipal council / Town Panchayat

Sir,

I intend to develop/ redevelop the land in Survey/Re survey Number.....of
..... Village in
..... Taluk..... owned by me. I forward herewith the site plan, service
plan and specification in duplicate duly signed by me and by.....(Name in Block
letters of the registered Institution /Architect/ Building Designer/ Engineer/ Town Planner/
Supervisor) having Register No... together with the required documents.

I hereby undertake to abide by the provisions of the Kerala Municipality Building Rules, 2019 in all
respect.

I request that the development/ redevelopment may be approved and development permit may be
granted to me.

Signature.....

Name of owner.....

Place: (in Blockletters)

Date:

Address.....

116[Appendix-A4

(See rule 5(6)(2))

APPLICATION FOR LAYOUT APPROVAL AND USAGE OF PLOT/CONCURRENCE

1. Name in capital letters :District

Applicant(s)	Owner(s)

2. Address:

(i) Permanent address of the owner :

(ii) To which communications are to be sent :

3. Nature of development/construction:

(i) Division of plot :

(ii) New construction :

(iii) Reconstruction :

(iv) Alteration/Addition/Extension :

(v) Change in occupancy :

4. Details of plot

(i) Name of Local Self Government Institution :

(ii) Revenue Village:

(iii) (a) Survey No. :

(b) Resurvey No. :

(iv) Sub Division

(v) Taluk :

(vi) District :

(vii) Extent in Sq.m :

(viii) Nature of ownership :

(ix) Ward No. :

(x) Authorised number of the nearest building :

(xi) Nearest Electric Post/Telecom Post number :

5. Whether the land, if any, contiguous to this plot of the owner shown in the site plan (Rule 6(4)(a)(i)): Yes /No

6. Usage of surrounding plots in general

North :

East :

South :

West :

7. Whether Government or Quasi Government :

8. Details of the proposed construction

(i) Details of Proposed Building(s)

Floors	Building No. 1				Building No. 2		
	Occupancy:				Occupancy :		
	Height of the building m				Height of the building - m		
	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)	Floor area (Sq.m.)	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)
Basement floor							
Ground floor							
Total							

Add separate sheet if required, duly signed by both the licensee and the Owner

(ii) Details of Existing Building(s)

Floors	Building No. 1				Building No. 2		
	Occupancy:				Occupancy :		
	Height of the building m				Height of the building - m		
	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)	Floor area (Sq.m.)	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)
Basement floor							
Ground floor							
Total							

Add separate sheet if required, duly signed by both the licensee and the Owner

- (iii) Total Built-up Area :
 (iv) Total parking area provided inside the building(s):
 (v) Total Built-up Area for F.S.I.
 (vi) Total Floor Area :
 (vii) Estimated cost of construction :

9. Basic KMBR Verification w.r.t. proposed plot

Sl.No.	Rule No.	Description	Required / permissible	Provided
1		Access width to the plot		
2		Coverage		
3		Floor Space Index		

10. Basic KMBR Verification w.r.t. proposed building(s)

(a) Building no. 1

Sl.No.	Rule No.	Description	Required / permissible	Provided
1		Access width to the building (in m)		
2		Minimum distance from the abutting road/access to other building(s) (in metre)		
3		No. of Four-wheeler parking		
4		Area of Two-wheeler parking		
5		No. of Parking for Differently abled		
6		No. of Parking for Visitors		
7		Loading/unloading space (in sq. metre)		
8		Set Backs (in metre)		
		Front		
		Side 1		
		Side 2		
		Rear		
9		Exit Width (in metre)		
10		No. of Stair case(s)		
11		No. of Fire Escape Stair case(s)		
12		Rainwater storage capacity (in litre)		

Add separate sheet if required, duly signed by both the licensee and the Owner

11. Provisions of Town Planning Schemes, if any, applicable to the construction

(i) Zoning

Sl.No.	Name of the TP Scheme	Stage (Sanctioned/ Published)	Zone	Permissibility of proposed construction as per the scheme

(ii) Road Widening

Sl.No.	Name of the TP Scheme	Stage (Sanctioned/ Published)	Existing Width of road (in m)	Proposed Width of road (in m)	Building Line (in m)	Set Back Required from Existing road boundary (in m)	Set back provided (in m)

12. If the application is for regularisation,

- (i) Whether construction completed or not :
 (ii) If not completed, the stage of construction :

13. Details of permit/layout approval already obtained.

14. Details of fee paid: Application fee Lay out scrutiny Fee

- (i) Amount
 (ii) No. and date of receipt

15. Details of documents, plans, certificate, etc. enclosed.

16. Details of NOC / Clearances obtained.

Sl.No.	Required	Whether enclosed or not	Details of the NOC / Clearances

17. Whether application for permit /regularisation is submitted to the Local Self Government Institution: Yes/No
If Yes, file no. of the application in the Local Self Government Institution :

18. DECLARATION

I,.....hereby declare that the measurements, specifications and other details mentioned above are correct, complete and true to the best of my knowledge and belief and that I shall abide by the approved plan and the provisions in the Act and Rules in undertaking the construction.

Place:

Signature of the applicant with name Date:

19. CERTIFICATE

Certified that the site plan is prepared after verification of ownership document and site and the measurements shown are found to be correct.

Place:

Date:

Signature:

Name:

Reg.No.:

Address:

(Registered Institution, Architect, Engineer, Town Planner, Supervisor)

20. CERTIFICATE

Certified that the building plan is prepared in accordance with the provisions in the Kerala Municipality Building Rules 2019, Kerala Municipality Raj Act, 1994 and the provisions contained in the sanctioned Town Planning Schemes, if any.

Place:

Date:

Signature:

Name:

Reg.No.:

Address:

(Registered Institution/Architect/ Engineer/Town Planner/Supervisor)

21. UNDERTAKING

I,.....hereby undertake that the building construction and /or land development will be carried on/ being carried on/ was carried on as per the approved plan and permit in accordance with the rules in force.

Place:

Date:

Signature:

Name:

Reg.No.:

Address:

(Registered Institution/Architect/ Engineer)

^{116A}APPENDIX- A5

(See rules 83, 87)

**APPLICATION FOR INTIMATION FOR THE ERECTION / RE-ERECTION / ALTERATION OF
TELECOMMUNICATION TOWERS/TELECOMMUNICATION POLE STRUCTURES/ACCESSORY ROOMS**

-Municipal corporation / Municipal council / Town Panchayat
1. Name and address of Applicant(s)/Owner(s) :
 2. Name and address of the Infrastructure service provider /Telecom service provider :
 3. Nature of development
 - (i)Erection of Telecommunication towers/ pole structures / accessory rooms :
 - (ii) Re-erection of Telecommunication towers/ pole structures / accessory rooms :
 - (iii) Alteration of Telecommunication towers/ pole structures / accessory rooms :
 4. Details of plot:
 - (i) Revenue Village :
 - (ii) (a) Survey No :
 - (b) Re-survey No :
 - (iii) Sub Division :
 - (iv) Taluk :
 - (v) District :
 - (vi) Extent in Sq.m :
 - (vii)Ward No. :
 - (viii) Authorised number of the building over which the telecommunication structure is proposed (if applicable) :
 - (ix) Authorised number of the nearest building :
 - (x) Nearest Electric Post/Telecom Post number :
 5. Whether the land, if any, contiguous to this plot of the owner shown in the site plan (Rule 6(4)(a)(i)): Yes /No
 - 6 . Whether Government or Quasi-Government :
 7. Details of the Telecommunication structure :
 - a. Height of the structure :
 8. Provisions of Schemes, if any, applicable to the construction

Road Widening

Sl. No.	Name of the TP Scheme	Stage (Sanctioned /Published)	Existing Width of road (in m)	Proposed Width of road (in m)	Building Line (in m)	Set Back Required from Existing road boundary (in m)	Set back provided (in m)

9. Details of fee paid:
 - (i) Amount :
 - (ii) No. and date of receipt :
10. Details of documents, plans, certificate, etc. enclosed.
11. Details of NOC obtained.

Sl. No.	Required	Whether enclosed or not	Details of the NOC / Clearances

12. **DECLARATION**

I,.....hereby declare that the measurements, specifications and other details mentioned above are correct, complete and true to the best of my knowledge and belief and that I shall abide by the approved plan and the provisions in the Act and Rules in undertaking the construction.

Signature of the Applicant(s)/Owner(s) with name

Place:

Date :

Signature of the Infrastructure service provider/Telecom service provider

13. **CERTIFICATE**

Certified that the site plan is prepared after verification of ownership document and site and the measurements shown are found to be correct.

Place:

Date:

Supervisor)

Signature:

Name:

Reg.No.:

Address:

(Registered Institution/Architect/
Engineer/ Town Planner /

14. **UNDERTAKING**

I,.....hereby undertake that the erection of the telecommunication tower/telecommunication pole structure/accessory rooms and/or land development will be carried on/being carried on/was carried on in accordance with the rules in force.

Place:

Date:

Supervisor)]

Signature:

Name:

Reg.No.:

Address:

(Registered Institution/Architect/
/Engineer/Town Planner/

APPENDIX B1

[See rule 6(17)]

DEVELOPMENT PERMIT

..... Municipal Corporation / Municipal council / Town Panchayat No.....
Dated.....

Ref:- Application dated.....from Sri/ Smt.....

Permission is hereby granted for the development or redevelopment of land to the extent of
.....Ares/ hectares comprised in Survey No./Re survey No.
.....Village.....Taluk... District.....
.....for..... use (specify)subject to the following conditions:-

- (1) Existing trees should be retained as far as possible and more number of trees planted in the available space after development.
- (2) The permit is subject to the satisfaction of the provisions in the Kerala Conservation of Paddy Land and Wet Land Act 2008 / KLU order 1967 and the permit issued thereunder.
- (3) Adequate safety measures shall be ensured for protection against damage to health, life buildings and property of the inhabitants around, during and after development. The owner and the developer shall be solely responsible for any such damages.
- (4)
- (5) Place:

Date: Signature and name of Secretary

(Seal)

¹¹⁷[APPENDIX B2

[See rule 6(17)&9(4)]

SITE APPROVAL AND BUILDING PERMIT

..... Municipal Corporation / Municipal council / Town Panchayat

No.....

Dated.....

Ref:—Application dated.....from Sri/Smt.

Site approval and permission is granted for the erection/re-erection/addition/alteration of building/hut/digging of well/.....(specify the construction) inbuildingNo... ornear the building

No.....in Survey/Re-survey No.....Village

.....Taluk

.....District.....

for.....(specify the occupancy) purpose subject to the conditions stated below:

(1) Adequate safety measures shall be ensured for protection against damage to health, life, buildings and property of the workers and inhabitants around, during and after building construction. The owner and the developer shall be solely responsible for any such damages.

(2)

...
(3)

...
(4)

(a) Set Backs (m) (minimum & average)

Building 1	Front	Rear side	Side 1	Side 2
Building 2	Front	Rear side	Side 1	Side 2
Building 3	Front	Rear side	Side 1	Side 2

(b) Plot Area (sq m) —

(c) FSI: Coverage:

(d) Details of proposedbuilding

Floors	Building No. 1				Building No. 2		
	Occupancy:				Occupancy :		
	Height of the buildingm				Height of the building -..... m		
	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)	Floor area (Sq.m.)	Use	Built-up area (Sq.m.)	Area provided for parking inside the building (Sq.m.)
Basement floor							
Ground floor							
Total							

Signature and name of Secretary

(Seal)]

¹¹⁸[APPENDIX C

[See rule 10 (7)]

Concurrence / Usage of Plot

No.....

Dated.....

Name of the Local Self Government Institution:

Ref:— (1) Application dated.....from Sri/Smt.....

(2) Permit No.

Dated.....Concurrence is granted for proceeding with the construction above the ground level as per the permit cited in Ref. (2)

for.....(specify the construction) in building No.

.....or near the building No in Survey No./Re-Survey

No.....in Village in.....Taluk in District

for..... (specify the occupancy) purpose subject to the conditions stated below:

(i)

(ii)

(iii)

(iv)

(1) Built-up area and Floor area of the building are as follows:—

Floor	Built-up area (sq.m.)	Floor area (sq.m.)
Basement Floor		
Ground Floor		
First Floor		
.....		
.....		
Total		

(2) FSI—

Coverage—

(3) Access width(m)—

Place:

Signature and name of Secretary

Date:

(Seal)]

APPENDIX -D
[See Rule 17(5) (d)]

NOTICE REGARDING THE INTENTION TO START WORK

I hereby give notice that I intend to start the development or redevelopment of land and/or construction or reconstruction or addition or alteration of building on.....as per permit No.....dated.....

Place: _____ Signature _____
Date: _____ Name and address of owner _____

APPENDIX E1
[See rules 17(5)(e),20(1)&88 (1)]

COMPLETION ¹¹⁹[REPORT] BY THE OWNER

¹¹⁹[REPORT]

Certified that the development or redevelopment of land and/or construction or reconstruction or addition or alteration of building / erection of Telecommunication tower or pole structure has been completed on as per the approved plan and permit numberdated
Place: _____ Signature _____
Date: _____ Name and address of owner _____

APPENDIX E2
[See rules 17(5)(e) & 20(4)]

PARTIAL COMPLETION ¹¹⁹[REPORT] BY THE OWNER

¹¹⁹[REPORT]

Certified that the development or redevelopment of land and/or construction or reconstruction or addition or alteration of building(s) / erection of telecommunication tower or pole structure have been partly completed on as in the approved plan and permit numberdated
Also certified that the above partially completed building(s) comply in all respects with the provisions contained in the Kerala Municipality Building Rules, 2019 and other applicable statutes and the work has been carried out as per the drawings signed and attached.
Place: _____ Signature _____
Date: _____ Name and address of owner _____

APPENDIX E3
[See rule 20(1)&88(1)]

COMPLETION ¹¹⁹[REPORT] BY INSTITUTION, ARCHITECT, ENGINEER, ETC.

¹¹⁹[REPORT]

Certified that the development or redevelopment of land or construction or reconstruction or addition or alteration of building(s)/ erection of telecommunication tower or pole structure or work has been supervised by me and has been completed on..... as per the approved plan and permit No.
..... dated.....

Place: (seal) _____ Signature: _____
Date: _____ Name: _____
Register No: _____
(Registered Institution/ Architect/ Engineer/
Building Designer /Town Planner/ Supervisor)

¹²⁰[Enclosure: Completion Plan]

119. Substituted for the word 'Certificate' by SRO no.628/2020 w.e.f.01.10.2020.

120. Inserted by SRO no.628/2020 w.e.f.01.10.2020.

APPENDIXE4
[See rule 20(4)]

PARTIAL COMPLETION ¹¹⁹[REPORT] BY INSTITUTION, ARCHITECT, ENGINEER, ETC.

¹¹⁹[REPORT]

Certified that the development or redevelopment of land and/or construction or reconstruction or addition or alteration of building(s)/erection of telecommunication tower or pole structure or work has been supervised by me and has been partially completed on as in the approved plan and permit No. dated.....

Also certified that the above partially completed building(s) comply in all respects with the provisions contained in the Kerala Municipality Building Rules, 2019 and other applicable statutes and the work has been carried out as per the drawings signed and attached.

Place:
Date:

(Registered Institution/ Architect/ Engineer/ Building Designer /Town Planner/ Supervisor)

Signature:
Name:
RegisterNo:

¹²¹[Enclosure: Completion Plan]

APPENDIX F1

[See rule 17(5)(f)&20 (2)]

DEVELOPMENT CERTIFICATE

..... Municipal Corporation / Municipal council / Town Panchayat

Certified that the development or redevelopment of land under the Permit No.....dated.....issued to Sri and Supervised by has been inspected by me and that the work executed is in accordance with the permit and that the land is now fit for building construction.

Place:
Date:

Signature and name of Secretary

(Seal)

¹²¹[Enclosure: Completion Plan]

APPENDIX F2

[See rule 17(5) (f), 20 (3) and 88 (2)]

OCCUPANCY CERTIFICATE OR USE CERTIFICATE

..... Municipal Corporation / Municipal council / Town Panchayat

Reference: Completion certificate / Partial Completion certificate submitted by the applicant(Name).....dated and the licensee (Name &Reg.No.) dated

Certified that the construction or reconstruction or addition or alteration of building or erection of telecommunication tower or pole structure or work under the permit No..... dated..... issued to and supervised by has been inspected by me and that the work executed is in accordance with the permit and the building/ tower or pole structure is now fit for occupation/ use.

Place:
Date:

Signature of the Secretary

(Seal)

¹²¹[Enclosure: Completion Plan]

119. Substituted for the word 'Certificate' by SRO no.628/2020 w.e.f.01.10.2020.

121. Inserted by SRO no.628/2020 w.e.f.01.10.2020.

¹²²[APPENDIX F2A

[See rules 19C]

**OCCUPANCY CERTIFICATE OR USE CERTIFICATE FOR LOW RISK BUILDINGS CONSTRUCTED BY OBTAINING SELF
CERTIFIED BUILDING PERMIT**

..... Municipal Corporation / Municipal Council / Town Panchayat

Reference: Completion report / Partial Completion report submitted by the owner (Name) dated
..... and the empanelled licensee (Name & Reg. No.) dated

Certified that the construction or reconstruction or addition or alteration of building or erection of work under the selfcertified
building permit No.....dated.....issued

to.....and supervised by.....has been
inspected by me and that the work executed is in accordance with the permit and the building is now fit for occupation/ use.

Place:

Signature of the Secretary Date:

Enclosure: Completion Plan

(Seal)]

¹²³[APPENDIX-G1

[See rule 95 (3)]

..... Municipal Corporation / Municipal council / Town Panchayat

Abstract

**BUILDING CONSTRUCTION/LAND DEVELOPMENT WITHOUT PERMISSION OR DEVIATION FROM APPROVED PLAN-
REGULARISATION GRANTED—ORDERS ISSUED**

Ref:—Application dated.....from Sri/Smt.....
No.Dated

ORDER

Whereas the application submitted by Sri/Smt for regularisation of a construction or reconstruction or alteration or addition of..... (specify the use) building/hut/shed/wall/erection of telecommunication tower or pole structure/digging of well/conversion of roof/conversion or erection of shutter or door/land development/any other work(specify) commenced/being carried on/completed in the land comprised in Sy.No./Resurvey No.....Village.....Taluk.....District..... in the building bearing No /near the building bearing No has been duly considered by me and decision to regularize the same has been communicated in letter No.dated.....

And whereas the said Sri/Smt.has remitted Rs.....as compounding fee vide receipt No.dated.....and has complied with the directions/conditions stipulated in the letter dated.....

Now, therefore, in exercise of the powers conferred by Section 406 of the Kerala Municipality Act, 1994, I (name), Secretary of the.....Municipal Corporation/Municipal Council/Town Panchayat hereby order that the said person has been absolved from the liabilities in respect of the construction or reconstruction or alteration or addition of (specify the use) building/hut/shed/wall/erection of telecommunication tower or pole structure/digging of well/conversion of roof/conversion or erection of shutter or door/land development/any other work(..... specify) and that the construction or reconstruction or alteration or addition of (specify.....the use) building/hut/shed/wall/erection of telecommunication tower or pole structure/digging of well/conversion of roof/conversion or erection of shutter or door/land development/any other work (.....specify) has been regularised.

Built-up area and Floor area of the regularized part of the building are as follows:—

Floor	Built-up area (sq.m.)	Floor area (sq.m.)
Basement Floor		
Ground Floor		
First Floor		
.....		
.....		
Total		

(Continuation of the work, if any, as per the drawings submitted shall be subject to permit No.dated.....being issued herewith.)(*strike off if not applicable.*

Plans and details of the construction regularised are appended with this order.

Signature of Secretary

(Seal)

123..Appendix G1 substituted by SRO no.628/2020 w.e.f.01.10.2020.

¹²⁴[APPENDIX-G2]

[See rule 95 (3)]

REGISTER FOR REGULARISED CONSTRUCTIONS

..... Municipal Corporation / Municipal council / Town Panchayat

Sl. No	Name and address of applicant/ owner	Date of application with date of receipt	Details of amount etc. of application fee paid	Details of total built-up area of building existing/ regularised	Details of total floor area of building existing/ regularised	Area of land, survey No./ Resurvey No. Village, Taluk, etc.	Date and No. of intimation permitting regularization with date of despatch	Amount, date etc., of regularization fee paid	Details of regularization order issued	Remarks
1	2	3	4	5	6	7	8	9	10	11

124..Appendix G2 substituted by SRO no.628/2020 w.e.f.01.10.2020.

APPENDIX –H1-A

[See rule 99(1)]

GOVERNMENT OF KERALA

Application for Registration as Architect/Engineer/Town Planner/Supervisor etc. under the Kerala Municipality Building Rules, 2019

(One extra copy of the photo should be separately enclosed for issuing identity card)

1. Name of Applicant :
2. Permanent Address :
3. Address to which communications are to be sent :
4. Educational Qualifications
(Attested copies should be enclosed) :
5. Age and Date of Birth
(with proof) :
6. Sex :
7. Experience (Attested copies should be enclosed):
8. References of previous licenses, if any :
9. Details of show cause notices received/
cancellation of licenses, etc if any
10. Whether employed in the service of Government : or Quasi-Government or
Government owned Corporation or Board, Authority or Government Companies
or Banks or not (If so employed give particulars)
11. Whether retired from service or not
(If retired, give details) :
(Proof to be attached)
12. Specimen Signature
 - i)
 - ii)
 - iii)

DECLARATION

I, hereby declare that the details furnished above are correct, complete and true to the best of my knowledge and belief.

Signature:

Name:

Place:
Date:

APPENDIX –H1-B

[See rule 99(1)]

GOVERNMENT OF KERALA

Application for Registration as Institution (Architecture) / Institution (Civil Engineering) under the Kerala Municipality Building Rules, 2019

1. Name of Institution :
2. Permanent Address :
3. Address to which communications : are to be sent
4. The University in Kerala to which the institution is affiliated and the date of affiliation (with proof) :
5. Whether the registration is required for : Institution (Architecture) / Institution (Civil Engineering)
(Attested copies of document showing valid registration/recognition of Bachelor's degree course in Architecture from Council of Architecture or that in Civil Engineering from AICTE, as the case may be, should be enclosed)
6. References of previous licenses, if any :
7. Details of show cause notices received/ cancellation of licenses, etc if any :
8. Name and Specimen Signature of the Head of Department of Architecture / Civil Engineering, as the case may be:
Name:.....

Signature: (i)

(ii)

(iii)

DECLARATION

I, hereby declare that the details furnished above are correct, complete and true to the best of my knowledge and belief. Any change of person in the capacity of the Head of Department of Architecture or Civil Engineering, as the case may be, will be officially intimated to the registering authority with name and specimen signature of such person.

Signature:

Name:

Designation:

(of the Principal / Head of the Institution)

(Office seal)

Place:

Date:

APPENDIX —H2

(See rule 81(11)& 100)

QUALIFICATION AND FUNCTION OF ARCHITECT, ENGINEER, ETC.

Category	Qualifications	Function
(1)	(2)	(3)
Institution	Valid registration / recognition of Bachelor's degree in Architecture in institution from the the Council of Architecture and affiliation of the institution to a university in the state	(i) To sign plans, drawings and (ii) To issue certificates of supervision in connection with development permit for areas up to the extent of one hectare pertaining to road work, water supply drainage, sewerage and light installations (iii) To prepare and sign all plans and information connected with the building permit. (iv) To prepare and sign structural design and calculations, for building(s) upto 500 sq.m. and upto 3 storeys or 11 metres height. (v) To issue certificates of supervision and completion for all types of buildings
Institution Engineering)	(Civil Valid registration / recognition of Bachelor's degree in Civil Engineering in the institution from AICTE and affiliation of the institution to a university in the state	(i) To sign plans, drawings and specifications in connection with development permit for area upto the extent of one hectare. (ii) To issue certificates of supervision in connection with development permit for areas upto the extent of one hectare pertaining to road work, water supply, drainage, sewerage and light installations. (iii) To prepare and sign all plans information connected with building permit. (iv) To prepare and sign structural designs and calculations connected with all types of buildings other than high rise buildings (v) To issue certificates of supervision and completion for all types of buildings.
Architect	Registration with the Council of Architecture, India as prescribed under Architect's Act 1972 (Central Act 20 of 1972)	(i) To sign plans, drawings and specifications in connection with development permit for areas upto the extent of one hectare. (ii) To issue certificates of supervision in connection with development permit for areas up to the extent of one hectare pertaining to road work, water supply drainage, sewerage and light installations. (iii) To prepare and sign all plans and information connected with the building permit (iv) To prepare and sign structural design and calculations, for buildings upto 500 sq.m. and upto 3 storeys, or 11 metres height (v) To issue certificate of supervision and completion for all buildings.
Building Designer -A	(i) Associated membership of the Indian Institute of Architects; or (ii) Any degree or Diploma required for membership of the Indian Institute of Architects (iii) Any of the qualifications included in the schedule to Architects Act, 1972; or (iv) Degree in Architectural Engineering	(i) To sign plans, drawings and specifications in connection with development permit for areas upto the extent of one hectare.

		(ii) To issue certificates of supervision in connection with development permit for areas up to the extent of one hectare pertaining to road work, water supply drainage, sewerage and light installations. (iii) To prepare and sign all plans and information connected with the building permit. (iv) To prepare and sign structural design and calculations, for building upto 500 sq.m. and upto 3 storeys, or 11 metres height (v) To issue certificate of supervision and completion for all buildings.
Building Designer-B	Any person retired from Government or Quasi Government service from a post not below the rank of Assistant Architect and not possessing the qualifications for registration as Architect shall be eligible for registration as Building Designer- B.	(i) To sign plans, drawings and specifications in connection with development permit for area upto the extent of 0.5 hectares. (ii) To issue certificates of supervision in connection with development permit for areas up to the extent of 0.5 hectares pertaining to road work, water supply, drainage, sewerage and light installation. (iii) To prepare and sign all plans and information connected with buildings up to 1000 sq.metres in area or upto 4 floors and stair cabin or 14.5 metres. height excluding the height of the stair cabin. (iv) To issue certificate of supervision and completion for all buildings coming under item (iii) above.
Engineer A	(i) Corporate membership (Civil) of the Institution of Engineers; or (ii) Any degree or equivalent qualification in Civil Engineering which is required for the corporate membership of the Institution of Engineers; or (iii) Any person having valid registration as Engineer under the Kerala Municipal Building Rules, 1999 shall be eligible for registration as Engineer- A.	(i) To sign plans, drawings and specifications in connection with development permit for area upto the extent of one hectare. (ii) To issue certificates of supervision in connection with development permit for areas upto the extent of one hectare pertaining to road work, water supply, drainage, sewerage and light installations. (iii) To prepare and sign all plans information connected with building permit. (iv) To prepare and sign structural designs and calculations connected with all types of buildings other than high rise buildings. (v) To issue certificates of supervision and completion for all types of buildings
Structural Engineer	(i) Post Graduate in Structural Engineering from a recognized institution	(i) To sign all structural drawings (ii) To issue certificate with respect to the structural stability of the building
Engineer B	Any person retired from Government or Quasi government service from a post not below the rank of Assistant Engineer/Assistant Town	(i) To sign plans, drawings and specifications in connection with development permit for areas upto the extent of 0.5 hectare.

	Planner and not possessing the qualifications for registration as Engineer-A shall be eligible for registration as Engineer- B ¹²⁵ [Any person having 3 years of experience as Supervisor Senior].	(ii) To issue certificates of supervision in connection with development permit for an area upto the extent of 0.5 hectare pertaining to road work, water supply, drainage, sewerage and light installations. (iii) To prepare and sign all plans, information connected with building permit for buildings upto 1000 sq.metres in area and upto 4 floor and stair cabin and 14.5 metres height, excluding height of stair cabin. (iv) To issue certificates of supervision and completion for buildings coming under item (iii) above.
Town Planner A	Associate membership of the Institute of Town Planner; or (ii) Any degree or diploma in Town and Country Planning which is required for associate membership of the Institute of Town Planners.	(i) To sign plans, drawings and specifications in connection with development permit of all area. (ii) To issue certificate of supervision for development permit of all areas.
Town Planner B	Any person retired from Government or Quasi Government service from a post not below the rank of Assistant Town Planner and not possessing the qualifications for registration as Town Planner-A shall be eligible for registration as Town Planner-B	(i) To sign plans, drawings and specifications in connection with development permit for an area up to one hectare (ii) To issue certificate of supervision for development permit for an area up to 1 hectare.
Supervisor Senior	Diploma in Civil Engineering and having 6 years' experience as supervisor-A, or others having 10 years' experience as supervisor- A.	(i) To prepare and sign building plans and other specifications connected with buildings upto total built up area 1000 sq.m. and upto four floors and stair cabin and 14.5 metres height, excluding the height of stair cabin. (ii) To issue certificates of supervision and completion for buildings coming under item (i) above. ¹²⁵[(iii) To prepare and sign lay out plans upto one hectare]
Supervisor A	(i) Diploma in Civil Engineering / Architecture and having completed 4 years' experience as supervisor-B, or (ii) Any person having eight years' experience as supervisor B; or (iii) Any person having valid registration as Supervisor (Special) under Kerala Municipality Building Rules, 1999; or (iv) Any person retired from Government or Quasi Government service from a post not below the rank of first grade Overseer (Civil) or first grade Draftsman (Civil) or first grade Building Inspector or first grade Town Planning Surveyor having completed 8 years in service in any of those post, shall be eligible for registration as Supervisor A.	(i) To prepare and sign building plans and other specifications connected with buildings upto total built up area 750 sq.m. and upto three floors and stair cabin and 11metres height, excluding the height of stair cabin. (ii) To issue certificates of supervision and completion for all types of buildings coming under (i) above. ¹²⁵[(iii) To prepare and sign lay out plans upto one hectare]

Note:-For counting experience, continuous practice as supervisor under Kerala Municipality Building Rules, 1999 shall also be taken into account.

Supervisor B	(i) Three years Architectural Assistantship with two years' experience under an Architect or Engineer; or (ii) Diploma in Civil Engineering/Architecture with two years' experience under an Architect or Engineer; or (iii) Draftsman in Civil Engineering from Industrial Training Institute with five years' experience under an Architect or Engineer; or (iv) K.G.C.E. in Civil Engineering Draftsmanship survey with Five years' experience under an Architect or Engineer; or (v) Certificate in Building Technology approved by Government; with 10 years experience under an Architect or Engineer; or *(vi) Any qualification equivalent to that in item (iii) with five years' experience or that in item (v) with ten years' experience, under an Architect or Engineer or ** (vii) Any person having valid license as Supervisor under Kerala Municipality Building Rules, 1999 is eligible for registration as Supervisor-B.	(i) To prepare and sign plans and other specifications connected with buildings upto an area 300sq.m. and upto two floors and stair cabin and 7.5 metres height, excluding the height of stair cabin (ii) To issue certificates of supervision and completion for all types of buildings coming under (i) above
--------------	---	---

Note —A person registered under the Architects Act, 1972 as Architect shall be deemed to be registered under this Rule.

A person registered as Chartered Engineer with the Institution of Engineers (India) shall deemed to be registered under these rules.

A Structural Engineer qualified from a recognised university shall deemed to be registered under these rules.

A person registered as a corporate member (Associate / Fellow) of the Institute of Town Planners (India) shall be deemed to be registered under these rules.

125.Inserted by SRO no.628/2020 w.e.f.01.10.2020.

* Seen as (va) in the official publication.

** Seen as (vi) in the official publication.

APPENDIX –H3

[See rule 99 (4)]

CERTIFICATE OF REGISTRATION

This is to certify that Sri/Smt.....
..... (state the name and full address) has been registered
as.....(state the category) under the provisions of the Kerala Municipality
Building Rules, 2019

Place:

Signature of Registering Authority with name

Date:

(Seal)

APPENDIX-I

[See rule 5(4)(Note ii)]

..... Municipal Corporation / Municipal council / Town Panchayat

DETAILS REGARDING APPLICATIONS FOR RENOVATION WITHOUT INVOLVING ADDITIONAL BUILT-UP AREA OR STRUCTURAL ALTERATIONS OF EXISTING BUILDINGS FOR RELIGIOUS PURPOSE OR PLACES OF WORSHIP

(To be submitted by the applicant to the Secretary in triplicate)

1. Name of Applicant :
2. Address :
3. Village and Survey Number :
4. Extent of land :
5. Details of Renovation works :
6. Nature of ownership :
7. Built-up area of existing building(s)

S1.No.	Floor level (Basement/First/Second. etc)	Built-up area in sq.m

8. Certificate
Certified that the works for the above specified building (s) involved only renovation works without any structural alterations or addition in the existing built-up area.

(Signature) Name and address of
the owner

Place:

Date:

For Office Purpose:

-
9. Forwarded to District Collector along with verified drawings and other relevant details, if any.

File/Application No:

Date of receipt of application :

(Signature of Secretary)

(office seal)

10. Acknowledgement of the receipt from District Collector

(Signature) Name and designation of the authorized signatory

Place: Date:

11. Action taken by the Secretary:

APPENDIX –J1

[See rule 6(3)]

CERTIFICATE

(To be recorded in the drawings)

Certified that:

- (i) the plot boundaries, measurements and other details shown in the site plan are correct and
- (ii) the drawings are in conformity with the provisions of the Master Plan/Detailed Town Planning Scheme/ Interim Development Order as applicable under the Kerala Town and Country Planning Act 2016.
- (iii) the drawings are in conformity with the provisions of the Kerala Municipality Building Rules, 2019 and other applicable statutes.

(Signature)

Name:

Reg.No.:

Address:

(Registered Institution/ Architect/Engineer/Town Planner/Supervisor)

APPENDIX –J2

[See rule 9(2)]

CERTIFICATE

(To be recorded in the drawings)

Certified that:

- (i) the document(s) in support of the ownership of the plot has/have been verified and that the applicant (s) has/have every right of construction in thisplot;
- (ii) the plot boundaries, measurements and other details shown in the site plan have been verified at site and found correctand
- (iii) the drawings are in conformity with the provisions of the Master Plan/Detailed Town Planning Scheme/ Interim Development Order as applicable under the Kerala Town and Country Planning Act2016.
- (iv) the drawings are in conformity with the provisions of the Kerala Municipality Building Rules, 2019 and other applicablestatutes.

(Signature)

Secretary

..... Municipal Corporation / Municipal council / Town Panchayat

Office Seal

APPENDIX *K(A)

[See rule 5 (5) (2)]

Approval forms for KSECBC Form 1

Application for seeking Building Permit in respect of erection/re-erection/making alteration of KSECBC Compliant Building.

To

The Secretary,

..... Municipal Corporation / Municipal council / Town Panchayat

Subject: Application for erection of KSECBC compliant Building in Survey/Re Survey No:-----

.....BlockNo.....of village in.....--- Municipal Corporation / Municipal council / Town Panchayat

Sir,

I/we the undersigned hereby give you notice of my intention to erect / re- erect / alter KSECBC Compliant Building in plot under Survey/ Re Survey No: ----- Block No of----- village in ----- Municipal Corporation / Municipal council / Town Panchayat

and request for issue of building permit for the construction of the building.

The following documents are enclosed.

- (i) Undertaking by owner for construction of KSECBC compliantbuilding;
- (ii) Construction Documents and Compliance Forms together with check-lists incorporating the installation of Energy Conservation Measures specified in the aforesaidrules;
- (iii) Compliance Forms together with check-lists duly verifiedbySri Regd.
Number ----- KSECBC licensed engineer/ BEE certified building energy auditor and a certificate in Form II duly signed by him under his seal in this regard is enclosed.

Yours faithfully,

(Name of the owner)

Address, -

Tel.No/Mobile No-----

* Seen as (K)(A) in the official publication.

APPENDIX *K(B)

[See rule 5 (5) (2)]

Form IA

[Undertaking by owner for construction of ECBC compliant building]

I am the owner of the aforesaid in plot under Survey/Re Survey No ----- Block ----- of-----
-----villagein Municipal Corporation / Municipal council / Town

. And the building on completion of constructions shall

have a connected load/contract demand of 100kW/120kVA or greater and is proposed to be constructed as KSECBC compliant building and shall be used or intended to be used for commercial purposes.

The proposed building accordingly attracts the provisions of Kerala State Energy Conservation Building Code 2017.

I/we undertake that the aforesaid building shall be constructed in accordance with the bye-laws of the Municipal Authority and the provisions of KSECBC, 2017. In case any deviation is noticed during the construction of the Building, I/We shall indemnify the loss to the Authority having jurisdiction.

I/we further undertake that the information supplied in the enclosed drawings and application is accurate to the best of my knowledge, and if any of the information supplied is found to be incorrect and such information result in loss to the Central or the State Government or any other authority under them, I/we undertake to indemnify such loss.

Signature

(Name of the owner)

Address.....

Mobile No/Tel No.....

* Seen as (K)(B) in the official publication.

APPENDIX *K(C)

[See rule 5 (5) (2)]

Form II

[Certificate from KSECBC licensed engineer /BEE certified building energy auditor to be enclosed with the application for Building Permit for KSECBC compliant building] Certificate

I am Kerala State Energy Conservation Building Code (KSECBC) certified professional/ BEE certified building energy auditor having registration No/ under the Energy

Conservation Act 2001 and am / are authorized to scrutinize and verify the design of KSECBC Compliant Building. I certify that –

- (a) I have scrutinized the construction documents duly signed by the owner/design professional showing all the pertinent data and features of the building, equipment and systems in sufficient details covering Building Envelope, HVAC, Service hot water, Lighting and Electrical power in accordance with Municipal Bye-laws and with the KSECBC, in respect of building proposed to be constructed on plot under Survey/Re Survey No: ----- Block No ----- of village in Municipality.
- (b) I have scrutinized the compliance forms together with the check- lists to ensure compliance with the KSECBC.
- (c) The requisite documents incorporating the energy conservation measures have been duly inspected by the undersigned.
- (d) The Energy Performance Index Ratio of the building design as per construction documents at the design stage is equal to or less than one and is therefore in compliance with the KSECBC.
- (e) It is certified that all the required scrutiny and verification on the documents submitted have been carried out diligently and truthfully and all reasonable professional skill, care and diligence have been taken in scrutinizing and verifying the drawings of the buildings and compliance forms together with check-lists covering the various components of the KSECBC.
- (f) The contents of all the documents submitted along with the application are a true representation of the facts and nothing has been concealed.
- (g) There is no objection for issue of Building Permit in respect of the aforesaid proposed Building in so far as requirements of KSECBC are concerned.

Signature.

Name of the KSECBC certified Licensed Engineer / BEE Certified building energy auditor

Registration No / SEAL.

Date.

* Seen as (K)(C) in the official publication.

APPENDIX *K(D)

[See rule 17 (19)]

Form III

Notice of completion

To

The Secretary,
...Municipal Corporation /
Municipal council / Town Panchayat

Subject: Erection of Kerala State Energy Conservation Building Code (KSECBC) Compliant Building in plot under Survey/Re
Survey No:----- Block No-----

-----of ----- village in ----- Municipal Corporation / Municipal council / Town Panchayat notice for completion of
works.

Sir,

I / we hereby give notice that the erection of the building on Plot no.....Block No._____

Scheme _____ Street_

implementation of the energy conservation measures have been completed in accordance with the plans sanctioned vide
your office communication No..... dated.....The following documents are enclosed:-

(i) A certificate of inspection on completion of the aforesaid building from SriKSECBC Licensed Engineer /
BEE certified building energy auditor vide Municipal Authority Order No_____dated__is enclosed. The building is fit for use
for which it has been erected / re-erected / constructed.

It is requested that permission to occupy or use the aforesaid building may be granted. Yours faithfully,

Signature.....

Name of the owner

Plot no.

Block no.

Address

APPENDIX - L
[See rule 5(4)]
SELF DECLARATION FORM

I do hereby declare that all the measurements mentioned in the civil plan are correct, and complete.
I also hereby declare that all the required fire protection arrangements as listed in the National building code are installed in the building and are ready for inspection and testing.

(Signature) (Signature)

Name of Owner.

Name:

Reg.No.:

Address:

(Registered Institution/ Architect/Engineer/ Town Planner/ Supervisor)

AFFIDAVIT

Name and address of the applicant : Occupancy of the building :
Survey Number :

Village:

Panchayat/Municipality : I / We do hereby affirm that,

1. the materials proposed to be used or installed for the construction of the building will be as per required fire resistant rating in NBC of India – 2005, Part IV Annexure C
2. all the proposed installations and power supply fixed for the proposed building will be as per NBC of India 2005 Part V Annexure C. All the proposed Air conditioning, Smoke Management, Ventilation and staircase Pressurization systems for the building, if installed, will be as per NBC of India Part IV Annexure C
3. all the proposed lightning protection installations for the building will be as per NBC of India 2005 Part IV Annexure C
4. the proposed gas bank for the building, supply lines and other fitting associated with it, if installed will be as per NBC of India 2005 Part IV Annexure C

Place: Signature of Applicant

Date: Name:

Note: If on any subsequent inspection the fire protection arrangements are found to be ineffective, the owner of the building shall be liable to pay fine @ Rs.100 per sq. meter build up area, not exceeding Rs.1,00,000/- in total.

Appendix M

[See rule 3 (5)]

CRITERIA FOR CONSIDERING AN APPLICATION FOR EXEMPTION

Application Fees: The applicants seeking exemption under this rule shall apply in writing to the Secretary in form in Appendix N along with challan receipt remitting the application fee in the Government treasury as detailed below.

- i) Single family residential building of built up area up to 100 sqm No application fee
- ii) Single family residential building of built up area up to 100 -300 sqm - Rs1000
- iii) All other buildings with built up area up to 100 sqm - Rs2000
- iv) All other buildings with built up area exceeding 100 sqm but up to 1000 sqm
...Rs10000
- v) All other buildings with built up area exceeding 1000 sqm - Rs20000

Technical remarks: The Secretary shall submit the applications to the Chief Town Planner and Chief Town Planner shall submit the application to the Government with technical remarks for consideration.

Rules exempted: The following occupancies / rules will not be considered for exemption

1	Occupancy group not considered for exemption from these rules.	Group G2- Industrial II, Group I-Hazardous, Group J — Multiplex Complex,
2	Rules not considered for exemption from these rules	Rules under chapter II and III, R26 (3) (provision of set back at ground itself), R 27- FSI, R 28 (Access), R 30 (lay out approval), R 31 (land sub division and plot development), R 35 (2)(1) (Fire escape stair case), R36 (Travel distance to emergency exits), R -40 (Lift/ Escalator), R 41 (1) (lighting and ventilation), R 41(7)- light and ventilation conformity with ECBC provisions, R 42 (Provisions for differently abled, Elderly and children), Rules under chapter X (Construction in plots part of which have been surrendered free of cost for road development), Rules under chapter XIII (Special provisions for certain constructions), Rules under chapter XIV (Wells, Rainwater harvesting), Rules under chapter XV (Solar assisted water heating /lighting system), Rules under chapter XVI (waste disposal), Rules under chapter XVII (safety provisions for high rise buildings), Rules under chapter XVIII(Telecommunication towers) and Rules under chapter XIX, XX.

Criteria and Fee for exemption

The appeal application will be considered for exemption from the rules based on the criteria stipulated in table given below. The fee for exemption from various rules mentioned in the table will be cumulative and total fee will be calculated by summing of the exemptions fees individually for each rules as per the fee stipulated against each rules. However the exemption fee for Single family residential building & commercial building having built up area up to 100 sqm is limited to Rs 5000/- and exemption fee for Single family residential building having built up area above 100 upto 300 sqm is limited to Rs20000/-.

	Rules/Occupancy	Criteria	Exemption Fee
1	Rule 26 - exterior and interior open space (except R 26 (3))	Constructions which are deficient up to 15 % (including tolerance as specified in rule 20(3) of the mandatory exterior and interior open space as per Rule will only be considered for exemption.	1) Deficient by 0-10% - 10 times that of the permit fee. 2) Above 10 up to 15 %- 25 times that of permit fee
2	Rule 27 - Coverage	Constructions which exceeds up to 5 % of the permissible value as per this rule will only be considered for exemption	Fair value of land in rupees per sqm multiplied by additional plinth area in excess of that permissible as per this rule + Rs 8000 per sq m of built up area in excess of that permissible as per the rule.
3	Rule 29- Parking	Constructions which are deficient up to 10 % of the permissible value as per this Rule will only be considered for exemption	Fair value of land in rupees per sqm multiplied by 15 sq m per parking subject to a minimum of Rs 3,00,000 per deficient car parking
4	Other Rules-R32 (Mezzanine floor), R 33(Height of rooms) R 34 (sanitation facilities),R 35 (I) (stair cases),R 35(2) (fire escape stair case) 35 (3)-Ramp, R (37)-exit width 38-doorways,R39- corridor,R4I (2 to 6)- details of light and ventilation, 43 (Other provisions for apartment buildings),R 44(Other provisions for assembly buildings),R 45- (other provisions regarding Group G1), R 46-(other provisions regarding Group H), R 49 (special provisions for hut),R 50(special provisions for construction in small plot), R 5 I(special provisions for row buildings), Rules under chapter VIII (provisions for construction under approved schemes), Rules under chapter XI (Accessory buildings and sheds)	The authority for exemption can consider all other rules for exemption taking in to account the type of construction and condition of site, subjected to a maximum deviation of 10% of the requirement.	15 times that of the permit fee for each rule to be exempted

For all other rules not mentioned here, the respective rules will prevail

APPENDIX N

[See rule 3 (5)]

APPLICATION FOR EXEMPTION FROM BUILDING RULES

(to be submitted in duplicate)

To

The Secretary,

..... Corporation / Municipality.

I have obtained permit No.....dated for
the construction or reconstruction or addition or alteration to an existing building with building no.....in
Corporation / Municipality in SurveyNo.

..... Village Taluk.....

District and have carried out the construction in deviation to plans approved by the Secretary.

I realise that the construction so carried out is in violation of the provisions contained in the building rules and / or the Act and
the date of commencement of the construction is

..... and date of Completion of construction is I realize that the said
construction is an unauthorized one.

I request that sanction may be accorded for granting exemption of the said constructions from the building rules. The
application fee of has been remitted vide..... Necessary documents and plans in
triplicate are enclosed.

The application details and checklist of the documents to be enclosed is given below:

1	Name of applicant (s)	
2	Building Location	
(i)	Ward No.	
(ii)	Road / Street	
(iii)	Survey No. / Sub.Dn.No	
(iv)	Name of Village	
(v)	Name of Block	
(vi)	Existing Building No. If any	
(vii)	Permit No. If any	
(viii)		

List of documents enclosed along with the application:		Submitted		
1	Receipt for payment of application fee	YES	NO	NA
2	Three Copies of the drawings	YES	NO	NA
(i)	Each of the floor Plans	YES	NO	NA
(ii)	Elevation	YES	NO	NA
(iii)	Section	YES	NO	NA
(iv)	Site Plan	YES	NO	NA
(v)	Location Plan	YES	NO	NA
(vi)	Service Plan	YES	NO	NA
(vii)	Parking Plan	YES	NO	NA
3	Documents to prove ownership of land	YES	NO	NA
(i)	Copy of land deed	YES	NO	NA
(ii)	Copy of Tax receipt	YES	NO	NA
(iii)	Copy of latest Possession Certificate	YES	NO	NA
(iv)	Copy of BTR certificate	YES	NO	NA
(v)	Attested Copy of the survey sketch from revenue department	YES	NO	NA
4	Photo of Applicant (s) affixed	YES	NO	NA
5	4 Photographs of Unauthorised Construction from all four sides of the building showing all external details of development — affixed and attested by owner(s) and Licensee	YES	NO	NA
6	Proof of valid registration of the licensee	YES	NO	NA
7	Proof of qualification of the Structural Engineer who has issued the structural stability certificate	YES	NO	NA
8	Copies of the cases pending before or direction, judgment etc., by Courts, Tribunal, Ombudsman etc. pertaining to or with reference to the plot or constructions.	YES	NO	NA
9	Copies of any Government orders, Circulars any form of communication against the plot / land or constructions.	YES	NO	NA
10	Copy of approved plans issued by the Secretary as per the provisions contained in the Building rules	YES	NO	NA
11	Copy of building permit issued by the Secretary as per the provisions contained in the Act or Building rules.	YES	NO	NA
12	Copy of documentary evidence of the details of action taken by the Municipal corporation / Municipality against the unauthorised construction.	YES	NO	NA
13	Copy of the resolution made by all owners or their association (for residential apartments)	YES	NO	NA
14	Copy of documentary evidence or any other details pertaining to or relevant to the unauthorised constructions and plot	YES	NO	NA
15	Copy of Aadhar card of the owner	YES	NO	NA
16	Any other documents submitted:	YES	NO	NA
(i)				
(ii)				
Total No. of documents				

Signature of Applicant

Name of applicant (In Block letters).....

¹²⁶[APPENDIX O

[See rule 19A(1), 19A(3)]

SELF-CERTIFIED BUILDING PERMIT

..... Municipal Corporation / Municipal council / Town Panchayat

No.....Dated.....

Ref:— Application dated.....from Sri./Smt.

This is the site approval and self-certified building permit for the construction / reconstruction / erection / re-erection / addition / alteration of building..... (specify the construction) in building No. or near the building No.....in Survey / Resurvey No..... Village.....Taluk.....District.....

.....for..... (specify the occupancy) purpose subject to the conditions stated below:

(1) Adequate safety measures will be ensured for protection against damage to health, life, buildings and property of the workers and inhabitants around, during and after building construction. The owner and the developer shall be solely responsible for any such damages.

(2)

(3)

(4)

(a) Setbacks (m) (minimum & average)

Building 1 Front	Rear Side	Side – 1	Side 2
Building 2 Front	Rear Side	Side - 1	Side 2
Building 3 Front	Rear Side	Side - 1	Side 2

(b) Plot Area (sq m) :**(c) FSI : Coverage :****(d) Details of proposed building(s):**

Floors	Building no. 1				Building no. 2			
	Occupancy of the building -				Occupancy of the building -			
	Height of the building - m				Height of the building - m			
	Use	Built-up area (Sq.m.)	Floor area (Sq.m.)	Carpet area (Sq.m.)	Use	Built-up area (Sq.m.)	Floor area (Sq.m.)	Carpet area (Sq.m.)
Basement floor								
Ground floor								
Total								

Add separate sheet if required, duly signed by both the licensee and the Owner

(e) Date of commencement of Construction –

(f) Whether the proposed construction falls in any town planning Scheme/ plan

(g) Name and registration number of the empanelled licensee:

1. The measurements, specifications and other details mentioned above are correct, complete and true to the best of my knowledge and belief and I shall abide by the approved plan and the provisions in the Act and Rules in undertaking the construction.
2. The site plan is prepared after verification of ownership document and site and the measurements shown are found to be correct.
3. The plot and the proposed building conforms to the provisions of Coastal Zone Regulation notification and Kerala Conservation of Paddy and Wetland Act 2008 and its subsequent amendments.
4. The building plan is prepared in accordance with the provisions in the Kerala Municipality Building Rules 2019, the Kerala Municipality Act 1994, the provisions contained in the sanctioned Town Planning Schemes, if any, and permission/NOC/concurrence, if any, required as per Rule 5(4) of the Kerala Municipality Building Rules 2019.

Signature of the owner

Name of the owner

Address:

Signature of the empanelled licensee

Name:

Reg. No.:

Date:

Address:

(Empanelled Architect, Building Designer, Engineer,
Town Planner, Supervisor)

Date:

Encl:

1. Building plans, documents and other details as per Rule 6.
2. NOCs/Clearances (specify if any):
3. Others (specify):

The Self certified building permit is valid only along with the duly signed acknowledgment receipt in Appendix A1B]

¹²⁷[APPENDIX P

(See rule 19D & 19E)

Plinth level Inspection Report

..... Municipal Corporation / Municipal council / Town Panchayat

No. Dated.....

A. General Details

1. Application No.
2. Name and address of owner
3. Type/occupancy
4. Sy. No. village.....local body..... 5. Name of the officer conducting the site inspection
6. Date of inspection
7. Stage of construction at site
- B. Plinth level inspection Details**

Sl.No.	Item	Provided as per approved plan	Provided actually at site
1	Distance from road R23 (2)		
2	Front set back		
3	Rear set back		
4	Side set back		
5	Plinth area		

8. Any other remarks

9. Number of photos enclosed -

Inspection is done in the presence of

I also assure and undertake that, I have signed in the plan and the construction made up to plinth level is structurally safe and is in accordance to the building rules and other relevant Act/Rules in force and is fit for continuing construction.

Encl: Building plans as specified in Rule 21B

Signature Name:

Reg No./ Empanelled No.:

Address:

Date:

Verification Report

(This form has to be completed and submitted to the Secretary by the officer inspecting the site after his site inspection and verification regarding compliance of the structure up to plinth level with the approved plan)

I. Work of (Title of the project)..... at [Site address].....

II. Name of the present owner:

III. Description of the structure:

IV. Whether the construction up to plinth level is as per the approved plan Yes / no

V. Remarks

VI. Recommendation

Name and Signature

Official Designation

.....Municipal Corporation / Municipal council / Town Panchayat

¹²⁸[APPENDIX –Q

[See rule 99(7)]

Application for empanelment under the Kerala Municipality Building Rules, 2019

1. Name of registered Architect/ Building Designer/ Town Planner/Engineer/ Supervisor :
2. Permanent Address :
3. Address to which communications are to be sent
4. Registration details
(Attested copies of document showing valid registration/recognition of Bachelor's degree course in Architecture from Council of Architecture or that in Civil Engineering from AICTE, COA registration as the case may be, should be enclosed)
- *6. References of previous licenses, if any :
7. Details of show cause notices received/ cancellation of licenses, etc if any :

DECLARATION

I,.....hereby declare that the details furnished above are correct, complete and true to the best of my knowledge and belief.

Signature:

Name:.....

Designation:.....

(Office seal)

Place:

Date:]

*Sl.No.5 is missing.

SCHEDULE- I

[See rules 5 (1), 15 (6), 70 (4), 74 (3), 75 (4) & 94]

APPLICATION FEE

	Local Self Government					Compound Wall(Rupees)	Conversion of Erection of Shutter or door(Rupees)	Conversion of roof (Rupees)
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)
1	Municipal Corporation	50	50	10	15	15	20	20
2	Municipal Council	30	30	10	10	10	15	15

Note:- (1) No separate application or fee for land development is required along with application for building permit except in cases specified otherwise in these rules.

(2) Separate application and fee is required only for the conversion or erection of shutters or doors or roof in an existing building under rules 72 and 74 (3).

SCHEDULE II												
[See Rules 9 (4), 56 (3), 70 (7), 74 (3) & 75 (4)]												
PERMIT FEE												
Sl. No	Local Self Government Institution	Plot sub division including land developments therein if any as per rule 31 (1), (2) & (3) (Rs. Per Ares of the land proposed for sub division)	Other land developments (Rs. Per Hectares of the land proposed for sub-division)	Pucca Building (Rupees per sq. metres of built-up area)		Thatched or tiled buildings —other than pucca (Rupees per sq. metres of built-up area)	Huts or sheds (Rupees per unit including their accessory units if any)	Residential units for Economically Weaker Sections funded by Government or Local Self Government Institutions (Rupees per dwelling)	Wells (rupees per unit)	Compound wall (Rupees per metre length)	Shutter or door conversion or erection under rules 72 and 74(3) (Rupees per unit)	Roof conversion under rules 72 and 74(3) (Rupees per sq. metre of built-up area)
1	2	3A	3B	4		5	6	7	8	9	10	11
				(i)	(ii)							
				Group A1 Occupancy	Occupancies other than group A1							
1	Municipal Corporation	1000	1000	10	15	3	75	NIL	25	4	500	4
2	Municipal Council	750	750	7	10	2	50	NIL	20	3	300	3

Provided that in the case of residential buildings up to 150 sq. metres of built-up area, the permit fee shall be only 50 percent of the amount mentioned above.

Note :- (1) Area of accessory building(s) such as car shed, toilet, cabin for watch and ward etc. shall be added to main building for calculating total permit fee. In the case of addition or alteration, only the area of the portion added or altered shall be taken in to account.

(2) In the case of tourist resorts, the permit fee as stipulated in column (4) (ii) shall be applicable irrespective of the structural conditions. The fee prescribed in column (5) or (6) shall not be applicable in such cases.

SCHEDULE III

[See rules 5 (6) (2)]

SCRUTINY FEE FOR LAYOUT APPROVAL

Occupancy Group	Rate (Rupees /sq. metres of Built up area
A1	1
A2, B, C, D, E, F, J	2
G1, G2, H, I	3

The amount has to be remitted in Government treasury and the copy of the challan has to be enclosed along with application for layout.

By order of the Governor,

T. K. JOSE ,

Additional Chief Secretary to Government.

Explanatory Note

(This does not form part of the notification, but is intended to indicate its general purport)

The Kerala Municipality Building Rules, 1999 was issued under G.O. (Ms.) No. 188/1999/LSGD dated 1st day of October, 1999 and published as S.R.O No. 777/1999 in the Kerala Extraordinary No. 1786 dated 1st day of October, 1999.

Now the Government have decided to issue the Kerala Municipality Building Rules, 2019 superseding the Kerala Municipality Building Rules, 1999.

The notification is intended to achieve the above object.

Explanatory Note (to 2020 amendment rules)

(This does not form part of the notification, but is intended to indicate its general purport.)

As per notification issued under G. O. (P) No. 77/2019/LSGD dated 2nd November, 2019 and published as S.R.O. No. 828/2019 in the Kerala Gazette Extraordinary No. 2691 dated, 8th November 2019, the Government have framed the Kerala Municipality Building Rules, 2019, for carrying out the purposes of the Kerala Municipality Act, 1994 (20 of 1994) by superseding the notification issued under G.O. (Ms.) No. 188/99/LSGD dated 1st day of October, 1999 and published as S.R.O. No. 777/1999 in the Kerala Gazette Extraordinary No. 1786 dated 1st day of October, 1999. Now the Government have decided to make suitable amendments to the said rules.

The notification is intended to achieve the above object

Explanatory Note (to 2021 amendment rules)

(This does not form part of the notification, but is intended to indicate its general purport.)

As per Kerala Municipality (Second Amendment) Ordinance, 2021 (Ordinance No. 34 of 2021) Government have introduced provision for issuing Acknowledgement certificate which shall be deemed to be permission to execute the work of the construction / reconstruction of low risk buildings. In accordance with the provisions of Kerala Municipality Act, 1994 (20 of 1994) as amended by the said ordinance, Government have decided to amend the Kerala Municipality Building Rules, 2019. It is also decided to bring certain other amendment also in the Rules.

The notification is intended to achieve the above object.

The notification is intended to achieve the above object.

Explanatory Note (to 2023 amendment rules)

(This does not form part of the notification, but is intended to indicate its general purport.)

As part of the Government's strategy to promote usage of 5G network, erection of Telecommunication towers, telecommunication pole structures, accessory rooms are essential. It is essential to provide necessary provisions to intimate the erection of Telecommunication towers, telecommunication pole structures, accessory rooms to the Secretary. In accordance with the provisions of the Kerala Municipality Act, 1994 (20 of 1994) , Government has decided to amend further the Kerala Municipality Building Rules, 2019 suitably.

The notification is intended to achieve the above object.